



CITY COUNCIL MEETING
CITY HALL COUNCIL CHAMBERS
229 MAIN STREET, CONWAY, SC 29526
MONDAY, DECEMBER 1, 2025 - 4:00 PM

PLEASE SILENCE ALL ELECTRONIC DEVICES

I. CALL TO ORDER

II. INVOCATION/PLEDGE OF ALLEGIANCE

III. CONSENT AGENDA

- A. Final Reading of Ordinance #ZA2025-12-01 (A) to annex approximately 0.39 acres of property located at 4 Clemson Road (PIN 383-15-02-0010).
- B. Final Reading of Ordinance #ZA2025-12-01 (C) to rezone approximately 0.39+/- acres of property located at 4 Clemson Road (PIN 383-15-02-0010), from the Horry County Residential, no mobile homes allowed (SF-10) district to the City of Conway Low/ Medium-Density Residential (R-1) district upon annexation.
- C. Final Reading of Ordinance #ZA2025-12-01 (D) to rezone approximately 0.35+/- acres of property located at 1328 Cottage Lane and 1636 Church Street (PINs 338-10-02-0009 & 338-10-02-0008), from the City of Conway Low/ Medium-Density Residential (R-1) district to the City of Conway Highway Commercial (HC) district.
- D. Final Reading of Ordinance #2025-12-01 (E) amending the Business License Ordinance of the City of Conway to update the Class Schedule as required by Act 176 of 2020.
- E. Approval of a Resolution to accept the dedication of roadways & drainage and the financial guarantee for the roadway warranty for the Westwood Reserve, Phase 1A subdivision (Jollie Drive; Collins Farm Way; Westwood Drive; Bridgeview Drive; Kings Town Way).
- F. Approval of November 17, 2025 Council Meeting Minutes

IV. SPECIAL PRESENTATION

- A. Recognition of 2025 Artist of the City of Conway Christmas Card Contest
- B. Recognition of 2024 CP Quattlebaum Design Award Recipients (Dennis)

“I pledge to build a stronger and more prosperous community by advocating for civil engagement, respecting others and their viewpoints, and finding solutions for the betterment of my city.”

C. Presentation of Employee of the Month for December 2025 – Public Safety

D. Presentation of Longevity Awards – November 2025 – 5 Years – Covell Moore, Recreation; 5 Years - Charlie Mathews, Public Utilities; 10 Years – Glenn “David” Crotts Jr., Finance; 20 Years – Christopher Weatherford, Public Utilities; 20 Years – Jamie Elliott, Public Utilities; 25 Years – Timothy Williams, Hospitality & Beautification

E. Discussion of a request to rezone approximately 0.44+/- acres of property located along Hwy 701 N. / N. Main Street (PIN 325-13-01-0013), from the City of Conway Low/ Medium-Density Residential (R-1) district to the City of Conway Highway Commercial (HC) district. (Hucks)

V. SECOND READING

Second Reading of an ordinance providing for the establishment of the Riverfront Downtown Redevelopment Project Area, the approval of the Riverfront and Downtown Redevelopment Plan, and financing of redevelopment projects, and other matters related thereto. (Rogers)

VI. FIRST READING

A. First Reading of Ordinance #ZA2026-02-02 (A) to annex approximately 0.22+/- acres of property located at 250 Chevy Chase Drive (PIN 367-13-01-0031). (Hucks)

B. First Reading of Ordinance #ZA2026-02-02 (B) to annex approximately 18.26+/- acres of property located at 1071 & 1059 Academy Drive (PIN 382-00-00-0009). (Hucks)

VII. CONSIDERATION

Consideration of City Assistance to Blackwater Market for Restroom Cleaning and Stocking (October – December) (Emrick)

VIII. PUBLIC INPUT

IX. CITY ADMINISTRATOR’S REPORT

X. COUNCIL INPUT

XI. WORKSHOP

XII. ADJOURNMENT

Any City of Conway resident or owner of a business within the City that holds a valid city business license may make an appearance before City Council concerning any municipal matter with the exception of personnel matters. Persons desiring to speak must notify the City Clerk no later than 5 p.m. on the last business day prior to the day of the City Council meeting. However, if you are speaking regarding a public hearing item, then you would do so during that time on the agenda. Address Council from the podium stating your name, address, and the subject you would like to discuss. The public may also access the meeting at <https://www.conwaysc.gov/>.

“I pledge to build a stronger and more prosperous community by advocating for civil engagement, respecting others and their viewpoints, and finding solutions for the betterment of my city.”



STAFF REPORT

4 Clemson Rd (annexation)

COUNCIL MTG DATE: December 1, 2025	AGENDA ITEM: III.A.
ORDINANCE: #ZA2025-12-01 (A)	AGENDA SECTION: Consent
ISSUE: Petition to annex approximately 0.39+/- acres of property located at 4 Clemson Road.	
APPLICANT(S): Daniel Bachand ETAL	PIN(s): 383-15-02-0010
CURRENT ZONING: Residential, no mobile homes allowed (SF10) – min. lot size of 10,000 sq. ft.	PROPOSED ZONING (upon annexation): Low/Medium-Density Residential (R-1)
BACKGROUND: The subject property, identified as Lot 29, Block B of the Coastal Heights Subdivision, was transferred to the current owners on September 24, 2025. Restrictive Covenants were recorded on September 23, 2025. The property contains a single-family dwelling. Properties abutting the side, rear and across the street of the subject parcel are within the city limits. Annexation is being requested as a requirement for a name change to the city utility service account.	
SURROUNDING USES/ZONING: The property abuts a vacant lot in the city limits, zoned HC and a residential lot, zoned R-1. Across the street is Conway Medical Center, zoned IN and County, including SF10 (Residential, no mobile homes allowed, on min. lot sizes of 10,000 sq. ft.), containing residential dwellings.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Low/Medium-Density Residential (R-1). Per Section 3.2.3 of the UDO, <i>the intent of the R-1 district is to provide for the preservation and expansion of areas for low to medium density, detached single-family residential development in the City of Conway. The district shall present a relatively spacious character, promote quiet, livable neighborhoods, and prohibit uses that are incompatible with the residential nature of the surrounding area.</i>	
PLANNING COMMISSION RECOMMENDATION (and public hearing): Planning Commission held the required Public Hearing at their November 6th mtg and voted to rezone the property to R-1 upon annexation.	
CITY COUNCIL: City Council approved first reading of the ordinance to annex the subject property at their October 6th meeting.	
RECOMMENDED ACTION: Approve Final Reading of Ordinance #ZA2025-12-01 (A) to annex the subject property.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2025-12-01 (A)

AN ORDINANCE TO ANNEX INTO THE CITY LIMITS OF CONWAY, APPROXIMATELY 0.39+/- ACRES OF PROPERTY, IDENTIFIED BY PIN: 383-15-02-0010 AND LOCATED AT 4 CLEMSON ROAD, TO INCLUDE ALL WATERWAYS, ROADS, AND RIGHTS-OF-WAY ADJACENT TO THE PROPERTY.

SECTION 1. FINDINGS OF FACTS:

- WHEREAS,** Section § 5-3-150, Code of Laws of South Carolina (1976) as amended, provides a method of annexing property into a city or town by a petition signed by all persons owning real estate in the area requesting annexation; and
- WHEREAS,** A proper petition has been filed with the City of Conway by one hundred percent (100%) of the freeholders owning one hundred percent (100%) of the assessed value of the contiguous property herein described, petitioning for annexation of the property to the City of Conway under the provisions of SC Code of Laws, Section § 5-3-150(3); and
- WHEREAS,** The area comprising said property is contiguous to the City of Conway and meets all statutory requirements for annexation; and
- WHEREAS,** It appears to City Council that annexation would be in the best interest of property owners and the City.

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Council of the City of Conway, South Carolina, duly assembled and with authority of same, pursuant to Section § 5-3-150, Code of Laws of South Carolina (1976), as amended, the following described property is hereby annexed to and made part of the City of Conway, to wit:

Approximately 0.39+/- acres of property identified by PIN: 383-15-02-0010 and located at 4 Clemson Road.

Upon annexation, the property shall become subject to the City's jurisdiction for the rendition of all applicable municipal services. This annexation includes all waterways, roads, and rights-of-way adjacent to the property. For a more specific description of said property, see attached map(s).

SECTION 2. APPLICATION OF ZONING:

The official zoning map of the City of Conway shall be amended by separate ordinance following Planning Commission review and recommendation in accordance with S.C. Code § 6-29-760.

SECTION 3. EFFECTIVE DATE:

The annexation is effective as of the date of the final reading of this Ordinance.

RATIFIED BY CITY COUNCIL, duly assembled, this 1 day of December, 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

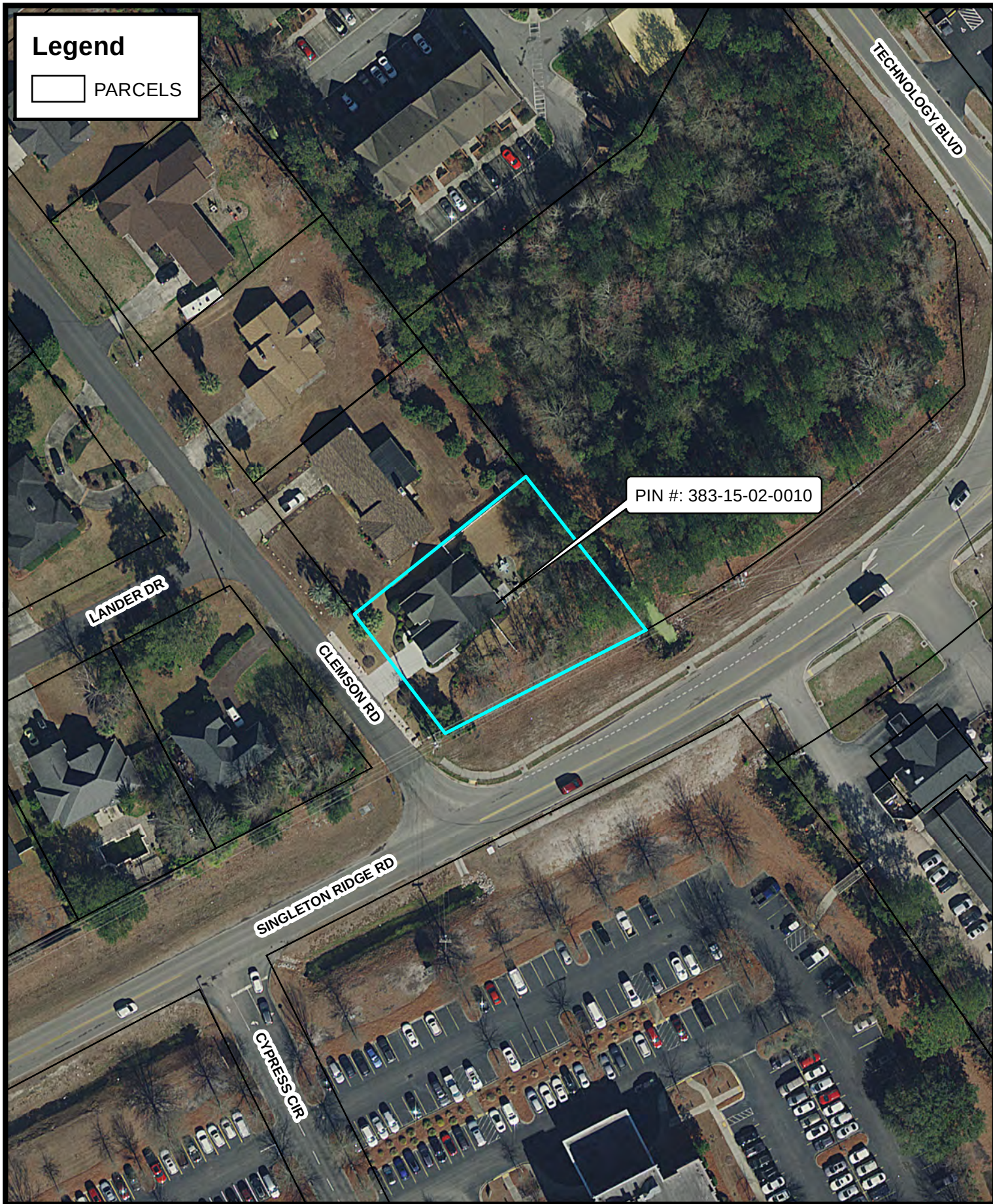
Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: 10/06/2025

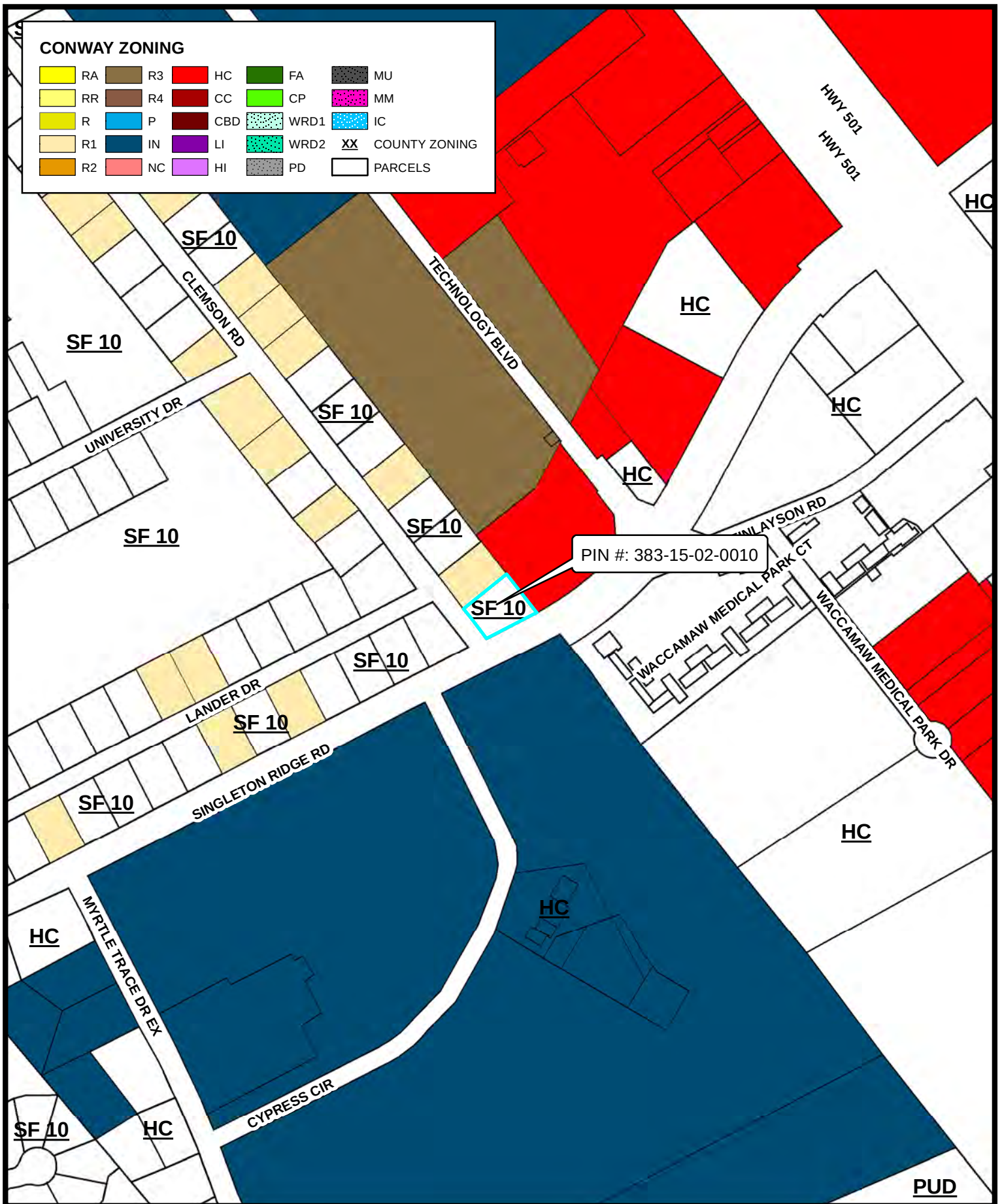
Final Reading: 12/01/2025





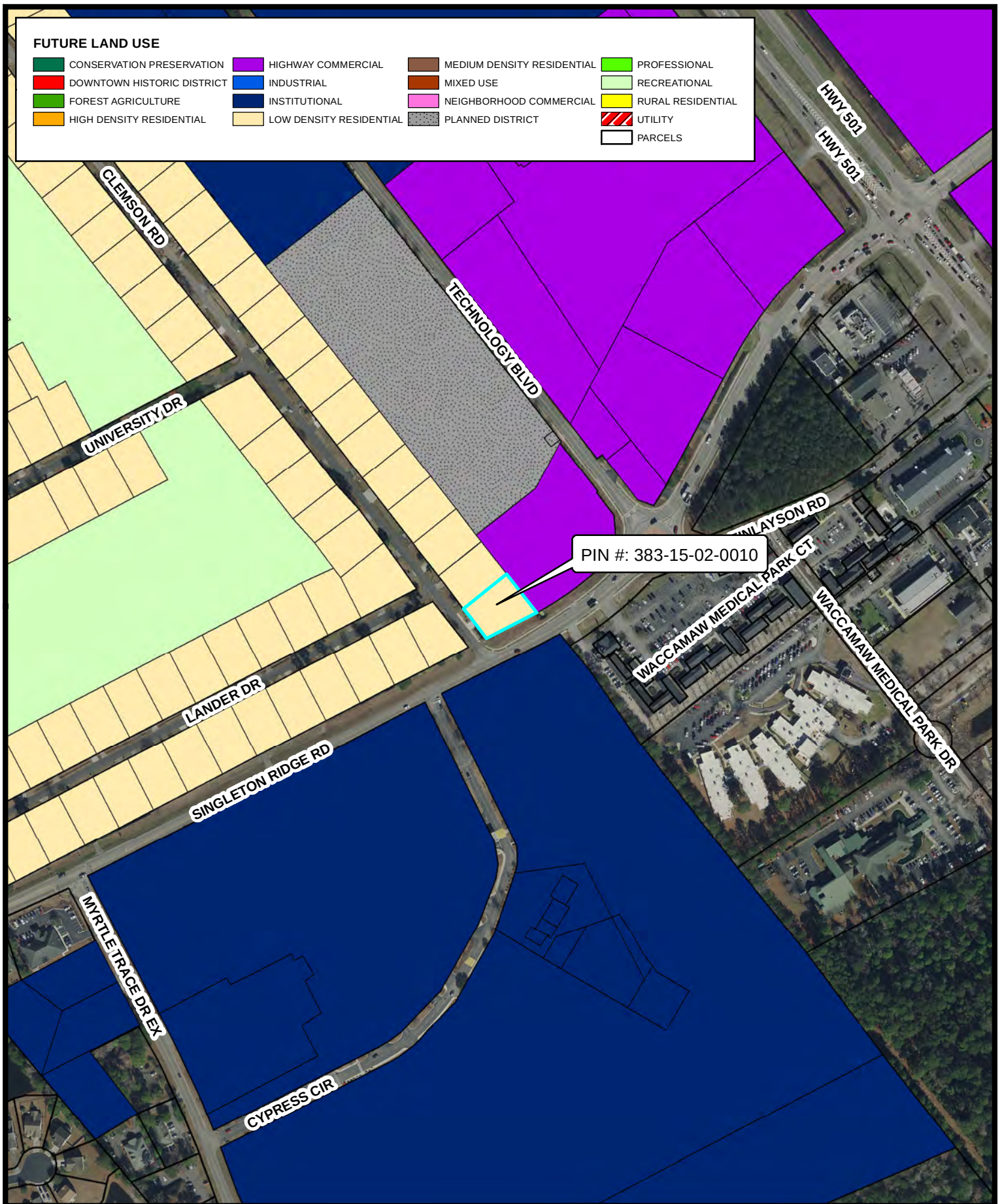
Legend

 PARCELS



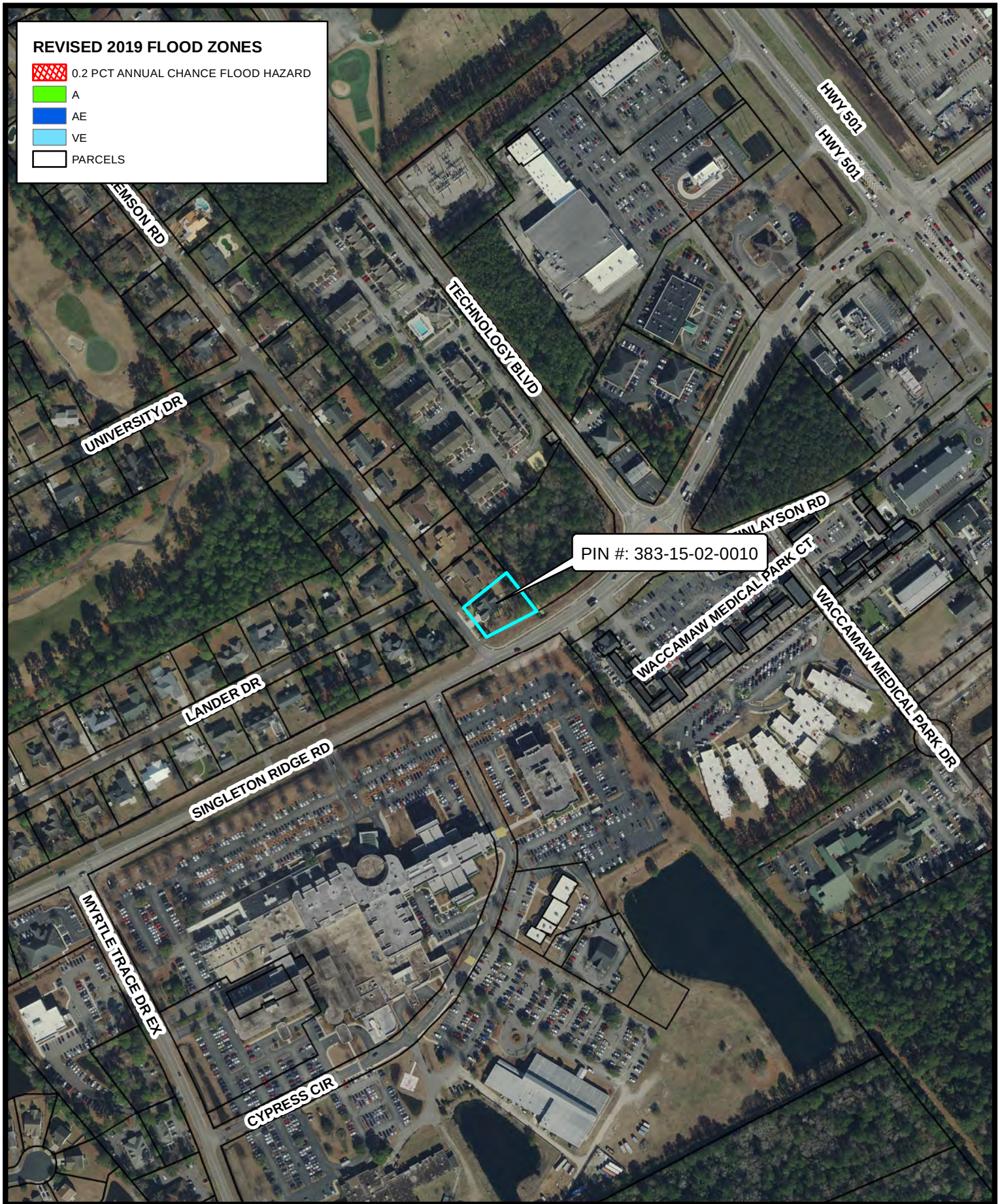
FUTURE LAND USE

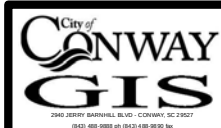
 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS



REVISED 2019 FLOOD ZONES

-  0.2 PCT ANNUAL CHANCE FLOOD HAZARD
-  A
-  AE
-  VE
-  PARCELS





Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 383-15-02-0010
TMS #: 151-19-02-043
4 CLEMSON RD
(P25-0368)





STATE OF SOUTH CAROLINA)

)

RESTRICTIVE COVENANT

COUNTY OF HORRY)

KNOW ALL ME BY THESE PRESENTS, that, (I, we) DANIEL BACHAND
(Grantor) seek permission to connect to the Water and/or Sewer System of the City Of Conway.
The property/parcel is situated outside the corporate limits of the City Of Conway. The
property/parcel is identified in the records of the Assessor of Horry County as Parcel Identification
Number (PIN) 38315020010 and is physically located at
[REDACTED]

The above referenced property was conveyed by deed to the Grantor and recorded in the Office of
the Register of Mesne Conveyance for Horry County, South Carolina in Deed Book [REDACTED] at
Page [REDACTED].

We understand and agree that as a condition of service and connection of the Water and/or
Sewer System to the above referenced property, we will petition, when requested by the City Of
Conway (by Group or Individual method) for annexation to the City Of Conway under Section 5-
3-150 of the Code of Laws for the State of South Carolina. We further understand that it may be
necessary to execute a petition for annexation on more than one occasion; however, the final
acceptance of the said petition rests upon an affirmation vote of a majority of the governing body
of the City of Conway.

It is understood and agreed upon that this covenant shall be legally binding upon
(myself/us) as the Grantor(s), and our heirs and successors. Any violation of, or refusal to sign,
said petition shall result in either legal recourse for nonperformance by the City, and/or termination
of water and/or sewer services provided to the premises.

It is further understood and agreeable that the City may inspect and approve the owner's
water and/or sewer system prior to connection to insure compliance with the City and State
regulations. An inspection fee, if applicable, may be imposed for such inspection in accordance
with the guidelines and policies set forth by the City of Conway.

All rights, powers, and privileges hereby granted to the City of Conway as grantee shall
convey to its heirs, successors and assigns, and shall be binding upon the heirs, successors,
administrators, executors and assigns of the Grantor. Grantor acknowledges that the conditions of
this agreement and this agreement itself is a restriction and covenant of the title of the above
reference property and binding upon the grantors, heirs, successors, and assigns. Furthermore, it is
mutually agreeable that upon any dividing, separation, or split of the above referenced property,
this agreement shall remain binding upon the successors and heirs of such division, and that this
covenant shall remain binding upon the successors and heirs of such division, and that this covenant
shall remain a restriction and covenant on the title of the parcel resultant of such division.

Deed BK: 4993 PG: 1427 Doctype: 082
09/23/2025 at 11:49:24 AM, 1 OF 2

Marion D. Foxworth III
HORRY COUNTY, SC REGISTRAR OF DEEDS



IN WITNESS THEREOF, the undersigned Grantor has hereto set his hand and Seal this

23 day of September

SIGNED, SEALED AND DELIVERED by:

Grantor in the presence of:

Maribel

Witness

Edward Bechar

Grantor Name

A. Bessant

Witness or Notary

STATE OF SOUTH CAROLINA)

)

PROBATE

COUNTY OF HORRY)

PERSONALLY appeared before me the undersigned witness, and made oath that he/she saw the within named Grantor(s) sign, seal and as his/her act and deed, deliver the within written Agreement and Covenant; and that he/she with the other witness named above witnessed the execution thereof.

Marshall Lee

Witness

SWORN TO BEFORE ME THIS 23
DAY OF September, 2025

A. Bessant

NOTARY PUBLIC FOR SOUTH CAROLINA (signature)

Anne Bessant

NOTARY PUBLIC FOR SOUTH CAROLINA (printed)

My commission expires: 4/8/2032

Section 26-1-120 (E) (4): A witness is not a party to or a beneficiary of the transaction, signed the record as a subscribing witness.



PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

City of Conway Planning
Department 196 Laurel Street, 29526

Phone: (843) 488-9888
Conway, South Carolina

www.cityofconway.com

Instructions:

- Fill out all 3 pages
- Submit signed forms to City of Conway Planning Department

STATE OF SOUTH CAROLINA)

COUNTY OF HORRY)

PETITION FOR ANNEXATION

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY

WHEREAS, § 5-3-150 (3) of the Code of Laws of South Carolina provides for the annexation of an area or property which is contiguous to a City by filing with the municipal governing body a petition signed by all persons owning real estate in the area requesting annexation; and

WHEREAS, the undersigned are all persons owning real estate in the area requesting annexation; and

WHEREAS, the area requesting annexation is described as follows, to wit:

NOW, THEREFORE, the undersigned petition the City Council of Conway to annex the below described area into the municipal limits of the City of Conway.

PROPERTY LOCATION/SUBDIVISION: Coastal Heights

PIN: 38315020010 ACREAGE: .34

PROPERTY ADDRESS: 4 CLEMSON RD

PROPERTY OWNER MAILING ADDRESS: 4 CLEMSON RD CONWAY SC 29526

PROPERTY OWNER TELEPHONE NUMBER: [REDACTED]

PROPERTY OWNER EMAIL: [REDACTED]

APPLICANT: DANIEL BACHAND

APPLICANT'S EMAIL: [REDACTED]

IS THE APPLICANT THE PROPERTY OWNER? CIRCLE: YES ☒ NO ☐

IF NOT: PLEASE INCLUDE A LETTER OF AGENCY OR POWER OF ATTORNEY FROM THE OWNER ADDING RESPONSIBILITY TO THE APPLICANT.

PROPERTY OWNERS (Attach additional sheets if necessary)

DANIEL BACHAND
(Print) [Signature]
(Signature)

DATE: 09-23-2025

GLORIA BACHAND
(Print) [Signature]
(Signature)

DATE: 09-23-2025



PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

Is there a structure on the lot: YES Structure Type: SINGLE FAMILY RESIDENCE

Current Use: RESIDENCE

Are there any wetlands on the property?

CIRCLE: YES ☐ NO ☒

If yes, please include valid wetland delineation letter from army corps of engineers.

Is the property restricted by any recorded covenant that is contrary to, conflicts with, or prohibits the permitted or proposed use of the land?

CIRCLE: YES ☐ NO ☒

If yes, please explain and provide a copy of covenant and/or restriction.

Is the city a party to any deed restrictions or easements existing on the property?

CIRCLE: YES ☐ NO ☒

If yes, please describe.

Are there any building permits in progress or pending for this property?

CIRCLE: YES ☐ NO ☒

If yes, please provide permit number and jurisdiction.

FEES ARE DUE AT SUBMITTAL.

RI ZONING DISTRICT – NO FEE ALL OTHER ZONING DISTRICTS - \$ 250

PLEASE SUBMIT TO THE PLANNING & DEVELOPMENT DEPARTMENT

planning@cityofconway.com



Zoning Map Amendment Application

Incomplete applications will not be accepted.

Staff Use Only

Received: _____
BS&A #: _____

City of Conway Planning Department
196 Laurel Street, 29526

Phone: (843) 488-9888
Conway, South Carolina

www.cityofconway.com

Notice

All zoning map amendments shall follow the procedures set forth in Section 13.1.7 of the City of Conway Unified Development Ordinance. Amendments to the Official Zoning Map shall be initiated by members of City Council, the Planning Commission, the Planning Director, or owner(s) of the subject property. In order to partially defray the administrative cost of zoning map amendments, the applicant shall pay a filing fee to the City of Conway in the amount of \$250.00 at the time this application is submitted. Planned Development rezonings are \$2,500.00 and Planned Development Amendments are \$500.00, and due at the time of submission. A plat of the property to be rezoned may be required with this application.

PHYSICAL ADDRESS OF PROPERTY: 4 CLIMSON RD FEE PAID () YES () NO

AREA OF SUBJECT PROPERTY (ACREAGE): .34 PIN: 383/5020010

CURRENT ZONING CLASSIFICATION: SF10

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: R1

REQUESTED ZONING CLASSIFICATION: R1

NAME OF PROPERTY OWNER(S):

DANIEL BACHMAN PHONE # [REDACTED]

GLORIA BACHMAN PHONE # [REDACTED]

MAILING ADDRESS OF PROPERTY OWNER(S):

4 CLIMSON RD CONWAY, SC 29526

I (we) the owner(s) do hereby certify that all information presented in this Zoning Map Amendment Application is correct.

[Signature] 09-23-2025
PROPERTY OWNER'S SIGNATURE(S) DATE

PROPERTY OWNER'S SIGNATURE(S) DATE

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



STAFF REPORT

4 Clemson Road (Zoning)

COUNCIL MTG DATE: December 1, 2025	AGENDA ITEM: III.B.
ORDINANCE: #ZA2025-12-01 (C)	AGENDA SECTION: Consent
ISSUE: Final reading of an ordinance to rezone approximately 0.39+/- acres of property located at 4 Clemson Road to the Low/Medium-Density Residential (R-1) district upon annexation.	
APPLICANT(S): Daniel Bachand ETAL	PIN(s): 383-15-02-0010
CURRENT ZONING: Residential, no mobile homes allowed (SF10) – min. lot size of 10,000 sq. ft.	PROPOSED ZONING (upon annexation): Low/Medium-Density Residential (R-1)
BACKGROUND: The subject property, identified as Lot 29, Block B of the Coastal Heights Subdivision, was transferred to the current owners on September 24, 2025. Restrictive Covenants were recorded on September 23, 2025. The property contains a single-family dwelling. Properties abutting the side, rear and across the street of the subject parcel are within the city limits. Annexation is being requested as a requirement for a name change to the city utility service account.	
SURROUNDING USES/ZONING: The property abuts a vacant lot in the city limits, zoned HC and a residential lot, zoned R-1. Across the street is Conway Medical Center, zoned IN and County, including SF10 (Residential, no mobile homes allowed, on min. lot sizes of 10,000 sq. ft.), containing residential dwellings.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Low/Medium-Density Residential (R-1). Per <i>Section 3.2.3 of the UDO, the intent of the R-1 district is to provide for the preservation and expansion of areas for low to medium density, detached single-family residential development in the City of Conway. The district shall present a relatively spacious character, promote quiet, livable neighborhoods, and prohibit uses that are incompatible with the residential nature of the surrounding area.</i>	
PLANNING COMMISSION RECOMMENDATION: Approval Planning Commission held the required Public Hearing and voted to recommend approval of the proposed zoning upon annexation at their November 6th meeting.	
CITY COUNCIL: City Council approved first reading of the ordinance to zone the property R-1 upon annexation at their November 17th mtg.	
RECOMMENDED ACTION: Approve final reading of Ordinance #ZA2025-12-01 (C) to zone the property R-1 upon annexation.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2025-12-01 (C)

AN ORDINANCE TO AMEND THE OFFICIAL ZONING MAP OF THE CITY OF CONWAY, TO ASSIGN A ZONING CLASSIFICATION TO RECENTLY ANNEXED PARCEL IDENTIFIED BY PIN: 383-15-02-0010, CONSISTING OF 0.39+/- ACRES, AND LOCATED AT 4 CLEMSON ROAD.

WHEREAS, the City of Conway adopted Ordinance #ZA2025-12-01 (A) on December 1, 2025, annexing a parcel or parcels of land located at 4 Clemson Road, consisting of 0.39+/- acres, and identified as PIN 383-15-02-0010; and

WHEREAS, pursuant to SC Code § 6-29-760(A), the Planning Commission held a duly advertised public hearing on November 6, 2025 and recommended that the subject property be assigned the zoning classification of Low/ Medium-Density Residential (R-1); and

WHEREAS, City Council finds that such zoning classification is consistent with the City's Comprehensive Plan and surrounding land uses, and in the best interest of the City;

NOW, THEREFORE, BE IT ORDAINED by Conway City Council, in Council duly assembled, that:

SECTION 1.

The official zoning map is hereby amended to designate the zoning classification(s) of Low/ Medium-Density Residential (R-1) of the following parcel(s):

- **PIN:** 383-15-02-0010
- **Address or location:** 4 Clemson Road, Conway, SC
- **Legal Description** (*per county land records*): COASTAL HTS; LT 29 BL B

SECTION 2. EFFECTIVE DATE:

This ordinance shall become effective upon adoption of final reading.

AND BE IT FURTHER ORDAINED that all ordinances or parts of ordinances inconsistent with this ordinance are hereby repealed to the extent of such inconsistency.

RATIFIED BY CITY COUNCIL, duly assembled, this 1 day of December , 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: 11/17/2025

Planning Commission Recommendation: 11/6/2025

Final Reading: 12/01/2025



STAFF REPORT

1328 Cottage Ln & 1636 Church St (Rezoning)

COUNCIL MTG DATE: December 1, 2025	AGENDA ITEM: III.C.
ORDINANCE: #ZA2025-12-01 (D)	AGENDA SECTION: Consent
ISSUE: Final reading of a request to rezone approximately 0.34+/- acres of property located at 1328 Cottage Lane and 1636 Church Street from the Low/Medium-Density Residential (R-1) district to the Highway Commercial (HC) district.	
APPLICANT(S): Tim White, Agent	PIN(s): 338-10-02-0009 & 338-10-02-0008
CURRENT ZONING: Low/Medium Density Residential (R-1)	PROPOSED ZONING: Highway Commercial (HC)
BACKGROUND: The applicant submitted a rezoning application on September 9 th to support the potential redevelopment of the two subject properties. Both properties are currently zoned Low/Medium Density Residential (R-1). The Church Street parcel contains a billboard sign but is otherwise vacant. The Cottage Lane parcel previously operated as a title loan office; however, the business has relocated, leaving the building vacant. The former use had been considered legally nonconforming, though that status has lapsed due to the absence of an active business license for more than 180 days. Any future use must comply with current zoning requirements.	
SURROUNDING USES/ZONING: The subject properties are surrounded by parcels zoned Highway Commercial (HC) within both the City of Conway and unincorporated Horry County. Adjacent uses include Coastal Centre, KFC and Burger King, each zoned HC within the City limits.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's Future Land Use Map designates the area as Highway Commercial (HC). <i>The intent of the HC District is to provide compatible locations to serve the automobile oriented commercial activities in harmony with major highway developments, reduce traffic congestion and to enhance the aesthetic atmosphere of the city.</i>	
PLANNING COMMISSION RECOMMENDATION: Approval Planning Commission held the required Public Hearing and recommended approval of the proposed zoning at their November 6 th meeting.	
CITY COUNCIL: City Council approved first reading of the ordinance to rezone the subject property at their November 17 th mtg.	
RECOMMENDED ACTION: Approve final reading of Ordinance #ZA2025-12-01 (D) to rezone the subject property to HC.	
ATTACHMENTS: GIS Maps; Application	

ORDINANCE #ZA2025-12-01 (D)

AN ORDINANCE TO AMEND THE OFFICIAL ZONING MAP OF THE CITY OF CONWAY, TO REZONE APPROXIMATELY 0.34+/- ACRES OF PROPERTY LOCATED AT 1328 COTTAGE LANE (PIN 338-10-02-0009) AND 1636 CHURCH STREET (PIN 338-10-02-0008) FROM THE LOW/MEDIUM-DENSITY RESIDENTIAL (R-1) DISTRICT TO THE HIGHWAY COMMERCIAL (HC) DISTRICT.

WHEREAS, pursuant to Title 6, Chapter 29 of the Code of Laws of South Carolina, the City of Conway enacted the Zoning Ordinance of the City of Conway, South Carolina; and

WHEREAS, *Article 13, Section 13.1.7* of the City of Conway Unified Development Ordinance (UDO) provides that regulations, restrictions, and boundaries set forth in the UDO may be amended, supplemented, changed, or repealed in accordance with S.C. Code §6-29-760; and

WHEREAS, a petition has been submitted to rezone approximately 0.34+/- (total) acres located at 1328 Cottage Lane (PIN 338-10-02-0009) and 1636 Church Street (PIN 338-10-02-0008) from the Low/Medium-Density Residential (R-1) district to the Highway Commercial (HC) district; and

WHEREAS, the Planning Commission of the City of Conway, on November 6, 2025, held the required public hearing to discuss the request to rezone the Low/Medium-Density Residential (R-1) district to the Highway Commercial (HC) district, and made their recommendation; and

WHEREAS, City Council finds that the requested zoning classification is consistent with the City's Comprehensive Plan and surrounding land uses, and in the best interest of the City;

NOW, THEREFORE, BE IT ORDAINED, by Conway City Council, in Council duly assembled, that:

SECTION 1.

The official zoning map is hereby amended to designate the zoning classification(s) of Highway Commercial of the following parcel(s):

- **PINs** 338-10-02-0009 & 338-10-02-0008
- **Address or location:** 1328 Cottage Ln & 1636 Church St, Conway, SC
- **Legal Descriptions** (*per County land records*): Wright S-D; LT 2 / Wright SD; LT 1

SECTION 2. EFFECTIVE DATE.

This ordinance shall become effective upon adoption of final reading.

AND BE IT FURTHER ORDAINED, that all ordinances or parts of ordinances inconsistent with this Ordinance are hereby repealed to the extent of such inconsistency.

RATIFIED BY CITY COUNCIL, duly assembled, this 1 day of December 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

Justin D. Jordan, Council Member

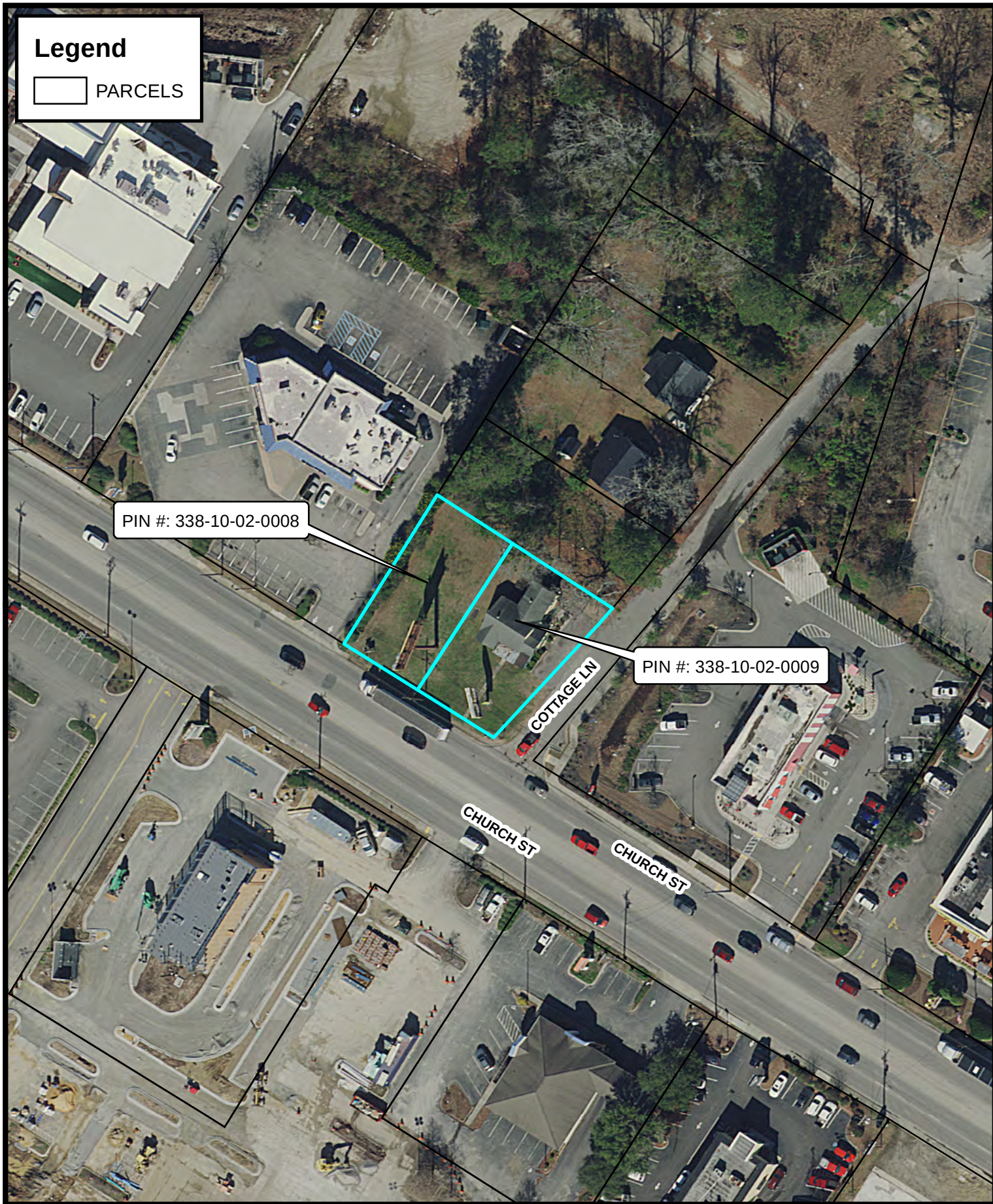
Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: 11/17/2025

Planning Commission Recommendation: 11/6/2025

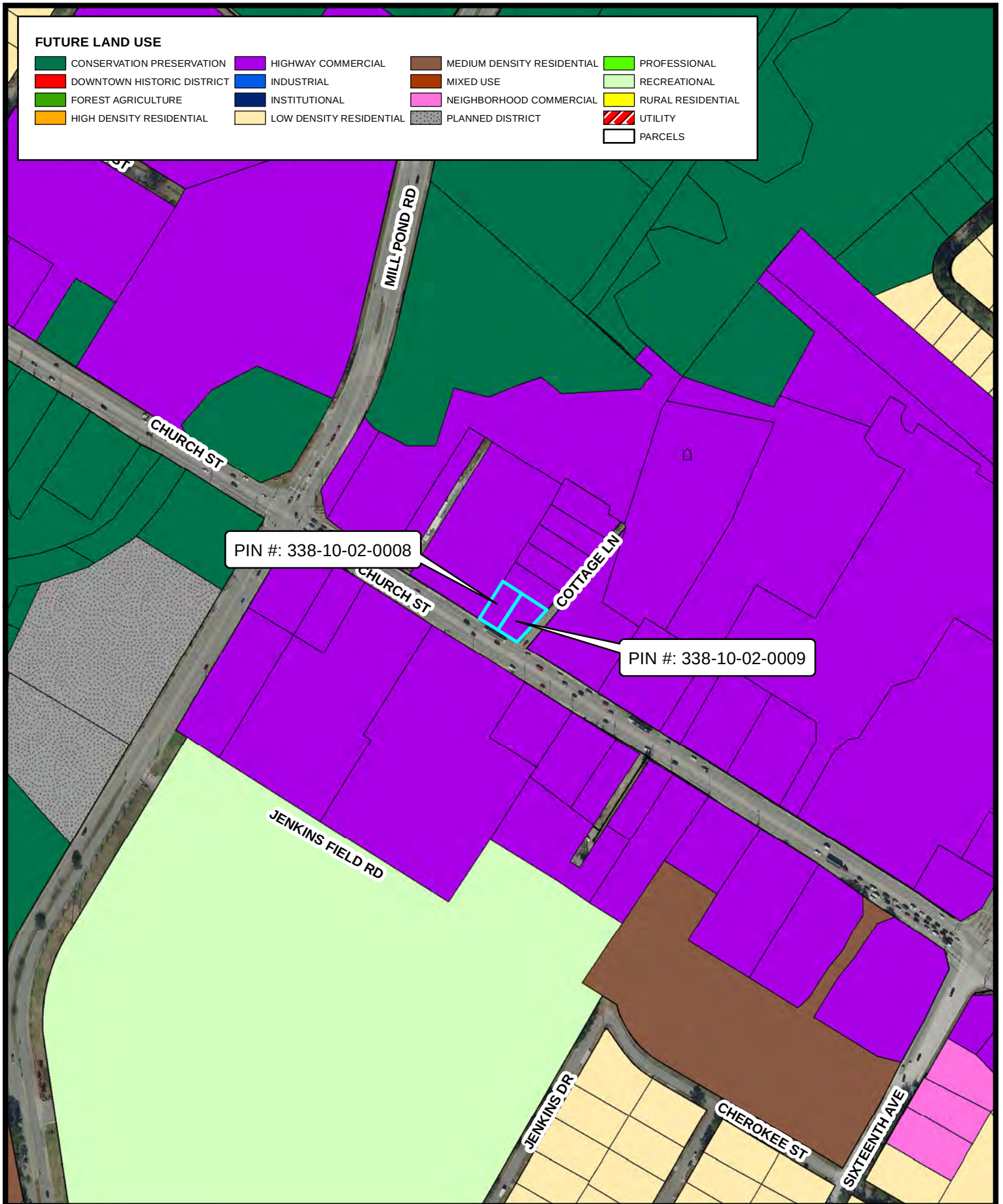
Final Reading: 12/01/025

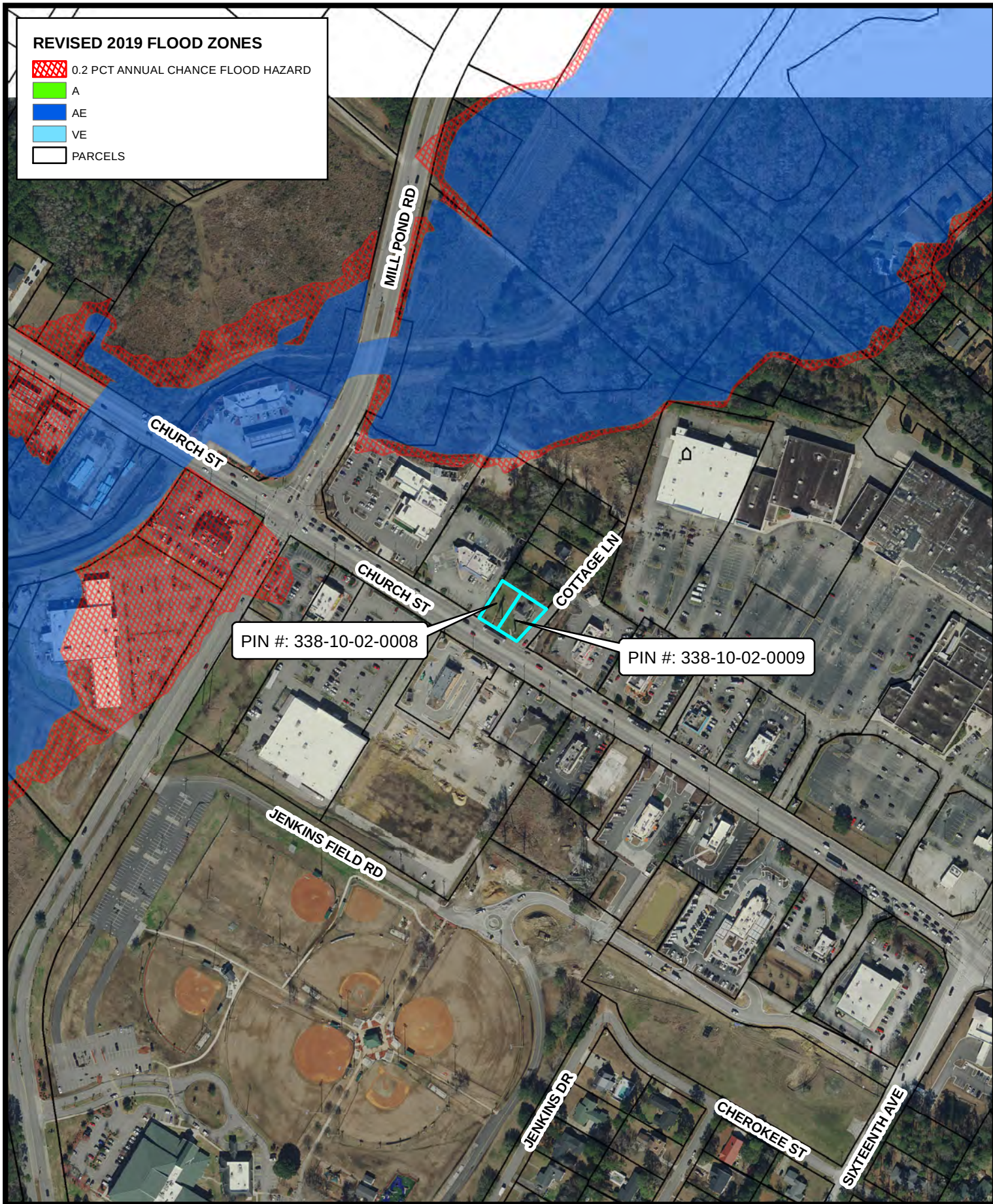




FUTURE LAND USE

 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS







Zoning Map Amendment Application

Incomplete applications will not be accepted.

Staff Use Only

Received: _____

BS&A #: _____

City of Conway Planning Department
196 Laurel Street, 29526

Phone: (843) 488-9888
Conway, South Carolina

www.cityofconway.com

Notice

All zoning map amendments shall follow the procedures set forth in Section 13.1.7 of the City of Conway Unified Development Ordinance. Amendments to the Official Zoning Map shall be initiated by members of City Council, the Planning Commission, the Planning Director, or owner(s) of the subject property. In order to partially defray the administrative cost of zoning map amendments, the applicant shall pay a filing fee to the City of Conway in the amount of \$250.00 at the time this application is submitted. Planned Development rezonings are \$2,500.00 and Planned Development Amendments are \$500.00, and due at the time of submission. A plat of the property to be rezoned may be required with this application.

PHYSICAL ADDRESS OF PROPERTY: 1328 Cottage Ln. & 1636 Church St. FEE PAID ☐ YES ☐ NO

AREA OF SUBJECT PROPERTY (ACREAGE): .35 PIN: 33810020009 & 33810020008

CURRENT ZONING CLASSIFICATION: R1

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: Highway Commerical

REQUESTED ZONING CLASSIFICATION: HC

NAME OF PROPERTY OWNER(S):

Gator Coastal Adjoining, LLC

PHONE # [REDACTED]

PHONE # _____

MAILING ADDRESS OF PROPERTY OWNER(S):

[REDACTED]

[REDACTED]

I (we) the owner(s) do hereby certify that all information presented in this Zoning Map Amendment Application is correct.

PROPERTY OWNER'S SIGNATURE(S)

9/8/25
DATE

PROPERTY OWNER'S SIGNATURE(S)

DATE

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



PLANNING DEPARTMENT

196 LAUREL STREET
CONWAY, SOUTH CAROLINA 29526
843-488-9888
WWW.CITYOFCONWAY.COM

DESIGNATION OF AGENT

(If the Property Owner Wishes To Appoint an Agent to Represent Him or Herself)

Agents Name: **Tim White**

Address:

Telephone:

Email:

I hereby appoint the person(s) listed above as agent to act on my behalf for the purpose of filing such application for a variance/rezoning request as he/she shall deem necessary and proper.

James A. Goldsmith, Manager

PROPERTY OWNER(S) NAME (PRINT)

PROPERTY OWNER SIGNATURE

DATE

9/8/25

DATE: DECEMBER 1, 2025
ITEM: III.D.

ISSUE:

Final reading of an ordinance to update the City's business license ordinance

BACKGROUND:

The City of Conway collects business license revenue as authorized and outlined in its standard business license ordinance.

State law requires that by December 31 of each year, all cities collecting business license revenue under the state's Standardization Act, must update its business license ordinance to reflect updates as recommended by the Municipal Association of South Carolina.

RECOMMENDATION:

Approve final reading of the City's updated business license ordinance.

ORDINANCE #2025-12-01 (E)

**AMENDING THE BUSINESS LICENSE ORDINANCE OF THE CITY OF CONWAY
TO UPDATE THE CLASS SCHEDULE AS REQUIRED BY ACT 176 OF 2020.**

WHEREAS, the City of Conway (the “Municipality”) is authorized by S.C. Code Section 5-7-30 and Title 6, Chapter 1, Article 3 to impose a business license tax on gross income;

WHEREAS, by Act No. 176 of 2020, known as the South Carolina Business License Tax Standardization Act and codified at S.C. Code Sections 6-1-400 to -420 (the “Standardization Act”), the South Carolina General Assembly imposed additional requirements and conditions on the administration of business license taxes;

WHEREAS, the Standardization Act requires that by December thirty-first of every odd year, each municipality levying a business license tax must adopt, by ordinance, the latest Standardized Business License Class Schedule as recommended by the Municipal Association of South Carolina (the “Association”) and adopted by the Director of the Revenue and Fiscal Affairs Office;

WHEREAS, following the enactment of the Standardization Act, the Municipality enacted Ordinance No. 2024-02-05 (D) in order to comply with the requirements of the Standardization Act (the “Current Business License Ordinance”);

WHEREAS, the City Council of the Municipality (the “Council”) now wishes to amend the Current Business License Ordinance to adopt the latest Standardized Business License Class Schedule, as required by the Standardization Act;

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Council of the City of Conway, as follows:

SECTION 1. Amendments to Appendix B. Appendix B to the Current Business License Ordinance, the “Business License Class Schedule,” is hereby amended as follows:

- (a) Classes 1 through 8 in Appendix B to the Current Business License Ordinance, the “Business License Class Schedule,” are hereby amended and restated as set forth on the attached Exhibit A.
- (b) Class 9 in Appendix B to the Current Business License Ordinance, the “Business License Class Schedule,” shall remain in full force and effect as set forth in the Current Business License Ordinance.

SECTION 2. Repealer, Effective Date. All ordinances in conflict with this ordinance are hereby repealed. This ordinance shall be effective with respect to the business license year beginning on May 1, 2026.

RATIFIED BY CITY COUNCIL, duly assembled, this 1 day of December , 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: November 17, 2025

Final Reading: December 1, 2025

**Exhibit A: Amendment to Classes 1 – 8 in Appendix B of the
Current Business License Ordinance**

**APPENDIX B
Classes 1 – 8: Business License Class Schedule by NAICS Codes**

NAICS Sector/Subsector	Industry Sector	Class
11	Agriculture, forestry, hunting and fishing	1
21	Mining	3
22	Utilities	1
31 - 33	Manufacturing	3
42	Wholesale trade	1
44 - 45	Retail trade	1
48 - 49	Transportation and warehousing	2
51	Information	4
52	Finance and insurance	7
53	Real estate and rental and leasing	6
54	Professional, scientific, and technical services	4
55	Management of companies	7
56	Administrative and support and waste management and remediation services	3
61	Educational services	3
62	Health care and social assistance	3
71	Arts, entertainment, and recreation	3
721	Accommodation	1
722	Food services and drinking places	2
81	Other services	3
Class 8	Subclasses	
23	Construction	8.1
482	Rail Transportation	8.2
517111	Wired Telecommunications Carriers	8.3
517112	Wireless Telecommunications Carriers (except Satellite)	8.3
517122	Agents for Wireless Telecommunications Services	8.3
5241	Insurance Carriers	8.4
5242	Insurance Brokers for non-admitted Insurance Carriers	8.4
713120	Amusement Parks and Arcades	8.51
713290	Nonpayout Amusement Machines	8.52
713990	All Other Amusement and Recreational Industries (pool tables)	8.6

2025 Class Schedule is based on a three-year average (2019 - 2021) of IRS statistical data.

DATE: DECEMBER 1, 2025
ITEM: III.E.

ISSUE:

Resolution to accept the dedication of roadways & drainage and the financial guarantee for the roadway warranty for the Westwood Reserve, Phase 1A subdivision (Jollie Drive; Collins Farm Way; Westwood Drive; Bridgeview Drive; Kings Town Way).

BACKGROUND:

Creskide Homes, LLC requests to dedicate the roadways and drainage system in the Westwood Reserve, Phase 1A development. The road(s) inside this development being offered for dedication are: Jollie Drive, Collins Farm Way, Westwood Drive, Bridgeview Drive, and Kings Town Way.

Upon approval of this request by City Council, the City will accept the documents from Creskide Homes, LLC that are required (and applicable) to finalize acceptance of the roadways and drainage system, namely: Drainage Easement, Right-of-Way Deed, Warranty Agreement, As-Built Road Plans, Certification of Non-Litigation and the Warranty Surety in the form of a financial guarantee (in this case, a cashier's check has been provided). The roadway warranty shall be in place for a period of three (3) years.

In accordance with the Unified Development Ordinance (UDO), the required roadway warranty must cover a three-year period beginning on the date of acceptance. The total warranty amount is **\$279,786.00**, calculated based on \$33.60 per linear foot of two-lane roadway and an additional \$5.00 per linear foot for each additional lane. The calculation for each roadway segment is as follows:

Jollie Drive (2-lane roadway): 144 Linear Feet x \$33.60 per LF = \$4,838.40
Collins Farm Way (2-lane roadway): 1852 Linear Feet x \$33.60 per LF = \$62,227.20
Westwood Drive (2-lane roadway): 269 Linear Feet x \$33.60 per LF = \$9,038.40
Bridgeview Drive (2-lane roadway): 431 Linear Feet x \$33.60 per LF = \$14,481.60
Kings Town Way (2-lane roadway): 184 Linear Feet x \$33.60 per LF = \$6,182.40

A separate stormwater financial guarantee is required pursuant to Section 10.6.6 – *Stormwater Warranty and Maintenance Responsibility* of the UDO (adopted in 2022 as part of the Residential Design Standards). The required stormwater warranty amount is equal to 10% of the cost of the dedicated stormwater improvements. For Westwood Reserve, Phase 1A, the stormwater warranty amount is **\$167,187.93**.

Public Works has inspected the roadways and drainage infrastructure within Westwood Reserve, Phase 1A, and has determined that they meet City standards for acceptance.

RECOMMENDATION

Adopt the resolution accepting the dedication of the roadways and drainage system within Westwood Reserve, Phase 1A (Jollie Drive, Collins Farm Way, Westwood Drive, Bridgeview Drive, and Kings Town Way), along with the required three-year financial guarantees totaling \$446,973.93.

STATE OF SOUTH CAROLINA)
COUNTY OF HORRY) **RESOLUTION**
CITY OF CONWAY)

**ACCEPTING THE ROADWAYS AND DRAINAGE SYSTEM
IN THE WESTWOOD RESERVE (PHASE 1A) SUBDIVISION**

WHEREAS, Creekside Homes, LLC has installed a roadway and drainage system within the city limits of Conway; and

WHEREAS, Creekside Homes, LLC is requesting approval to dedicate street rights of way for Westwood Reserve Phase 1A, subdivision, Jollie Drive, Collins Farm Way, Westwood Drive, Bridgeview Drive, and Kings Town Way; and

WHEREAS, Creekside Homes, LLC also requests to convey their right, title and all interest related to the drainage system together with all public easements and rights of way thereto, located within the Jollie Drive, Collins Farm Way, Westwood Drive, Bridgeview Drive, and Kings Town Way rights-of-ways; and

WHEREAS, Conway City Council has determined it would be in the best interest of Conway and its citizens to accept the street and drainage system Jollie Drive, Collins Farm Way, Westwood Drive, Bridgeview Drive, and Kings Town Way, as depicted on maps created by Bolton & Menk, prepared 11/11/2024, titled Westwood Reserves Final Plat Phase 1A, and recorded in the Horry County Registrar of Deeds Plat Book 327, Page 314; and

NOW, THEREFORE BE IT RESOLVED, by the City Council of the City of Conway, South Carolina to accept road right of way and drainage on the above stated Jollie Drive, Collins Farm Way, Westwood Drive, Bridgeview Drive, and Kings Town Way from Creekside Homes, LLC as presented in the deed and easement signed by Jamie McLain of Creekside Homes, LLC.

RATIFIED BY CITY COUNCIL, duly assembled, this 1 day of December, 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

Bolton & Menk, Inc.

1298 Professional Drive
Myrtle Beach, SC 29577
(843) 692-3200

CITY OF CONWAY WARRANTY

DATE PREPARED 14-Nov-25

BASIS FOR ESTIMATE

☐ CODE A (No design completed)
☐ CODE A (No design completed)
☐ CODE C (Final Design)
☒ OTHER: Contract Costs

Cost Estimate Approved

PROJECT: Westwood Reserve Phase 1A
 LOCATION: Collins Jollie
 OWNER: Creekside Homes, LLC
 ESTIMATOR: T. Mastin
 BMI PROJECT NO: 21030E

DESCRIPTION	QUANTITY		COST (\$)	
	NUMBER OF UNITS	UNIT MEASURE	PER UNIT	TOTAL COST
Roadways				
Jollie Drive	144.00	LF	\$ 33.60	\$ 4,838.40
Collins Farm Way	1,852.00	LF	\$ 33.60	\$ 62,227.20
Westwood Drive	269.00	LF	\$ 33.60	\$ 9,038.40
Bridgeview Drive	431.00	LF	\$ 33.60	\$ 14,481.60
Kings Town Way	184.00	LF	\$ 33.60	\$ 6,182.40
Roadway Total				\$ 96,768.00
Sidewalks				
Sidewalks	5,546.00	LF	\$ 33.00	\$ 183,018.00
Sidewalk Total				\$ 183,018.00
Roadways & Sidewalks Total @ 100%				\$ 279,786.00
Storm Drainage				
Curb Inlet	27.00	EA	\$ 3,650.00	\$ 98,550.00
Catch Basin	2.00	EA	\$ 2,600.00	\$ 5,200.00
Control Structure	1.00	EA	\$ 11,500.00	\$ 11,500.00
Junction Box	5.00	EA	\$ 3,750.00	\$ 18,750.00
15" RCP	1,040.00	LF	\$ 38.50	\$ 40,040.00
18" RCP	815.00	LF	\$ 49.75	\$ 40,546.25
24" RCP	782.00	LF	\$ 61.50	\$ 48,093.00
30" RCP	190.00	LF	\$ 85.00	\$ 16,150.00
15" FES	798.00	LF	\$ 800.00	\$ 638,400.00
18" FES	787.00	LF	\$ 950.00	\$ 747,650.00
24" FES	5.00	LF	\$ 1,100.00	\$ 5,500.00
30" FES	1.00	LF	\$ 1,500.00	\$ 1,500.00
Total				\$ 1,671,879.25
Strom Drainage Total @ 10%				\$ 167,187.93
Warranty Total (Roadway/Sidewalks 100% + Storm 10%)				\$ 446,973.93

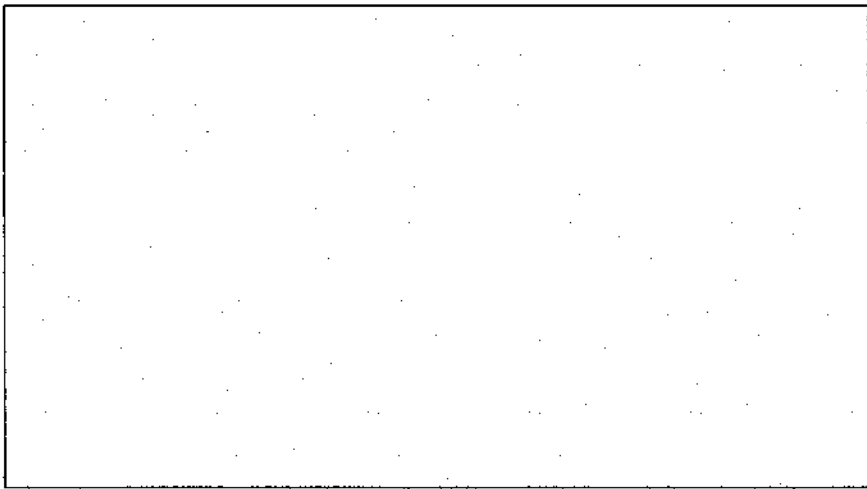




VICINITY MAP ~ NTS

Plot B/C: 327 PG: 314
DocType: 061, 02/21/2025 at 03:30:11 PM, 1 OF 5
Marion D. Foxworth III, Horry County, SC Registrar of Deeds

APPROVAL BLOCK - COUNTY USE ONLY



CERTIFICATION OF APPROVAL FOR PUBLIC WATER AND SEWER SYSTEMS

WE, THE GRAND STRAND WATER & SEWER AUTHORITY, CERTIFY THAT THE WATER SUPPLY AND SEWER DISPOSAL SYSTEM(S) INSTALLED OR PROPOSED FOR INSTALLATION, FULLY MEET OUR REQUIREMENTS.

(DATE) 2/3/2025 (NAME) Craig Dunn (OF) GWSA
(SIGNATURE) [Signature]

CERTIFICATION OF THE COMPLETED IMPROVEMENTS

I HEREBY CERTIFY THAT TO THE BEST OF MY KNOWLEDGE AND BELIEF ALL REQUIRED IMPROVEMENTS HAVE BEEN INSTALLED IN THE ACCEPTABLE MANNER AND ACCORDING TO THE SPECIFICATION ESTABLISHED IN THE CITY OF CONWAY UNIFIED DEVELOPMENT ORDINANCE.

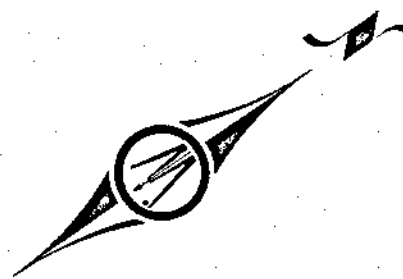
DATE _____ ENGINEER'S SIGNATURE _____

S.C. REGISTRATION NO. _____

"THE CONSERVATION EASEMENTS BEING SHOWN HEREON ARE FOR THE PRESERVATION OF THE EXISTING WETLANDS AND VEGETATION LOCATED WITHIN THE EASEMENT AREA AND REQUIRED AS PART OF THE STANDARDS FOR CONSERVATION SUBDIVISIONS IN THE CITY OF CONWAY'S UNIFIED DEVELOPMENT ORDINANCE. THESE EASEMENTS ARE PERPETUAL IN NATURE, APPURTENANT TO THE UNDERLYING PROPERTY AND TO BE OWNED BY THE CITY OF CONWAY, EXCEPT FOR GENERAL MAINTENANCE. ANY TREE REMOVAL OR WETLAND IMPACT SHALL BE PROHIBITED WITHOUT THE EXPRESS CONSENT OF THE CITY OF CONWAY PRIOR TO SUCH DISTURBANCE."

LEGEND

- MONUMENT SET
- MONUMENT FOUND
- ADJACENT
- EASEMENT



SOUTH CAROLINA STATE PLANE
COORDINATES NAD83 (2011)

0 100' 200'
GRAPHIC SCALE 1" = 100'

NOTES

- DATE OF FIELD WORK: OCTOBER 2024
- PIN: 295-00-00-0036
- CURRENT OWNER OF RECORD:
PINS: 295-00-00-0036 & 295-10-02-0004
CREEKSIDE CUSTOM HOMES LLC
PO BOX 2444
CONWAY SC 29528-2444
DB:4620 PG:1928
PINS: 295-00-00-0010, 295-10-04-0001, 295-10-03-0001, 295-10-03-0002 & 295-10-02-0003
COLLINS JOLLY HOLDINGS CO LLC C/O ROBERT S GUYTON PC
4605 OLEANDER DR #B
MYRTLE BEACH SC 29577-5739
DB:4131 PG:2747
- DEVELOPER:
CREEKSIDE CUSTOM HOMES LLC
PO BOX 2444
CONWAY SC 29528-2444
- PROPERTY APPEARS TO BE LOCATED IN FLOOD ZONE "X", AS SHOWN ON FEMA FLOOD MAP 45051C0388 K & 45051C0369 K, DATED DECEMBER 16, 2021 AND SHOULD BE VERIFIED BY THE CITY OF CONWAY.
- ALL BEARINGS ARE BASED ON THE SOUTH CAROLINA STATE PLANE COORDINATE SYSTEM NAD 83. ALL DISTANCES SHOWN ARE HORIZONTAL DISTANCES NOT GRID DISTANCES. ALL COORDINATES SHOWN ARE FOR GIS PURPOSES ONLY AND ARE NOT TO BE USED AS SURVEY CONTROL.
- NO TITLE SEARCH PERFORMED BY THIS OFFICE
- THIS PROPERTY IS SUBJECT TO ALL EASEMENTS AND RESTRICTIONS OF RECORD.
- ALL PROPERTY CORNERS ARE 5/8" IRON UNLESS OTHERWISE NOTED.
- ALL WETLANDS SHOWN ARE JURISDICTIONAL PER THE ARMY CORP OF ENGINEERS JURISDICTIONAL DETERMINATION LETTER REFERENCE ACOE SAC# (2019-01052)
- WATER AND SEWER SERVICE TO BE PROVIDED BY GRAND STRAND WATER AND SEWER AUTHORITY.
- LAST PROPERTY TRANSFER:
DEED BOOK: 4620 PAGE: 1928
DATE: NOVEMBER 29, 2022
- NO PROTECTED OR LANDMARK TREES AS DEFINED BY THE CITY OF CONWAY UNIFIED DEVELOPMENT ORDINANCE SHALL BE REMOVED WITHOUT THE WRITTEN APPROVAL OF THE CITY ARBORIST AND THE ISSUANCE OF A TREE REMOVAL PERMIT BY THE CITY OF CONWAY
- ALL DRAINAGE EASEMENTS ARE TO BE CLEARED AND ARE TO REMAIN FREE AND CLEAR OF ALL STRUCTURES AND ALL OTHER OBSTRUCTIONS.
- ALL ACTIVITIES, INCLUDING ACTIVITIES BY INDIVIDUAL LOT OWNERS OR LEASE HOLDERS, WILL BE CARRIED OUT IN ACCORDANCE WITH THE APPROVED STORMWATER MANAGEMENT AND SEDIMENT CONTROL PLAN FOR THE SUBDIVISION.
- THE ROADS AND DRAINAGE WITHIN THIS SUBDIVISION ARE INTENDED TO BE PUBLIC AND DEDICATED TO THE CITY OF CONWAY.
- FUTURE DEVELOPMENT IN THE DESIGNATED OPEN SPACE IS PROHIBITED. ALL AREAS SHOWN ON THE PLAT AS COMMON AREA OR OPEN SPACE SHALL REMAIN AS SUCH IN PERPETUITY. OWNERSHIP OF OPEN SPACE SHALL BE DESIGNATED TO THE HOA. THE DEED TO EACH LOT SHALL INCLUDE A PROPORTIONATE SHARE OF THE COMMON OPEN SPACE AND EACH LOT OWNER SHALL BE REQUIRED TO BE A MEMBER OF THE HOA, WHICH SHALL BE FORMED PRIOR TO THE CONVEYANCE OF THE FIRST LOT.
- 10' WIDE NON-EXCLUSIVE UTILITY EASEMENT PROVIDED ALONG THE FRONT OF NEW LOTS PARALLEL TO THE ROAD RIGHT-OF-WAY.
- ROAD LENGTHS
PHASE 1A
JOLLIE DRIVE - 144'
COLLINS FARM WAY - 1852'
WESTWOOD DRIVE - 269'
BRIDGEVIEW DRIVE - 431'
KINGS TOWN WAY - 184'
- THIS SUBDIVISION INCLUDES 51 SINGLE FAMILY LOTS. 29.63 TOTAL ACRES
AREA SUMMARY PHASE 1A
TOTAL AREA OF PHASE 1A 29.63 ACRES
RIGHT-OF-WAY AREA 3.14 ACRES
OPEN SPACE AREA 16.42 ACRES
LOT AREA 10.07 ACRES
TOTAL NUMBER OF LOTS 51
GROSS DENSITY 5.07 UNITS / ACRE
- HOA / POA DOCUMENTS OR RESTRICTIVE COVENANTS AND EASEMENTS FOR THE DEVELOPMENT SHOWN HEREON WERE RECORDED IN DEED BOOK _____ PAGE _____ DATE, IN THE OFFICE OF THE REGISTER OF DEEDS FOR HORRY COUNTY.
- DRAINAGE EASEMENTS ARE TO BE PUBLIC EXCEPT REAR DRAINAGE EASEMENTS.
- THE LAKE MAINTENANCE EASEMENT(S) PROVIDED HEREON SHALL BE MEASURED 12-FEET FROM THE TOP OF THE BANK (3:1 SLOPES) OR FROM THE NORMAL WATER ELEVATION WHEN THE SIDE SLOPES ARE 5:1 OR FLATTER, WHEN MEASURED FROM NORMAL WATER LEVEL, THE LAKE MAINTENANCE EASEMENT WILL COVER ALL AREAS OF THE POND BANK, FROM THE NORMAL WATER LEVEL TO THE TOP OF THE BANK.
- CONSERVATION SUBDIVISION REQUIREMENTS
ALLOWED USE: SINGLE-FAMILY DETACHED
LOT SIZE 6000 SF (MIN)
LOT WIDTH 60' (MIN)
LOT DEPTH 100' (MIN)
FRONT SETBACK 20'
SIDE SETBACK 10'
REAR SETBACK 15'
75' SETBACK FROM EXTERIOR BOUNDARIES
- TEMPORARY DRAINAGE EASEMENTS A & B TO PROVIDE OFF SITE DRAINAGE.
- DEVELOPMENT INCENTIVES*
A. PROVISION: 30' BUFFER AROUND ALL RIVERS / WETLANDS INCENTIVE: 1 ADDITIONAL UNIT PER ACRE OF BUFFER AREA PROVIDED.
B. PROVISION: MULTI-USE TRAILS / GREENWAYS THAT CONNECT NEIGHBORHOODS INCENTIVE: 0' SIDE YARD SETBACK
C. FOUNTAIN PROVIDED IN ALL WET POND
D. OPEN SPACE CONNECTIVITY TO ROADWAY SIDEWALK SYSTEM
- ALL AREAS SHOWN HEREON AS OPEN SPACE SHALL REMAIN AS SUCH IN PERPETUITY AND SHALL BE OWNED AND MAINTAINED BY THE HOA.
- THE MAINTENANCE AND/OR REPLACEMENT OF REQUIRED STREET TREES WITHIN THE PUBLIC RIGHTS-OF-WAY DEDICATED HEREON, SHALL BE THE RESPONSIBILITY OF THE HOA.
- ALL TEMPORARY CUL-DE-SACS SHOWN ON THE PLAT ARE NONEXCLUSIVE EASEMENTS THAT SHALL BE OWNED AND MAINTAINED BY CREEKSIDE CUSTOM HOMES, LLC UNTIL SUCH TIME THAT CORRELATING ROADWAYS ARE EXTENDED AND DEDICATED AS A PUBLIC STREET RIGHT-OF-WAY AT WHICH TIME, THE EASEMENT HEREON SHALL BE RELINQUISHED.
- THIS PROPERTY SUBJECT TO THE DEVELOPMENT AGREEMENT FOR COLLINS JOLLIE CONSERVATION SUBDIVISION, RATIFIED BY THE CONWAY CITY COUNCIL ON: 9/16/2024 AND RECORDED AT THE HORRY COUNTY REGISTER OF DEEDS IN: DB: 4676-3154.

SHEET 3

SHEET 4

SHEET 2

SHEET 1

SURVEYOR'S CERTIFICATION

I hereby state that to the best of my professional knowledge, information, and belief, the survey shown hereon was made in accordance with the requirements of the Standards of Practice Manual for Surveying in South Carolina, and meets or exceeds the requirements for a Class A survey as specified therein.

[Signature] 2/5/25
F. William Carey IV SCPLS No. 27446 Date
©Bolton & Menk, Inc. 2025. All Rights Reserved

CERTIFICATE OF OWNERSHIP AND DEDICATION

THE UNDERSIGNED HEREBY ACKNOWLEDGE THAT I AM (WE ARE) THE OWNER(S) OF THE PROPERTY SHOWN AND DESCRIBED HEREON AND THAT I (WE) HEREBY ADOPT THIS (PLAN OF DEVELOPMENT/PLAT) WITH MY (OUR) FREE CONSENT AND THAT I (WE) HEREBY DEDICATE ALL ITEMS AS SPECIFICALLY SHOWN OR INDICATED ON SAID PLAT.

(NAME) CREEKSIDE CUSTOM HOMES LLC (SIGNED) [Signature] (DATE) 2/4/25
PRINTED NAME
(NAME) COLLINS JOLLY HOLDING CO LLC (SIGNED) [Signature] (DATE) 1/19/25
PRINTED NAME

REFERENCES

PLAT BOOK: 256 PAGE: 99
PLAT BOOK: 302 PAGE: 279
PLAT BOOK: 304 PAGE: 284
PLAT BOOK: 309 PAGE: 307
PLAT BOOK: 317 PAGE: 7(NEW)
PLAT BOOK: 317 PAGE: 2747
DEED BOOK: 4131 PAGE: 1928
DEED BOOK: 4620 PAGE: 2390
DEED BOOK: 4876 PAGE: 3154
DEED BOOK: 4855 PAGE: 1886

APPROVED FOR
RECORDING
[Signature] 2-2-2025
Planning Department Date



DATE: 11/11/2024
SCALE: 1" = 30'
DRAWN: SDP & BRDT
CHECKED: WF

WESTWOOD RESERVES FINAL PLAT
PHASE 1 A OF PIN: 295-00-00-0036
CITY OF CONWAY, HORRY COUNTY, SOUTH CAROLINA



802 N MAIN STREET
CONWAY, SC 29526
Phone: (843) 488-1040
Email: Conway@bolton-menk.com
www.bolton-menk.com

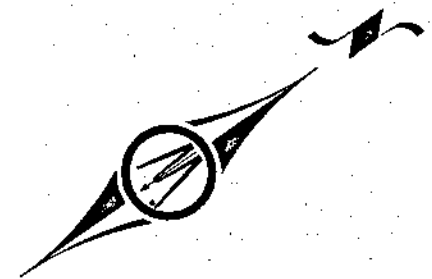
WESTWOOD RESERVES; PHASE 1
PIN: 295-00-00-0036

FOR: CREEKSIDE CUSTOM HOMES LLC

SHEET INDEX OF 4



VICINITY MAP - NTS

SOUTH CAROLINA STATE PLANE
COORDINATES NAD83 (2011)0 40' 80'
GRAPHIC SCALE 1" = 40'

LINE #	BEARING	DISTANCE
L1	N61°59'35"E	2.47'
L2	N61°31'39"E	25.02'
L3	N28°27'49"W	25.01'
L4	N34°37'53"E	20.00'
L5	N55°22'07"W	13.67'
L6	S55°21'38"E	20.00'
L7	N53°54'19"W	20.02'
L8	S84°25'18"E	10.63'
L9	S11°32'55"E	28.63'
L10	S57°26'39"E	13.72'
L11	S34°38'24"W	16.26'
L12	S34°02'21"W	2.52'

LINE #	BEARING	DISTANCE
L13	N34°12'11"E	5.83'
L14	N34°44'27"E	15.21'
L15	S61°28'04"W	4.11'
L16	N61°28'03"E	6.23'
L17	N33°29'34"E	8.18'
L18	N61°28'04"E	49.97'
L19	N61°28'04"E	4.71'
L20	S34°38'24"W	26.26'
L21	S61°28'04"W	4.71'
L22	N55°21'26"W	39.22'
L23	S35°26'26"W	25.07'

CURVE #	RADIUS	LENGTH	TANGENT	BEARING	CHORD	DELTA
C1	12.00'	18.79'	11.94'	N16°29'22"E	16.93'	89°41'36"
C2	122.52'	19.58'	9.81'	N34°46'25"W	19.56'	9°09'31"
C3	245.00'	207.69'	110.55'	N63°43'21"W	201.53'	48°34'17"
C4	645.00'	283.89'	144.28'	N67°55'41"W	281.61'	25°13'06"
C5	55.00'	45.22'	23.98'	S78°35'43"E	43.96'	47°06'33"
C6	295.00'	392.12'	231.13'	N86°32'56"E	363.88'	76°09'28"
C7	12.00'	18.84'	11.99'	N10°23'30"W	16.96'	89°50'06"
C8	12.00'	18.85'	12.00'	S79°38'24"W	16.97'	90°00'00"
C9	4975.00'	52.16'	26.08'	S34°20'22"W	52.16'	0°36'03"
C10	12.00'	18.85'	12.00'	S10°57'39"E	16.97'	90°00'00"
C11	12.00'	18.82'	11.97'	N79°07'12"E	16.95'	89°50'27"
C12	12.00'	18.36'	11.52'	N12°08'15"W	16.62'	87°38'47"
C13	12.00'	18.85'	12.00'	S79°02'21"W	16.97'	90°00'00"
C14	325.00'	21.65'	10.83'	S35°56'50"W	21.64'	3°48'57"
C15	325.00'	69.04'	34.65'	S43°56'27"W	68.91'	12°10'18"
C16	325.00'	64.90'	32.56'	S55°44'50"W	64.79'	11°26'28"
C17	376.32'	87.11'	43.75'	N57°25'37"E	86.91'	13°15'45"
C18	376.32'	86.97'	43.68'	N44°10'29"E	86.78'	13°14'31"
C19	125.00'	4.30'	2.15'	S29°31'00"E	4.29'	1°58'07"
C20	12.00'	18.85'	12.00'	S73°31'56"E	16.97'	90°00'00"
C21	275.00'	98.75'	49.91'	N51°10'52"E	98.22'	20°34'25"
C22	275.00'	32.90'	16.47'	N37°28'00"E	32.88'	6°51'18"
C23	5025.00'	9.08'	4.54'	S34°05'27"W	9.08'	0°06'13"
C24	5025.00'	43.61'	21.80'	N34°23'29"E	43.61'	0°29'50"
C25	12.00'	18.85'	12.00'	N10°21'36"W	16.97'	90°00'00"
C26	5145.00'	44.41'	22.20'	S34°23'33"W	44.41'	0°29'40"
C27	5145.00'	9.54'	4.77'	S34°05'32"W	9.54'	0°06'22"
C28	155.00'	18.54'	9.28'	S37°28'00"W	18.53'	6°51'18"
C29	155.00'	55.66'	28.13'	S51°10'52"W	55.36'	20°34'25"
C30	12.00'	18.85'	12.00'	N79°38'24"E	16.97'	90°00'00"
C31	12.00'	18.85'	12.00'	N10°21'36"W	16.97'	90°00'00"
C32	12.00'	18.86'	12.01'	N79°36'29"E	16.98'	90°03'52"

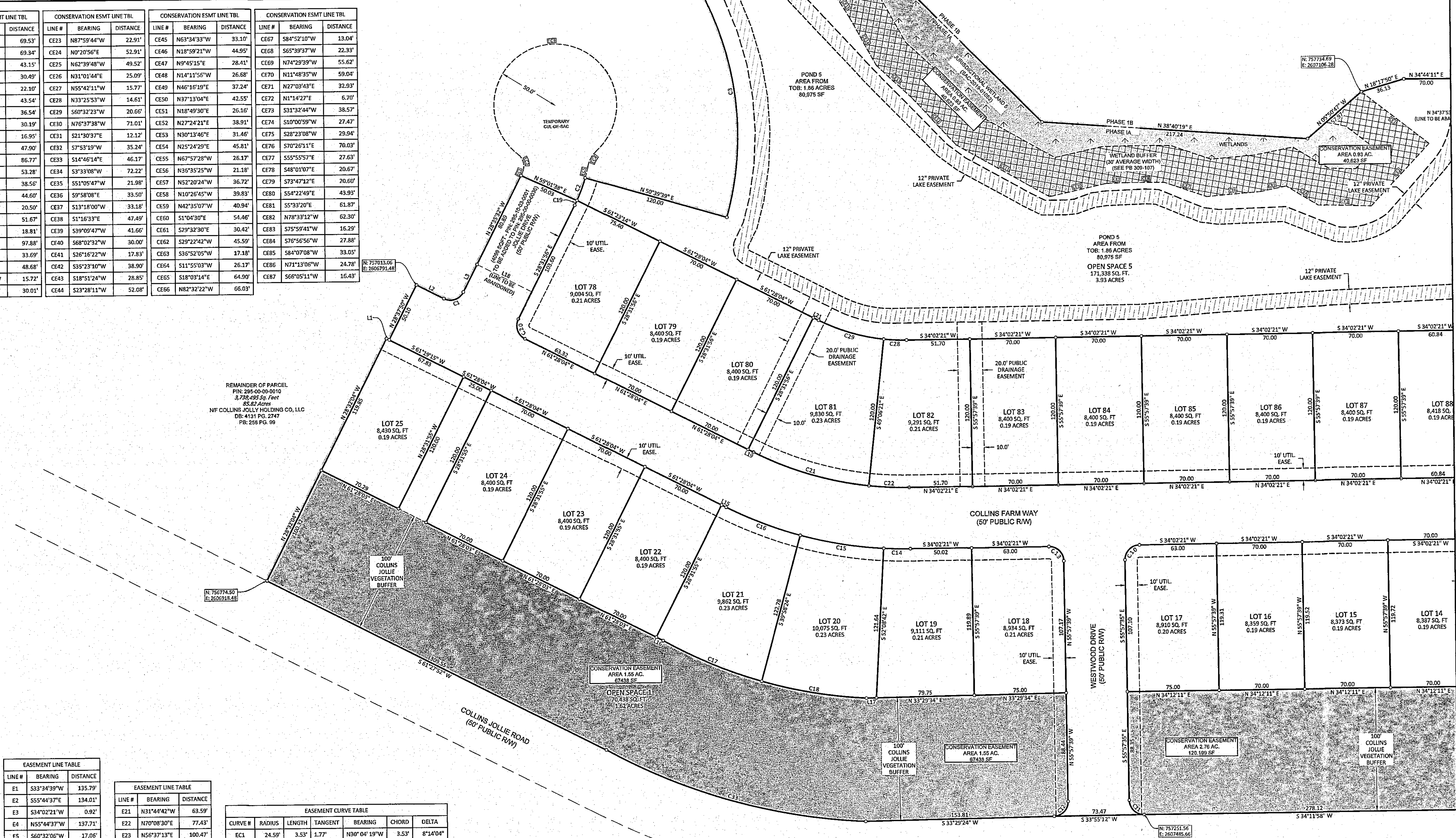
LINE #	BEARING	DISTANCE
E1	S33°34'39"W	135.79'
E2	S55°44'37"E	134.01'
E3	S34°02'21"W	0.92'
E4	N55°44'37"W	137.71'
E5	S60°32'06"W	17.06'
E6	N32°14'28"E	6.84'
E7	N60°32'06"E	4.34'
E8	S24°45'16"E	82.70'
E9	N33°34'39"E	143.65'
E10	S55°21'26"E	20.00'
E11	S34°38'15"W	120.88'
E12	S71°18'57"W	66.92'
E13	N18°41'03"W	25.00'
E14	N71°18'57"E	58.64'
E15	N34°38'13"E	112.58'
E16	N55°21'38"E	5.14'
E17	N55°21'59"W	3.87'
E18	N34°38'13"E	107.10'
E19	N17°00'52"W	18.08'
E20	N55°21'47"W	35.55'

LINE #	BEARING	DISTANCE
E21	N31°44'42"W	63.59'
E22	N70°08'30"E	77.43'
E23	N58°37'13"E	100.47'
E24	S75°35'45"E	178.29'
E25	S0°14'27"E	93.62'
E26	S24°45'16"E	82.70'
E27	S34°38'13"W	123.22'
E28	S55°21'39"E	49.86'
E29	S34°25'09"W	25.08'
E30	N55°21'49"W	44.36'
E31	S23°17'40"W	25.43'
E32	S55°21'20"E	15.14'
E33	S55°21'38"E	9.86'
E34	S17°54'43"W	52.12'
E35	S34°38'13"W	1.68'
E36	S55°21'41"E	3.69'
E37	S55°21'39"E	20.32'

CURVE #	RADIUS	LENGTH	TANGENT	BEARING	CHORD	DELTA
EC1	24.59'	3.53'	1.77'	N30°04'19"W	3.53'	8°14'04"
EC2	12.00'	15.67'	9.18'	N70°14'59"W	14.58'	74°49'40"
EC3	50.00'	244.04'	42.21'	N32°09'45"E	64.51'	279°39'09"
EC4	25.00'	15.59'	8.06'	S25°52'15"E	15.33'	35°49'10"
EC5	125.00'	9.34'	4.67'	S41°35'26"E	9.33'	4°16'47"
EC6	5025.00'	10.00'	5.00'	S34°11'59"W	10.00'	0°06'50"
EC7	5025.00'	9.08'	4.54'	N34°05'27"E	9.08'	0°06'13"
EC8	20.29'	20.66'	11.32'	N2°36'41"E	19.78'	58°19'49"
EC9	12.00'	11.18'	6.03'	N82°02'36"W	10.78'	53°21'41"
EC10	50.00'	250.21'	37.19'	N34°38'13"E	59.68'	286°43'18"
EC11	12.00'	4.91'	2.49'	S13°43'24"E	4.88'	23°28'30"
EC12	12.00'	6.27'	3.21'	S40°24'12"E	6.20'	29°55'07"
EC13	245.00'	226.58'	122.12'	N81°51'26"W	218.59'	52°59'17"

CONSERVATION ESMT LINE TBL	CONSERVATION ESMT LINE TBL	CONSERVATION ESMT LINE TBL	CONSERVATION ESMT LINE TBL
LINE # BEARING DISTANCE	LINE # BEARING DISTANCE	LINE # BEARING DISTANCE	LINE # BEARING DISTANCE
CE1 N72°19'41"E 69.53'	CE23 N87°59'44"W 22.91'	CE45 N63°34'33"W 33.10'	CE67 S84°52'10"W 13.04'
CE2 S12°04'27"E 69.34'	CE24 N0°20'56"E 52.91'	CE46 N18°59'21"W 44.95'	CE68 S65°39'37"W 22.33'
CE3 S36°11'09"W 43.15'	CE25 N62°39'48"W 49.52'	CE47 N9°45'15"E 28.41'	CE69 N74°29'39"W 55.62'
CE4 S65°42'55"W 30.49'	CE26 N31°01'44"E 25.09'	CE48 N14°11'56"W 26.68'	CE70 N11°48'35"W 59.04'
CE5 S23°21'39"W 22.10'	CE27 N55°42'11"W 15.77'	CE49 N46°16'19"E 37.24'	CE71 N27°03'43"E 32.93'
CE6 S29°42'47"W 43.54'	CE28 N33°25'53"W 14.61'	CE50 N37°13'04"E 42.55'	CE72 N1°14'27"E 6.70'
CE7 S53°36'05"W 36.54'	CE29 S60°32'23"W 20.66'	CE51 N18°49'30"E 26.16'	CE73 S31°32'44"W 38.57'
CE8 S34°40'38"W 30.19'	CE30 N76°37'38"W 71.01'	CE52 N27°24'21"E 38.91'	CE74 S10°00'59"W 27.47'
CE9 S33°01'21"W 16.95'	CE31 S21°30'37"E 12.12'	CE53 N30°13'46"E 31.46'	CE75 S28°23'08"W 29.94'
CE10 S21°56'39"W 47.90'	CE32 S7°53'19"W 35.24'	CE54 N25°24'29"E 45.81'	CE76 S70°26'11"E 70.03'
CE11 S63°58'48"W 86.77'	CE33 S14°46'14"E 46.17'	CE55 N67°57'28"W 26.17'	CE77 S55°55'57"E 27.63'
CE12 S61°34'18"W 53.28'	CE34 S3°33'08"W 72.22'	CE56 N30°35'25"W 21.18'	CE78 S48°01'07"E 20.67'
CE13 S77°14'07"W 38.56'	CE35 S51°05'47"W 21.98'	CE57 N52°20'24"W 36.72'	CE79 S73°47'12"E 20.60'
CE14 N84°30'23"W 44.60'	CE36 S9°58'08"E 33.50'	CE58 N10°26'45"W 39.83'	CE80 S54°22'49"E 43.95'
CE15 N87°01'20"W 20.50'	CE37 S13°18'00"W 33.18'	CE59 N42°35'07"W 40.94'	CE81 S5°33'20"E 61.87'
CE16 S68°06'25"W 51.67'	CE38 S1°16'33"E 47.49'	CE60 S1°04'30"E 54.46'	CE82 N78°33'12"W 62.30'
CE17 N3°29'01"W 18.81'	CE39 S39°09'47"W 41.66'	CE61 S29°32'30"E 30.42'	CE83 S75°59'41"W 16.29'
CE18 S83°20'24"W 97.88'	CE40 S68°02'32"W 30.00'	CE62 S29°22'42"W 45.59'	CE84 S76°56'56"W 27.88'
CE19 S43°32'26"W 33.69'	CE41 S26°16'22"W 17.83'	CE63 S36°52'05"W 17.18'	CE85 S84°07'08"W 33.05'
CE20 S83°42'46"W 48.68'	CE42 S35°23'10"W 38.90'	CE64 S11°55'03"W 26.17'	CE86 N71°13'06"W 24.78'
CE21 N83°14'05"W 15.72'	CE43 S18°51'24"W 28.85'	CE65 S18°03'14"E 64.90'	CE87 S66°05'11"W 16.45'
CE22 S49°45'29"W 30.01'	CE44 S23°28'11"W 52.08'	CE66 N82°32'22"W 66.03'	

REMAINDER OF PARCEL
PIN: 295-00-00-0010
3,738.495 Sq. Feet
85.82 Acres
NF COLLINS JOLLIE HOLDING CO, LLC
DB: 4131 PG. 2747
PB: 259 PG. 99



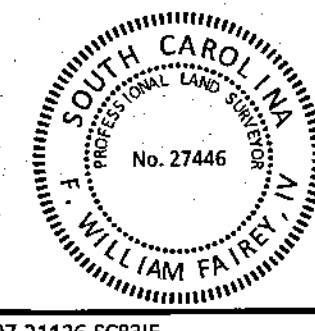
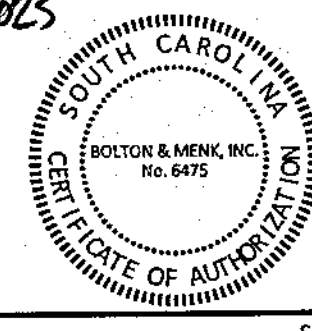
SURVEYOR'S CERTIFICATION

I hereby state that to the best of my professional knowledge, information, and belief, the survey shown hereon was made in accordance with the requirements of the Standards of Practice Manual for Surveying in South Carolina, and meets or exceeds the requirements for a Class A survey as specified therein.

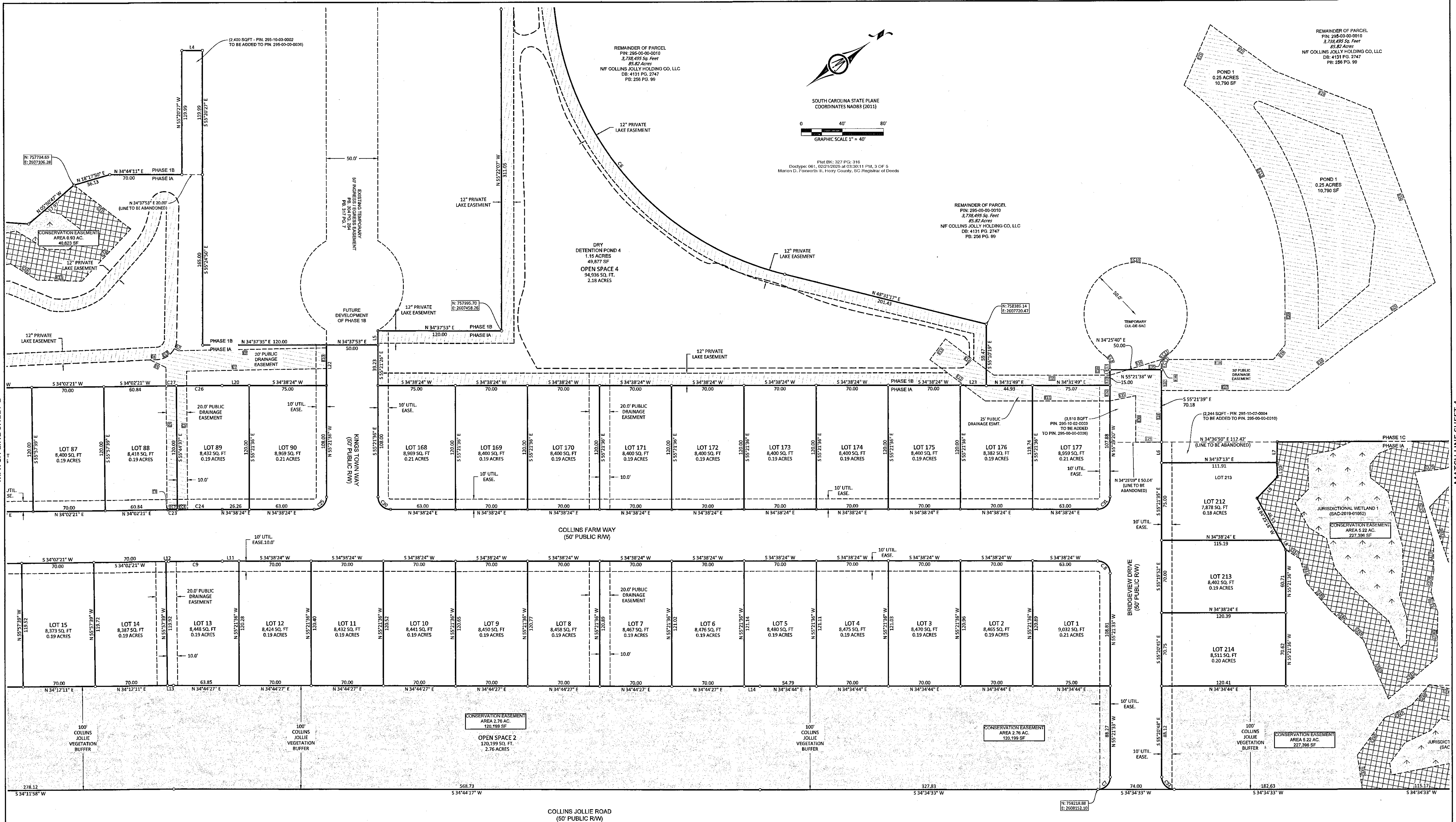
F. William Fairley IV
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SCPLS No. 27446
Date: 2/5/25

Printed: 05/11/2025 at 03:35:11 PM, 2 OF 5
Marilyn D. Foxworth III, Horry County, SC Registrar of Deeds

APPROVED FOR
RECORDING
DATE: 2-7-2025



DATE: 11/13/2024	WESTWOOD RESERVES FINAL PLAT PHASE 1 A OF PIN: 295-00-00-0036 CITY OF CONWAY, HORRY COUNTY, SOUTH CAROLINA	WESTWOOD RESERVES, PHASE 1 PIN: 295-00-00-0036
SCALE: 1" = 40'	802 N MAIN STREET CONWAY, SC 29526 Phone: (843) 488-1040 Email: Conway@bolton-menk.com www.bolton-menk.com	FOR: CREEKSIDE CUSTOM HOMES LLC
DRAWN: SDP	BOLTON & MENK	
CHECKED: WF		
JOB NUMBER: 2007-21136	FIELD BOOK:	



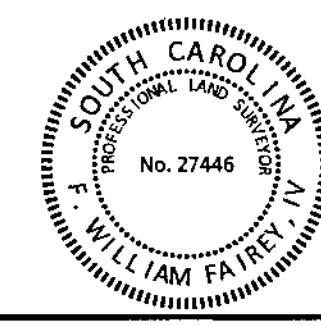
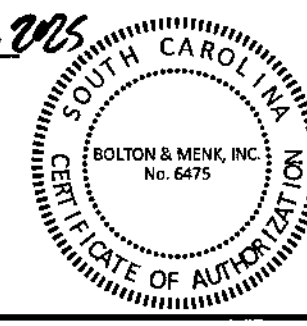
SURVEYOR'S CERTIFICATION

I hereby state that to the best of my professional knowledge, information, and belief, the survey shown hereon was made in accordance with the requirements of the Standards of Practice Manual for Surveying in South Carolina, and meets or exceeds the requirements for a Class A survey as specified therein.

[Signature]
F. William Bolton, Jr.
SCPLS No. 27446
Date: 2/5/25

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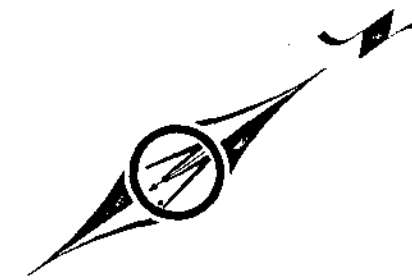
APPROVED FOR
RECORDING
2-2-2025
Planning Department



DATE: 11/11/2024
SCALE: 1" = 40'
SDP
CHECKED: WF

WESTWOOD RESERVES FINAL PLAT
PHASE 1 A OF PIN: 295-00-00-0036
CITY OF CONWAY, HORRY COUNTY, SOUTH CAROLINA
BOLTON & MENK
802 N MAIN STREET
CONWAY, SC 29526
Phone: (843) 468-1040
Email: Conway@bolton-menk.com
www.bolton-menk.com

WESTWOOD RESERVES; PHASE 1
PIN: 295-00-00-0036
FOR: CREEKSIDE CUSTOM HOMES LLC



SOUTH CAROLINA STATE PLANE
COORDINATES NAD83 (2011)

0 40' 80'
GRAPHIC SCALE 1" = 40'

Plot B&C, 327 PG. 317
Description: 061, 02/25/2025 at 03:30:11 PM, 4 C&P, 8
Marion D. Fawcett III, Horry County, SC Registrar of Deeds

N: 757348.07
E: 2606517.10

REMAINDER OF PARCEL
PIN: 295-00-00-0010
3,738.495 Sq. Feet
85.82 Acres
M/F COLLINS JOLLY HOLDING CO, LLC
DB: 4131 PG. 2747
PB: 258 PG. 99

REMAINDER OF PARCEL
PIN: 295-00-00-0010
3,738.495 Sq. Feet
85.82 Acres
M/F COLLINS JOLLY HOLDING CO, LLC
DB: 4131 PG. 2747
PB: 258 PG. 99

POND 5
AREA FROM
TOS: 1.86 ACRES
80,875 SF

POND 5
AREA FROM
TOS: 1.86 ACRES
80,875 SF
OPEN SPACE 5
171,338 SQ. FT.
3.93 ACRES

N: 757734.69
E: 2607106.28

(2,400 SQ. FT. - PIN: 295-18-03-0002
TO BE ADDED TO PIN: 295-00-00-0036)

N: 758278.29
E: 2606941.35

12" PRIVATE
LAKE EASEMENT

DRY
DETENTION POND 3
0.24 ACRES
10,411 SF

12" PRIVATE
LAKE EASEMENT

12" PRIVATE
LAKE EASEMENT

DRY
DETENTION POND 4
1.15 ACRES
49,877 SF
OPEN SPACE 4
94,936 SQ. FT.
2.18 ACRES

12" PRIVATE
LAKE EASEMENT

12" PRIVATE
LAKE EASEMENT

SURVEYOR'S CERTIFICATION

I hereby state that to the best of my professional knowledge, information, and belief, the survey shown hereon was made in accordance with the requirements of the Standards of Practice Manual for Surveying in South Carolina, and meets or exceeds the requirements for a Class A survey as specified therein.

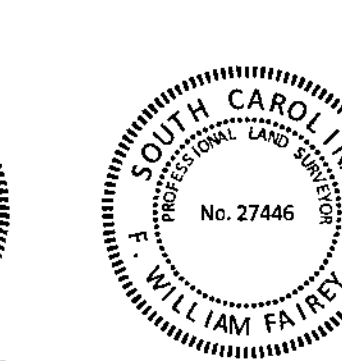
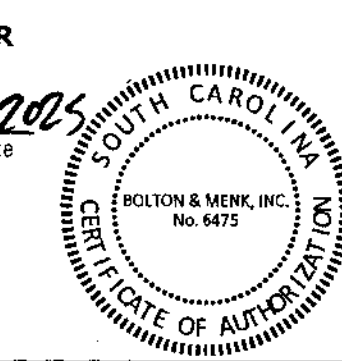
DATE: 2/5/25
F. William Farley IV
SCPLS No. 27446
Date

MATCH LINE SHEET 1

MATCH LINE SHEET 2

SHEET 3 OF 4

APPROVED FOR
RECORDING
2-21-2025
Planning Department Date



DATE:
11/11/2024
SCALE:
1" = 40'
DRAWN:
SDP
CHECKED:
WF

WESTWOOD RESERVES FINAL PLAT
PHASE 1 A OF PIN: 295-00-00-0036
CITY OF CONWAY, HORRY COUNTY, SOUTH CAROLINA



802 N MAIN STREET
CONWAY, SC 29526
Phone: (843) 688-1040
Email: Conway@bolton-menk.com
www.bolton-menk.com

WESTWOOD RESERVES; PHASE 1
PIN: 295-00-00-0036

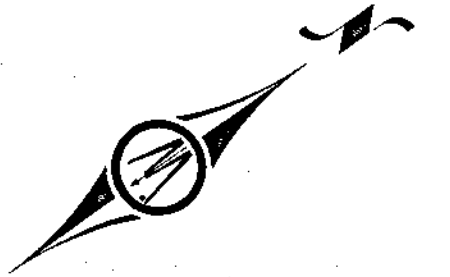
FOR: CREEKSIDE CUSTOM HOMES LLC

JOB NUMBER: 2007-21136

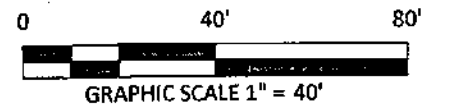
FIELD BOOK:

SD6-2007-21136-SC83IF

H:\DDC\PROJECTS\461640\CONWAY\122034E_WESTWOOD_PH1A.dwg 1/30/2025 12:54 PM



SOUTH CAROLINA STATE PLANE
COORDINATES NAD83 (2011)

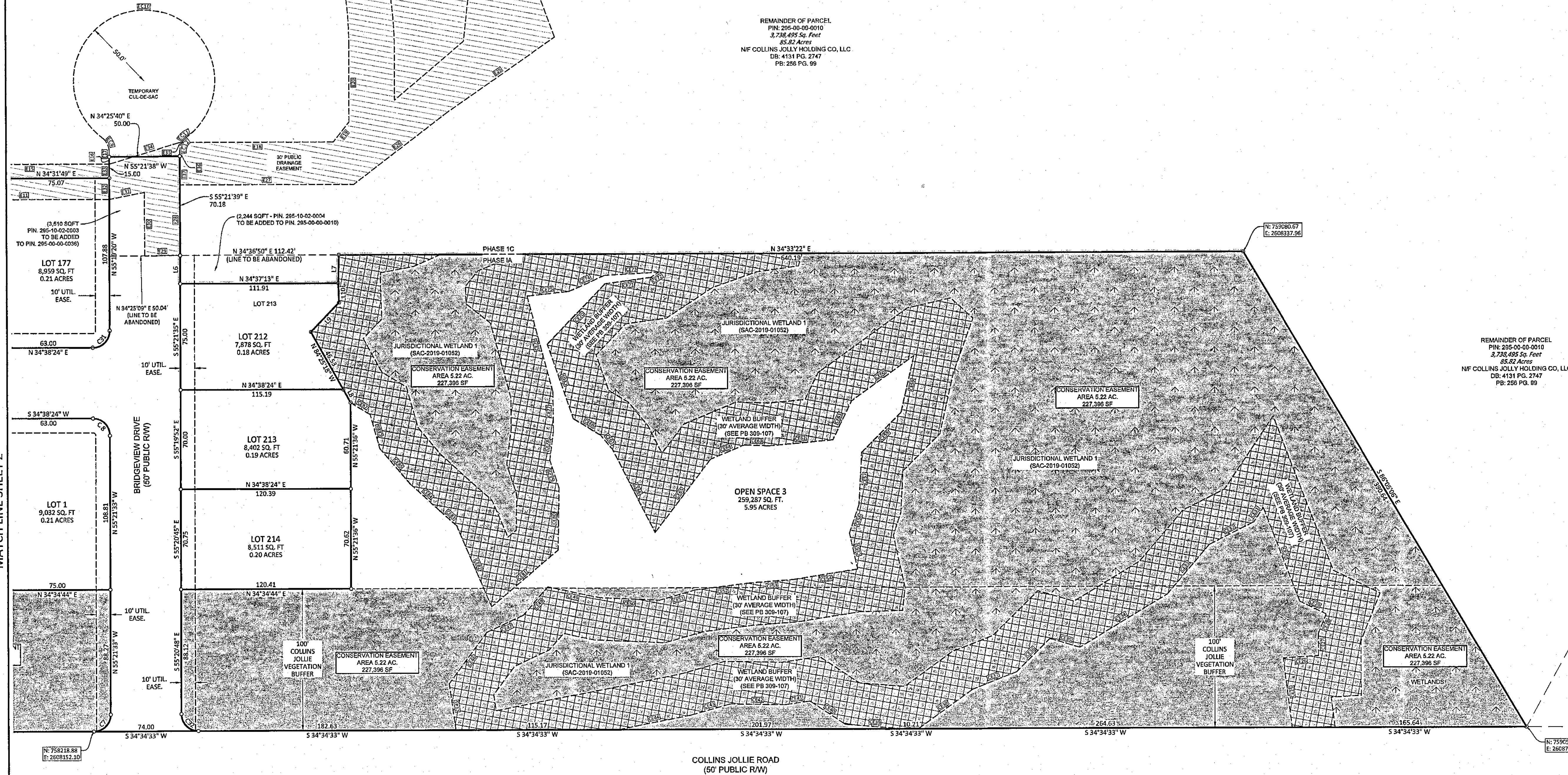


Plot B/C: 327 PG. 318
DocType: 061, 02/21/2025 at 03:30:11 PM, 5 OF 5
Marion D. Foxworth III, Horry County, SC Registrar of Deeds

REMAINDER OF PARCEL
PIN: 295-00-00-0010
3,728,495 Sq. Feet
85.82 Acres
NF COLLINS JOLLY HOLDING CO, LLC
DB: 4131 PG. 2747
PB: 256 PG. 99

REMAINDER OF PARCEL
PIN: 295-00-00-0010
3,728,495 Sq. Feet
85.82 Acres
NF COLLINS JOLLY HOLDING CO, LLC
DB: 4131 PG. 2747
PB: 256 PG. 99

NEW PARCEL A
PIN: 295-00-00-0035
NF LENNAR CAROLINAS LLC
DB: 4601 PG. 2739
PB: 256 PG. 99



MATCH LINE SHEET 2

SURVEYOR'S CERTIFICATION

I hereby state that to the best of my professional knowledge, information, and belief, the survey shown hereon was made in accordance with the requirements of the Standards of Practice Manual for Surveying in South Carolina, and meets or exceeds the requirements for a Class A survey as specified therein.

 2/5/25
F. William Fairley, Jr. SCPLS No. 27446 Date
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APPROVED FOR
RECORDING
 2-21-2025
Planning Department Date



DATE: 11/11/2024	WESTWOOD RESERVES FINAL PLAT PHASE 1 A OF PIN: 295-00-00-0036 CITY OF CONWAY, HORRY COUNTY, SOUTH CAROLINA	WESTWOOD RESERVES; PHASE 1 PIN: 295-00-00-0036
SCALE: 1" = 40'		
DRAWN: SDP	 BOLTON & MENK 802 N MAIN STREET CONWAY, SC 29526 Phone: (843) 468-1040 Email: Conway@bolton-menk.com www.bolton-menk.com	FOR: CREEKSIDE CUSTOM HOMES LLC
CHECKED: WF		

JOB NUMBER: 2007-21136

FIELD BOOK:

SDB-2007-21136-SC831F

November 17, 2025

CITY OF CONWAY
CITY COUNCIL MEETING
CONWAY CITY HALL
229 MAIN STREET, CONWAY
MONDAY, NOVEMBER 17, 2025

PRESENT: Mayor Barbara Jo Blain, Mayor Pro Tem William Goldfinch, Amanda Butler, Julie Hardwick, Beth Helms, Justin Jordan and Larry White.

STAFF: Adam Emrick, City Administrator; Mary Catherine Hyman, Deputy City Administrator; John Rogers, Deputy City Administrator; June Wood, Public Information Officer; Jeff Leveille, Technology Services Director; Jason Perzan, Deputy Fire Chief; Reggie Jenerette, Solid Waste Director; Robert Cooper, Construction Services Director; Becky Graham, Human Resource Deputy Director; Ted Dudley, Public Utilities Director; Jessica Hucks, Planning and Development Director; Braxton Fleming, Public Works Deputy Director; Dale Long, Police Chief; Allison Williams, Finance Director; Timmy Williams, Hospitality and Beautification Director; Kayla Fleming, Municipal Judge; Ashley Smith, Recreation Director; Kelly Thomas, Deputy PIO; David Crotts, Procurement and Inventory Division Chief; Rosanne Date, Grants and Special Projects Division Chief; and Alicia Shelley, City Clerk.

OTHERS: There were approximately 50 others in attendance.

CALL TO ORDER: Mayor Blain called the meeting to order. Blain welcomed the Coastal LIFE students in attendance.

INVOCATION/PLEDGE OF ALLEGIANCE: White gave the invocation and led the Pledge of Allegiance.

The requirements for posting notice of this meeting under South Carolina's Freedom of Information Act (FOIA) were met.

CONSENT AGENDA:

- A. Approval of a Resolution Honoring Coach James Pinckney for his service to the Conway Parks and Recreation Department.**
- B. Approval of a Request from applicant, Drew McElveen, to certify the property at 1311 Ninth Avenue (PIN 338-14-03-0042) as an eligible property for a special tax assessment under the Preservation Tax Incentive Program.**
- C. Approval of Intergovernmental Agreement between the City of Conway and Horry County for the Development of the Horry County Master Trail Plan.**
- D. Approval of November 3, 2025 Council Meeting Minutes**

APPROVAL OF CONSENT AGENDA: **Motion:** Goldfinch made a motion, seconded by Butler to approve the November 17, 2025 consent agenda. **Vote:** Unanimous. Motion carried.

SPECIAL PRESENTATION:

- A. Presentation of a Proclamation Recognizing Pancreatic Cancer Day** – Blain read the Proclamation recognizing Pancreatic Cancer Day on November 20, 2025.
- B. Presentation of a Resolution Honoring Coach James Pinckney for his service to the Conway Parks and Recreation Department** – Blain presented James Pinckney, while surrounded by his family and friends, a Resolution in honor of his 30 years of service to the Conway Parks and Recreation Department.
- C. Presentation of Employee of the Month for November 2025 – Public Works** – Dudley presented Jamie Givens in the Public Utilities Department with the November 2025 Employee of the Month award.

FIRST READING:

- A. First Reading of Ordinance #ZA2025-12-01 (C) to rezone approximately 0.39+/- acres of property located at 4 Clemson Road (PIN 383-15-02-0010), from the Horry County Residential, no mobile homes allowed (SF-10) district to the City of Conway Low/ Medium-Density Residential (R-1) district upon annexation.** Hucks stated that council approved first reading of the annexation of this property at their October 6 meeting. This property is within the Coastal Heights subdivision, at the corner of Singleton Ridge Road. Several lots within this subdivision have been annexed over the years because of the existing homes being sold and new accounts having to be set up to receive utility services. The city's future land use map identifies the property as R-1. Planning Commission held a public hearing on the request at their November 6 meeting and recommended approval. Hucks said that staff also recommended approval of the proposed zoning to R-1 upon annexation.

Motion: Goldfinch made a motion, seconded by Helms, to approve first reading of Ordinance #ZA2025-12-01 (C) rezoning the property located at 4 Clemson Road to R-1.

Vote: Unanimous. Motion carried.

- B. First Reading of Ordinance #ZA2025-12-01 (D) to rezone approximately 0.35+/- acres of property located at 1328 Cottage Lane and 1636 Church Street (PINs 338-10-2-0009 & 338-10-02-0008), from the City of Conway Low/ Medium-Density Residential (R-1) district to the City of Conway Highway Commercial (HC) district.** Hucks stated that this is a request to rezone two parcels located at the corner of Church Street and Cottage Lane. Both parcels are currently zoned R-1. One of the parcels is where a title loan business had been located for several years and the other parcel is vacant, except for a billboard. The city's future land use map identifies the properties as HC and the requested zoning is also HC, for purposes of commercial development. Planning Commission held a public hearing

and recommended approval to rezone the properties to HC. Hucks said that staff also recommends approval to rezone both parcels to HC.

Motion: White made a motion, seconded by Jordan, to approve first reading of Ordinance #ZA2025-12-01 (D) rezoning the properties located at 1328 Cottage Lane and 1636 Church Street to HC. **Vote:** Unanimous. Motion carried.

- C. First Reading of Ordinance #ZA2026-01-20 (C) to annex approximately 0.4+/- acres of property located at 5007 Presbyterian Drive (PIN 383-08-02-0010).** Hucks stated that this property is within the College Park subdivision, and annexation is now being required due to a change of name in ownership of the property, in accordance with restrictive covenants that were recorded in 1998 as well as a condition of receiving city utilities. The property contains a single-family dwelling. Several other properties have been annexed over the last several years, with the adjacent parcel annexed in 2007, with sixteen other properties within College Park annexed as R-1. The applicant did not disclose whether the residence was owner-occupied or a rental, however, the property owner's legal residence is a different address from this property. If first reading of this annexation is approved, Planning Commission will hold a public hearing on the request at their December 11 meeting. Hucks said that staff recommended first reading of this ordinance to annex the property.

Motion: Hardwick made a motion, seconded by Butler, to approve first reading of Ordinance #ZA2026-01-20 (C) annexing the property at 5007 Presbyterian Drive. **Vote:** Unanimous. Motion carried.

- D. First Reading of Ordinance #ZA2026-01-20 (D) to annex approximately 16.6+/- acres of property located on Ole Alston Ave (PIN 369-00-00-0031).** Hucks stated that this property is currently vacant, but annexation is being requested in accordance with the city's requirements to connect to city utilities, as there is likely pending development of this property. There have been two previous requests for annexation on Ole Alston Avenue since 2022, both of which were disapproved by Council due to the condition of the roadway. The existing roadway is an unimproved county road which dead ends shortly past this property, so there would not be an appropriate location for sanitation or emergency vehicles to turn around, nor does the road meet the minimum city standards for roadways. Hucks said that for this reason, and because previous requests for annexation were denied, staff recommended disapproval.

Motion: Blain made a motion, seconded by Helms, to disapprove Ordinance #ZA2026-01-20 (D) for annexation of the property located on Ole Alston Avenue. **Vote:** Unanimous. Motion carried.

- E. First Reading of Ordinance #ZA2026-01-20 (E) to annex approximately 0.37+/- acres of property located at 801 Donald Street (PIN 369-12-04-0002).** Hucks stated that annexation of this property is being requested due to a change in ownership of the property and a new utility account in the name of the property's personal representative, according to Probate documentation that was submitted in conjunction with the

annexation. There have been restrictive covenants on file for this property since 1987. The property contains a single-family residence. There have been eleven other properties in the neighborhood that have been annexed, with the neighboring property annexed in 2023. Should first reading of the annexation be approved, Planning Commission will hold a public hearing on the proposed zoning of the property at their December 11 meeting. Hucks said that staff recommended approval of first reading to annex this parcel.

Motion: Jordan made a motion, seconded by Hardwick, to approve first reading of Ordinance #ZA2026-01-20 (E) annexing the property at 801 Donald Street. **Vote:** Unanimous. Motion carried.

F. First Reading of Ordinance #2025-12-01 (E) amending the Business License Ordinance of the City of Conway to update the Class Schedule as required by Act 176 of 2020. Rogers stated that this is a housekeeping item and that state law requires that by December 31 of each year, all cities collecting business license revenue under the state's Standardization Act, must update their business license ordinance to reflect updates as recommended by the Municipal Association of South Carolina.

Motion: Blain made a motion, seconded by Goldfinch, to approve first reading of Ordinance #2025-12-01 (E) amending the Business License Ordinance to update the Class Schedule **Vote:** Unanimous. Motion carried.

CONSIDERATION:

Consideration of Award of 2025-26 Economic Development Grant – Rogers stated that on April 8 the city launched its sixth annual Economic Development Grant program to support local growth through innovative programs, events, and vendors. Applications closed May 12 with \$150,000 available. On June 16 Council awarded \$107,530 across three recipients, leaving \$42,470 remaining. Coastal Carolina University has requested \$42,000 to support its Banana Ball event, a two-day program scheduled for March 28-29, 2026 at Spring Brooks Stadium, in partnership with the City of Conway. Rogers said that staff recommended partnering with CCU for the Banana Ball event in the amount of \$42,000.

Motion: Helms made a motion, seconded by Blain, to approve staff's recommendation.

Goldfinch had concerns with the funds coming from the general fund and asked staff to find the money in hospitality funds. Emrick said that staff would find the amount in the hospitality funds account.

Amended Motion: Helms amended her motion, seconded by Blain, to approve the requested funding from hospitality funds for CCU's Banana Ball event. **Vote:** Unanimous. Motion carried.

PUBLIC INPUT:

- Jimmy Hammond spoke to council regarding the retiree's health insurance.

CITY ADMINISTRATOR'S REPORT:

Emrick informed Council of the following:

- Commended BooJangles on Church Street in October. In the last few days, they have been rolling out BoJingles, their Christmas version of BooJangles. This BoJangles was the #1 BoJangles store in the state during October. It was the #8 store in the chain nationwide out of nearly 1000 stores. Felicia Tracy, the general manager of Conway's BoJangles, tied for the crown of "best of the best" GMs in this year's competition.
- Invited all to drop in for Chief Hendrick's Retirement tomorrow from 1 – 3 p.m. at 196 Laurel Street.
- The ribbon cutting for the new mural beside Stella's Ice Cream is Wednesday at 2 p.m. Special thanks to Conway Downtown Alive and Coastal Carolina University for another fantastic collaboration and colorful addition to our downtown.
- Thanksgiving is next week, and staff will decorate the city Christmas tree after the Thanksgiving holiday is over, just in time for the city's big Christmas Tree Lighting festivities on December 4. Staff have begun sharing the message that Main Street will be closed for a large portion of the day.
- The Christmas Carnival will be back this year, bigger and better than last year. With the acquisition of the former steam plant site from Santee Cooper, our Recreation Department has added additional length to the Celebration of Lights. Elves from all departments have been cobbling away at bringing a bigger, brighter Christmas than ever before to Conway.
- At the next Council meeting, the second and final reading of the creation of the city's TIF District will be held. The School Board is meeting tonight as well, and John Rogers and Gary Pope, attorney, will be attending to answer any questions about the TIF.
- There are two workshop items tonight, a discussion of private fire hydrant maintenance responsibilities and the potential naming of a field at the Sports and Fitness Center; and multiple Executive Session items.
- Next is a report from Ted Dudley from our Public Utilities Department.

White recommended a proclamation be given to BoJangles for their participation in Halloween and Christmas. Emrick said staff would prepare after Christmas.

White suggested that the Christmas tree lighting be moved over where the haunted house was located. Emrick said that the carnival would be set up in that location again this year.

Blain mentioned that water testing companies are going door to door. Emrick responded with the following: (A) The city has had reports over the years of various companies going door to door. Some present themselves in a way so as to confuse residents that they represent the city. Some are less dubious, but no less illegal. Door-to-door sales are illegal in the City of Conway. If someone comes to your door trying to sell something, they've already broken the law. Call the police and report it and do not buy anything from them. (B) The city's water is purchased from Grand Strand Water and Sewer Authority. It is tested and approved by a variety of state and federal government agencies. There's nothing wrong with getting your water tested, with buying fancy filtration systems. They may make your clean water even cleaner. Emrick said he recommends doing research on your own and going from there. (C) Prior to the meeting

November 17, 2025

tonight, the city police department reached out to one of the companies that is actively going door to door, advising them that they are breaking the law. If we can catch them actively in the process of doing so, we can act more aggressively in helping end this practice.

Dudley gave Council a yearly update on the Public Utilities Department.

COUNCIL INPUT:

Helms

- Thanked staff for everything.
- Said that she is looking forward to Christmas and volunteering.

Butler

- Asked that at the Tree Lighting Ceremony will the deaf and others with disabilities have a certain area to go and will an interpreter be there. Emrick said that an interpreter will attend and staff will try to make accommodations on the Main Street side of the stage and put the message out through public messaging.
- Said that she received a letter from a resident asking that the city plant more native plants and pollinators downtown.

White

- Asked to plant more native around town, not just downtown.

Goldfinch

- Said that he heard the Athletic Director at Conway High School speak and later learned that there was a change in leadership at the school however even though Conway High School is not the city's wheelhouse but the success of any high school program in a small town is key as it builds moral. Goldfinch thinks if council can support the school that the city can reap the reward and benefits as people looking to move here look at the schools. Goldfinch said if the city can support them then he thinks it will go a long way in the quality of life for those in Conway.

Jordan

- Thanked the 4 candidates that ran for city council for running a clean campaign.
- Asked staff to publicize more leading up to the city election and also following the election to post the results.

Hardwick

- Said that she agreed with Goldfinch in that council needs to look at all the schools in Conway to be more energized.
- Commended the candidates saying that they all did a great job.
- Talked about giving \$42,000 to Savannah Bananas and said that it will bring more people into Conway. She then read their 2026 schedule announcing much larger towns that they will be in. Hardwick said that she knows we are spending hospitality tax money very wisely and that this is an investment that will benefit Coastal and the City of Conway.
- Thanked staff for everything.

Blain

- Said that she is proud to be part of Conway.

WORKSHOP:

Private Fire Hydrant Maintenance Responsibility – Dudley explained to Council that the city has been maintaining private fire hydrants for years, which is costly and has lots of liabilities on the city. Dudley recommends that staff send out letters to these private companies saying that the city will no longer maintain these private fire hydrants.

There was some discussion regarding fire extinguishers versus fire hydrants and who is responsible. Parker and Perzan stated that the Fire Department would be responsible for making sure that they are complaint, but the private owner would bear the maintenance and expenses.

Dudley said he thinks there are approximately 50-60 private fire hydrants that are commercial related, not residential.

Council gave staff the go ahead with getting a letter prepared to send out to the private fire hydrant owners regarding this matter.

Changing of Field 2 Name at the Recreation Department to James Pickney – Smith told council that the the Recreation Department tries to recognize students and athletes. He said that naming of the fields is one way and he gave examples, Billy Gardner, Pete Wilkes and Ken Senn. Smith now recommends naming Field 2 to the James Pinckney Field.

Council approved staff to move forward with the naming of Field 2.

EXECUTIVE SESSION: Motion: Goldfinch made a motion, seconded by Jordan, to enter into Executive Session for the following: **(A) Discussion on Contractual Matters Incident to Retirees Health Insurance [pursuant to SC Code §30-4-70 (A) (2)]; (B) Discussion of Employment of an Employee in the Fire Department [pursuant to SC Code §30-4-70 (A) (1)]; (C) Discussion of Employment of an Employee in the Fleet Maintenance Department [pursuant to SC Code §30-4-70 (A) (1)]; (D) Discussion of an Economic Development Opportunity named Project Smokestacks [pursuant to SC Code §30-4-70 (A) (5)]; and (E) Discussion regarding Potential Acquisition of Property [pursuant to SC Code §30-4-70 (A) (2)]**

RECONVENE FROM EXECUTIVE SESSION: Motion: Goldfinch made a motion, seconded by Jordan to leave Executive Session. **Vote:** Unanimous. Motion carried.

POSSIBLE ACTION ON MATTERS DISCUSSED IN EXECUTIVE SESSION: Motion: Goldfinch made a motion, seconded by Blain authorizing the administrator to purchase tax sale property. **Vote:** Unanimous. Motion carried.

November 17, 2025

ADJOURNMENT: Motion: Goldfinch made a motion, seconded by Hardwick, to adjourn the meeting. **Vote:** Unanimous. Motion carried.

APPROVAL OF MINUTES: Minutes approved by City Council this 1 day of December, 2025.

Alicia Shelley, City Clerk

DATE: DECEMBER 1, 2025
ITEM: IV.A.

Recognition of 2025 Artist of the City of Conway Christmas Card Contest

DATE: DECEMBER 1, 2025
ITEM: IV.B.

ISSUE:

Recognition of the 2024 C.P. Quattlebaum Design Awards recipients.

BACKGROUND:

On May 24, 1999, City Council passed Ordinance #99-05-24 (A) establishing the C.P. Quattlebaum Annual Design Awards. This ordinance empowered the Community Appearance Board to select recipients of this award.

The following is a list of the recipients of the 2024 Quattlebaum awards:

Outstanding restoration of a non-residential building

- Mercy Baptist Church- 2805 Fourth Ave (PIN # 368-07-04-0042)

Outstanding new construction of a residential building

- 1215 Grebe Ct (PIN # 384-08-04-0011)
- 1109 Whooping Crane (PIN # 384-09-01-0033)

Outstanding signage project

- 909 Fourth Ave- Palmetto Taps (PIN # 367-01-01-0065)
- 1102 Blueback Herring Way- Collins Walk Subdivision Sign (PIN # 337-04-04-0075)

Outstanding contribution to quality development, restoration, landscape or design by an organization or individual.

- SOS Health Care- Oak Tree Farm site Development (PIN # 338-01-04-0012)

RECOMMENDATION:

Recognize the recipients of the 2024 C.P. Quattlebaum Design Awards.

DATE: DECEMBER 1, 2025
ITEM: IV.C.

Presentation of Employee of the Month for December 2025 – Public Safety

DATE: DECEMBER 1, 2025
ITEM: IV.D.

Presentation of November 2025 Longevity Awards:

- 5 Years – Covell Moore, Recreation
- 5 Years - Charlie Mathews, Public Utilities
- 10 Years – Glenn “David” Crotts Jr., Finance
- 20 Years – Christopher Weatherford, Public Utilities
- 20 Years – Jamie Elliott, Public Utilities
- 25 Years – Timothy Williams, Hospitality & Beautification



STAFF REPORT

Hwy 701 N. / N. Main St. (Special Presentation)

COUNCIL MTG DATE: December 1, 2025	AGENDA ITEM: IV.E.
ORDINANCE: N/A	AGENDA SECTION: <i>Special Presentation</i>
ISSUE: Discussion of a request to rezone approximately 0.44+/- acres of property located on Hwy 701 N / Main St from the Low/Medium-Density Residential (R-1) district to the Highway Commercial (HC) district.	
APPLICANT(S): Joey Singleton	PIN(s): 325-13-01-0013
CURRENT ZONING: Low/Medium Density Residential (R-1)	PROPOSED ZONING: Highway Commercial (HC)
BACKGROUND: The applicant submitted a rezoning application on November 5th for potential future development of the site. The property is currently zoned Low/Medium Density Residential (R-1) and is vacant. The request is in compliance with our Future land use map as it is identified as Highway Commercial (HC) and surrounding uses are also commercial in nature with the exception of one residential home adjacent to the subject property.	
SURROUNDING USES/ZONING: The subject property is surrounded by parcels zoned Highway Commercial (HC) within the City of Conway with residential R-1 in the rear abutting the Ivy Glen Subdivision. Adjacent uses include a single family residences in the rear and side, retail sales in a strip center one parcel down and the restaurant Sam's Southern Eatery, each zoned HC within the City limits.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's Future Land Use Map designates the area as Highway Commercial (HC). <i>The intent of the HC District is to provide compatible locations to serve the automobile oriented commercial activities in harmony with major highway developments, reduce traffic congestion and to enhance the aesthetic atmosphere of the city.</i>	
PLANNING COMMISSION RECOMMENDATION (and public hearing): Planning Commission will hold the public hearing on this request at their January 8th meeting, after which their recommendation will be forwarded to City Council for first reading.	
TRC RECOMMENDATION / COMMENTS (if applicable): None	
ATTACHMENTS: GIS Maps; Application	

Legend



PARCELS

COLUMBIA DR

PATRICIA CT

PIN #: 325-13-01-0013

MAIN ST



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



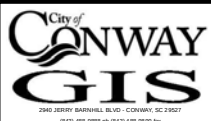
PIN #: 325-13-01-0013
TMS #: 123-02-01-022
MAIN ST
(P25-0437)



Legend



PARCELS



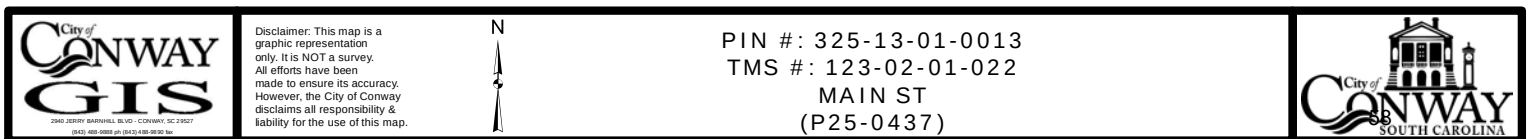
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PIN #: 325-13-01-0013
TMS #: 123-02-01-022
MAIN ST
(P25-0437)

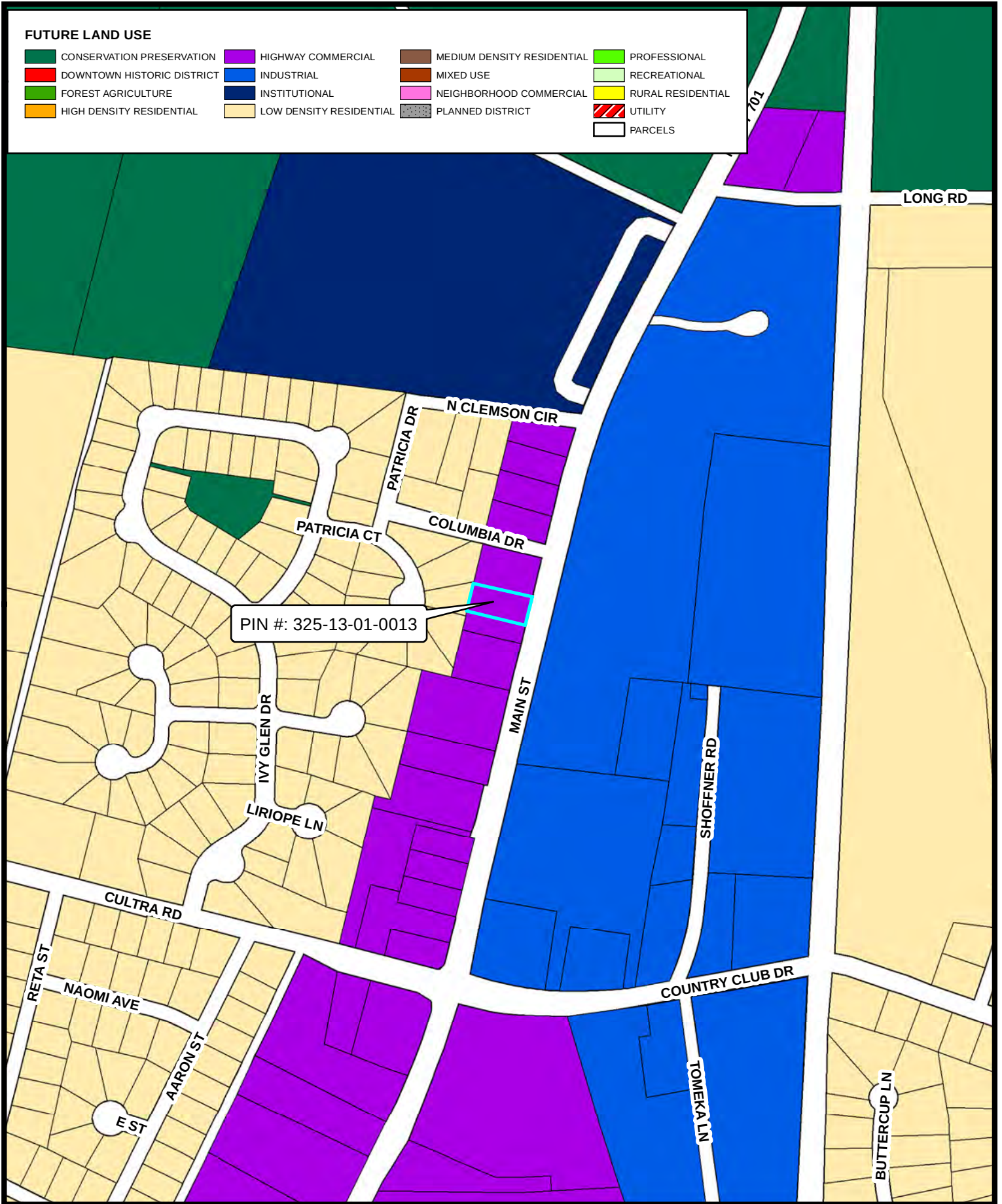


	RA		R3		HC		FA		MU
	RR		R4		CC		CP		MM
	R		P		CBD		WRD1		IC
	R1		IN		LI		WRD2		COUNTY ZONING
	R2		NC		HI		PD		PARCELS



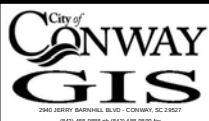
FUTURE LAND USE

 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS



REVISED 2019 FLOOD ZONES

-  0.2 PCT ANNUAL CHANCE FLOOD HAZARD
-  A
-  AE
-  VE
-  PARCELS



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 325-13-01-0013
TMS #: 123-02-01-022
MAIN ST
(P25-0437)





Application for Zoning Map Amendment

Staff Use Only

Received: _____

BS&A #: _____

PROPERTY INFORMATION:

LOCATION: _____ ADDRESS: Hwy 701 N

PIN(s): 32513010013 ACREAGE: 0.44

CURRENT ZONING CLASSIFICATION: R-1

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: HC

REQUESTED ZONING CLASSIFICATION: HC

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☐ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☐ FLOOD ZONE / FLOOD WAY ☐ WETLANDS ☐ EASEMENTS ☒ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: JOEY Singleton

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from applicant):

NAME(S): _____

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☐ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

JOEY Singleton
Print

[Signature]
Signature

NOV 5, 2025
Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.

DATE: DECEMBER 1, 2025
ITEM: V.

ISSUE:

Second reading of an ordinance providing for the establishment of the Riverfront Downtown Redevelopment Project Area, the approval of the Riverfront and Downtown Redevelopment Plan, and financing of redevelopment projects, and other matters related thereto.

BACKGROUND:

Over the last few years, the City of Conway has been investing in its core downtown area, both resulting from and leading to more activities and higher quality of life for residents and visitors. This has led to increased issues with parking and a greater strain on City resources. It has also highlighted the need to catalyze redevelopment of the areas surrounding the downtown core.

This area has seen little development over the last few decades and much of it is publicly held land. In addition to this, the City has recently taken possession of the former Grainger Steam Plant site from Santee Cooper. This presents the opportunity to create recreational opportunities that will be transformative to Conway and its downtown.

The best mechanism for solving each of these problems and harnessing these opportunities is the establishment of a Tax Increment Financing (TIF) district in the aforementioned area. Pending cooperation from Horry County and Horry County Schools, this will allow the City to issue bonds to fund the projects proposed herein, while paying those bonds back with an increment that comes from the additional tax revenue in this district over the period of the TIF.

There are two minor changes to the ordinance from first reading. Two properties (PINs 36701020001 and 36701010055) have been removed from the district. It was originally anticipated that the properties would annex into the city by final passage of the ordinance, but that did not happen.

Public hearing and first reading of this ordinance was held on November 4, 2024. Passage requires one public hearing and two readings.

RECOMMENDATION:

Approve second reading of Ordinance #2024-11-18.

ORDINANCE # 2024-11-18

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF CONWAY, SOUTH CAROLINA PROVIDING FOR THE ESTABLISHMENT OF THE RIVERFRONT AND DOWNTOWN REDEVELOPMENT PROJECT AREA, THE APPROVAL OF THE RIVERFRONT AND DOWNTOWN REDEVELOPMENT PLAN, THE FINANCING OF REDEVELOPMENT PROJECTS, AND OTHER MATTERS RELATED THERETO.

Enacted December 1, 2025

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF CONWAY:

Section 1 Findings and Determinations. The City Council of the City of Conway (“**City Council**”), the governing body of the City of Conway, South Carolina (the “**City**”) hereby finds and determines as follows:

(a) The City is a body politic and corporate and an incorporated municipality located in Horry County, South Carolina (the “**County**”) and as such possesses all powers granted to municipalities in the State of South Carolina (the “**State**”) under the constitution and laws thereof;

(b) Pursuant to Title 31, Chapter 6 of the Code of Laws of South Carolina 1976, as amended (the “**TIF Law**”), incorporated municipalities of the State are authorized to finance publicly-owned infrastructure in areas which are, or threaten to become, blighted;

(c) City Council has determined that there exists within the City certain areas which are, or threaten to become, blighted and it is believed that development and redevelopment within such areas would be encouraged through the City’s undertaking of certain Redevelopment Projects (as defined herein);

(d) The TIF Law authorizes the City to establish a redevelopment project area within the City (as defined in the TIF Law) and to adopt a redevelopment plan (as defined in the TIF Law, to provide for the financing of redevelopment project costs (as such term is defined in the TIF Law), in order to catalyze redevelopment and reduce, prevent, or eliminate blight;

(e) Under the TIF Law, redevelopment projects can be financed through (i) the issuance of Obligations (as defined in the TIF Law) (the “**TIF Bonds**”) payable from and secured by the amount of taxes attributable to the increase in the assessed valuation of real property in the redevelopment area following the establishment of such Redevelopment Area (the “**Tax Increment Revenues**”), (ii) pay as you go financing payable from the Tax Increment Revenues, and (iii) other sources and funds available to the City;

(f) In order to effect such financings, initiate steps to catalyze redevelopment, and reduce, prevent, or eliminate blight, the City will establish the Riverfront and Downtown Redevelopment Project Area as a redevelopment area under the TIF Law (the “**Redevelopment Area**”) and adopt the Riverfront and Downtown Redevelopment Plan, a copy of which is attached as Exhibit A hereto (the “**Redevelopment Plan**”) to provide for the financing of certain redevelopment project costs, as more particularly described in Section 5 of the Redevelopment Plan (the “**Redevelopment Projects**”);

(g) By notices provided on September 11, 2024 (the “**Notices**”), the City, in accordance with Section 31-6-80(C) of the TIF Law, notified the County and the Horry County School District (the “**School District**,” and together with the County, the “**Taxing Districts**”), each of which constitute taxing districts (as defined in the TIF Law) located within the Redevelopment Area, that the City was proposing to adopt the Redevelopment Plan, establish the Redevelopment Area and provide for the issuance of obligations under the Redevelopment Plan

to undertake Redevelopment Projects, all as contemplated by the TIF Law. The City further requested that the County and the School District submit comments to the City regarding the Redevelopment Plan and their inclusion within the Redevelopment Area;

(h) If the Taxing Districts do not object to the Redevelopment Plan by November 4, 2024, each Taxing District shall be considered to have consented to the Redevelopment Plan under Section 31-6-80(D) of the TIF Law and the Tax Increment Revenues allocable to the applicable Taxing District shall be retained in the special tax allocation fund (as defined in the TIF Law) maintained by the City;

(i) The School District, by resolution dated October 28, 2024 of the Horry County Board of Education, objected to the Redevelopment Plan but also notified the City that the School District may be willing to enter into an intergovernmental agreement providing for limited participation in the Redevelopment Plan.;

(j) The County appeared through its County Attorney at the public hearing and provided its objection to the Redevelopment Plan, but may entertain an intergovernmental agreement providing for limited participation in the Redevelopment Plan;

(k) The City Council held a public hearing on the Redevelopment Plan on November 4, 2024, pursuant to Section 31-6-80(B) of the TIF Law (the “**Public Hearing**”). All interested persons were given the opportunity to speak at the Public Hearing. The notice of the Public Hearing, a copy of which is attached hereto as Exhibit B, conformed with the requirements of the TIF Law and was duly published in *The Horry Independent* on October 10, 2024, a date with is not less than fifteen, nor more than thirty days prior to the Public Hearing; and

(l) Prior to the enactment of this Ordinance, and except as set forth in the notice attached hereto as Exhibit C, which was duly published in *The Horry Independent* on November 20, 2025, and provided to the County and School District pursuant to Section 31-6-80(E) of the TIF Law, no changes have been made to the Redevelopment Plan or the Redevelopment Area since the dates of the aforesaid Notices and Public Hearing.

Section 2 The Redevelopment Plan. The Redevelopment Plan is attached as Exhibit A hereto and incorporated herein by reference. The Redevelopment Plan sets forth the factual and economic basis of the City’s plan to establish the Redevelopment Area and to finance the Redevelopment Projects. The City Council finds that the Redevelopment Plan accurately reflects the objectives of the City with regard to the subject matter thereof and hereby approves and adopts the Redevelopment Plan.

Section 3 Need for and Use of Proceeds of the TIF Bonds.

(a) The Redevelopment Plan provides for the issuance of TIF Bonds in one or more series. The proceeds of the TIF Bonds are intended to finance all or a portion of the costs of the Redevelopment Projects. In addition to TIF Bonds, pay as you go financing and other legally available moneys made available by or to the City may be necessary to fully implement the

successful redevelopment of the Redevelopment Area. TIF Bonds are needed in order to provide the public investment required to reduce, prevent, and eliminate blight within the City and catalyze new development and growth within and around the Redevelopment Area. City Council also finds that TIF Bonds are required because Tax Increment Revenues will not be available in adequate amounts and in sufficient time to provide the required public investment to realize the objectives of the Redevelopment Plan.

(b) The Redevelopment Plan sets forth, in Section 3 thereof, the conditions which the City seeks to alleviate or rectify through the Redevelopment Projects. Section 5 of the Redevelopment Plan lists the Redevelopment Projects which have been determined to promote development and redevelopment. If undertaken, the Redevelopment Projects are targeted to address all or a portion of the redevelopment objectives described in Section 4 of the Redevelopment Plan.

Section 4 Costs Estimates and Sources of Revenue.

(a) As set forth in Section 6 of the Redevelopment Plan, the total projected costs of the Redevelopment Projects (to include redevelopment project costs) are approximately \$78,900,000, and which will finance (i) planning/implementation, (ii) recreation and river-access improvements and amenities, (iii) trails, greenways, and connectors, (iv) parking facilities, (v) transportation improvements and infrastructure, (vi) property acquisition and development, (vii) landscaping and streetscaping, and (viii) utilities and related infrastructure, all as further detailed in the Redevelopment Plan. The amount of the Redevelopment Project costs is an estimate and moneys available to pay certain Redevelopment Projects may be reallocated as necessary to accomplish the Redevelopment Projects determined by City Council to best accomplish the objectives of the Redevelopment Plan.

(b) It is intended that the City will finance the Redevelopment Projects through (i) Obligations, including: (i) TIF Bonds; (ii) general obligations bonds; (iii) revenue bonds, including bonds payable from special sources including hospitality or accommodations fees; (iv) installment- or lease-purchase financings or bonds; (v) pay as you go financing payable from the Tax Increment Revenues; (vi) State and federal grants; (vii) private contributions; (viii) hospitality and accommodation fees or taxes; and (ix) other funds available to the City.

(c) TIF Bonds would be secured by a pledge of the Tax Increment Revenues and may be further secured by such other pledges of revenues as the City determines to be necessary or appropriate. The total amount of tax increment indebtedness to be incurred will not exceed \$80,000,000 in aggregate principal amount, which amount would provide for the projected costs of all Redevelopment Projects anticipated by the City. All TIF Bonds must mature within 30 years of the date of issuance thereof.

(d) The City anticipates that private investment will be undertaken within the Redevelopment Area. The City anticipates approximately \$170,500,000 million in private funding and investment, which will be the responsibility of private developers and other private parties.

(e) The City estimates that Tax Increment Revenues could be in excess of \$2,726,295 or more annually at the expiration of the Redevelopment Plan. In addition to debt service costs on the TIF Bonds and pay as you go projects payable from Tax Increment Revenues, it is expected that long-term maintenance of the Redevelopment Area and improvements proposed by the Redevelopment Projects shall cost the City approximately \$100,000 per year.

Section 5 Limitations for Redevelopment Projects. Due to a number of factors, it is expressly recognized that all aspects of the Redevelopment Projects anticipated and discussed in the Redevelopment Plan may not be feasible. In light of limited availability of financing or related capital, the City shall prioritize the Redevelopment Projects in a manner that it, in its sole discretion, may determine will provide the most likelihood of redevelopment within the Redevelopment Area.

Section 6 Property Included in the Redevelopment Area. A list of the tax map numbers of all current parcels of real property in the Redevelopment Area is appended to the Redevelopment Plan as Exhibit A thereto and is incorporated herein by reference. Section 2 of the Redevelopment Plan describes the boundaries of the Redevelopment Area, which are shown on the maps appended as Exhibit B thereto. As required by the TIF Law, the Redevelopment Area is greater than 1.5 acres.

Section 7 Duration of Redevelopment Plan. The period of duration of the Redevelopment Plan shall be 30 years from the issuance date of the first series of TIF Bonds.

Section 8 Impact on Taxing Districts. The estimated impact of the Redevelopment Plan upon the revenues of the Taxing Districts is discussed as set forth in Section 9 of the Redevelopment Plan, which statement and information is incorporated herein by reference.

Section 9 Findings. Based on its review of the Redevelopment Plan and its consideration of the matters set forth therein, the City Council hereby finds that:

- (1) Based on the existence of the factors set forth in Sections 31-6-30(1) and (2) of the TIF Law and as further set forth in Section 3 of the Redevelopment Plan, the Redevelopment Area is a blighted or conservation area and private development, redevelopment, or other initiatives are unlikely to alleviate these conditions without substantial public assistance;
- (2) Property values in the Redevelopment Area would remain static or decline without public intervention; and
- (3) Redevelopment as proposed in the Redevelopment Plan is in the interest of the health, safety, and general welfare of the citizens of the City.

Section 10 Notice and Request to Auditor. Immediately upon enactment of this Ordinance, the City Administrator of the City (the “*City Administrator*”) shall deliver to the

Auditor of the County a certified copy of this Ordinance and shall, on behalf of the City, request that the Auditor of the County determine and certify those matters set forth in paragraphs (A)(1) and (2) of Section 31-6-100 of the TIF Law.

Section 11 Intergovernmental Agreements. Any Intergovernmental Agreements between the City and any of the Taxing Districts, respectively, shall be negotiated, executed, and delivered by the City Administrator (including any interim City Administrator) on behalf of the City. The terms and manner of each Taxing District's respective participation in the Redevelopment Plan shall be fully set forth in an Intergovernmental Agreement, if necessary. Each Intergovernmental Agreement shall be independently approved by the governing bodies of each respective Taxing District in accordance with the provisions of Section 31-6-85 of the TIF Law and the execution thereof by the proper officials of the Taxing District shall constitute conclusive evidence of the Taxing District's authorization to so act. No further action is required of the City to authorize an Intergovernmental Agreement with a Taxing District as the City Administrator is expressly authorized to negotiate the terms of and execute any Intergovernmental Agreement.

Section 12 Recitals. The Redevelopment Plan, as proposed, is in the interests of the health, safety, and general welfare of the citizens of the City. Further, the legislative recitals in Section 31-6-20 of the TIF Law and introductory recitals of this Ordinance are incorporated herein as the findings of the City Council, as fully as if restated verbatim.

Section 13 Ratification. All actions previously undertaken by the City Administrator, and other staff of the City regarding the Redevelopment Plan, including any actions or approvals prior to the enactment of this Ordinance are approved and ratified in their entirety. The consummation of the transactions and undertakings described in this Ordinance, and such additional transactions and undertakings as may be determined by the City Administrator in consultation with the legal counsel to be necessary or advisable in connection therewith, are hereby approved. In connection with the execution and delivery of the Redevelopment Plan, the City Administrator and any staff designated by the City Administrator are each additionally authorized to prepare, review, negotiate, execute, deliver, and agree to such additional agreements, certifications, documents, closing proofs, and undertakings as she shall deem necessary or advisable.

Section 14 Notice of Enactment. Upon the due enactment of this Ordinance, a notice of enactment, substantially similar to the form attached hereto as Exhibit D, shall be published in *The Horry Independent* or a similar newspaper of general circulation in the County. The notice may be published by the City or any qualified agent therefor.

Section 15 Effective Date. This Ordinance shall take effect immediately upon receiving second reading by the City Council.

RATIFIED BY CITY COUNCIL, duly assembled, this 1st day of December 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: November 4, 2024
Public Hearing: November 4, 2024
Second Reading: December 1, 2025

EXHIBIT A

REDEVELOPMENT PLAN

EXHIBIT B

NOTICE OF PUBLIC HEARING

CITY OF CONWAY RIVERFRONT AND DOWNTOWN REDEVELOPMENT PLAN

The City Council of the City of Conway (the “**City Council**”), the governing body of the City of Conway, South Carolina (the “**City**”) will hold a public hearing on Monday, November 4, 2024, to receive comments on the City’s proposed Riverfront and Downtown Redevelopment Plan (the “**Redevelopment Plan**”) and the construction of public improvements in and around the redevelopment project area (as identified in the Redevelopment Plan) (the “**Redevelopment Area**”). The public hearing will be held at 4:00 p.m. in the City Hall Council Chambers, which are located at 229 Main Street, Conway, South Carolina 29526. All interested persons will be given an opportunity to be heard at the public hearing.

The Redevelopment Area encompasses 449.5 acres and 296 parcels of real property. The boundaries of the Redevelopment Area include and encompass a significant portion of the City’s downtown commercial area and riverfront, particularly including certain areas around First, Second, Third, Fourth, and Fifth Avenues between Kingston Lake and the Waccamaw River on the north and Highway 501 on the South, and also including the former Santee Cooper property between 1st Avenue, Highway 501, and the Waccamaw River.

The boundaries of the proposed Redevelopment Area are generally described as follows:

- beginning at the intersection of Highway 905 and Inlet Lane, proceed east to the Waccamaw River and then follow the Waccamaw River south and east to its intersection with Highway 501
- from the intersection of the Waccamaw River and Highway 501, proceed west until Highway 501 becomes Highway 378 and intersects with Fifth Avenue
- from the intersection of to the intersection of Highway 378 and Fifth Avenue, proceed east and north to Kingston Lake, and then following Kingston Lake southeast and then Highway 905 northeast to the initiation point at the intersection of Highway 905 and Inlet Lane
- within such general boundaries the parcels contained in the blocks bordered by the following streets or natural boundaries are partially or completely excluded (i) Fifth Avenue, Kingston Lake, Fourth Avenue, Powell Street, (ii) Fourth Avenue, Main Street, Third Avenue, Powell Street, (iii) Third Avenue, Main Street, Second Avenue, Lewis Street, and (iv) Second Avenue, Elm Street, Marina Drive, Lewis Street

The Redevelopment Plan has been developed by the City to promote and encourage redevelopment in the Redevelopment Area. Through the undertaking of certain municipal improvements (collectively, the “**Redevelopment Projects**”), as further described below, within and around the Redevelopment Area, the City expects to create an environment attractive to private investment and beneficial to its citizens, visitors, and tourists. It is expected that the

Redevelopment Projects will substantially increase the tax base and benefit all affected taxing districts. Through the implementation of the Redevelopment Plan, the City seeks to (i) promote the development of the former Grainger site for mixed-use and recreational purposes; (ii) stimulate private investment in commercial and mixed-uses within the Redevelopment Area; (iii) expand the City's tax base and increase tax revenue withing the Redevelopment Area and the City generally; (iv) create additional job opportunities for residents of the City; (v) provide for general infrastructure improvements; (vi) provide additional recreational opportunities in the area; (vii) promote new parking, walking, and public transportation and other pedestrian-friendly opportunities to improve access to the Redevelopment Area; and (viii) catalyze residential and commercial development in the areas adjacent to the Redevelopment Area. In sum, the City seeks to activate its riverfront and downtown by attracting and leveraging new private investment in the City through strategic public investment.

The Redevelopment Projects include:

- **Planning/Implementation** as the successful revitalization of the Redevelopment Area requires adequate planning for proper implementation
- **Recreation and River-Access Improvements and Amenities** comprising development of plazas, parks, and greenspaces, and improvements therein, that may be used for concerts, festivals, farmer's markets, and similar events, as well as other recreational activities, including but not limited to: Ash Pond Recreation Amenities (beach, marina, trails, and ancillary needs), dredging of the Conway Marina and Canal Entrance to Ash Ponds; Laurel Street Fountain Park at the Laurel Street and Riverwalk trail head, including plantings, public art, and amenities for trail users; The Lawn located at the City-owned open space at Laurel Street and Second Avenue, to serve as the City's downtown town square; Riverfront Gateway Park and Riverfront Improvements at Main Street Bridge
- **Trails, Greenways, and Connectors** comprising development of trails, greenways, and connecting paths to provide walkable and bikable access to and connectivity with the Riverfront, the City's historic downtown, the City's existing greenway and trail network, and new recreation amenities and improvements, including but not limited to: Garden Walk Extension; Kingston Ferry, Trail, and Riverwalk Extension; connection of Lewis to Marina; trail Connecting Ash Ponds to Lake Busbee; and rehabilitation of Train Trestle
- **Parking Facilities** comprising development of parking facilities to support hotel, commercial, and mixed-use development within the Redevelopment Area, including but not limited to structured parking at Laurel Street and Second Avenue
- **Transportation Improvements and Infrastructure** comprising transportation improvements to improve connectivity and access to public and private amenities,

including road and sidewalk improvements, including but not limited to: Highway 501 off-ramp and utilization of existing rail spur

- **Property Acquisition and Development** comprising the acquisition of real property and the construction of buildings and facilities in furtherance of any of the objectives of the Redevelopment Plan, including but not limited to: construction of buildings for use by Coastal Carolina University and Horry Georgetown Technical College, purchase of Conway Housing Authority Property, and construction of a public safety facility
- **Landscaping and Streetscaping** comprising landscaping, streetscaping, and hardscaping improvements throughout the Redevelopment Area, to promote the welfare of its citizens and in furtherance of the objectives of the Redevelopment Plan
- **Utilities and Related Infrastructure** comprising the construction, installation, acquisition, upgrading, or relocation of utility and related infrastructure and appurtenances in furtherance of any of the objectives of the Redevelopment Plan, including placing utility lines underground

Presently, and depending on all available sources of financing, the cost of the Redevelopment Projects is estimated at \$78,900,000. Due to a number of factors, it is expressly recognized that implementation of all the Redevelopment Projects discussed herein may not be feasible. In light of the limited availability of financing or related capital contributions, the City intends to prioritize the Redevelopment Projects that it believes will provide the most likelihood of redevelopment within the Redevelopment Area. Tax increment obligations issued from time to time to finance the costs of the Redevelopment Projects will have a maximum term of 30 years.

This notice is delivered in accordance with Section 31-6-80(B) of the Code of Laws of South Carolina 1976, as amended.

EXHIBIT C

NOTICE OF CHANGE TO REDEVELOPMENT PLAN

Notice is hereby given that pursuant to Title 31, Chapter 6 of the Code of Laws of South Carolina 1976, as amended, the City Council of the City of Conway, the governing body of the City of Conway, South Carolina (the “City Council”) proposes to enact “AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF CONWAY, SOUTH CAROLINA PROVIDING FOR THE ESTABLISHMENT OF THE RIVERFRONT AND DOWNTOWN REDEVELOPMENT PROJECT AREA, THE APPROVAL OF THE RIVERFRONT AND DOWNTOWN REDEVELOPMENT PLAN, THE FINANCING OF REDEVELOPMENT PROJECTS, AND OTHER MATTERS RELATED THERETO” (the “Ordinance”) on December 1, 2025. The City Council gave first reading of and held a public hearing on the Ordinance on November 4, 2024. Since that time, the parcels identified as PIN 36701010055 and PIN 36701020001 have been removed from the Redevelopment Area and attendant revisions have been made to the Redevelopment Plan and notice is hereby given of the same pursuant to Section 31-6-80(E) of the Code of Laws of South Carolina 1976, as amended. Capitalized terms used herein have the meanings ascribed thereto in the Ordinance, which is available for inspection at the office of the City Clerk of the City of Conway, South Carolina.

EXHIBIT D

NOTICE OF ENACTMENT

Notice is hereby given that pursuant to Title 31, Chapter 6 of the Code of Laws of South Carolina 1976, as amended, the City Council of the City of Conway, the governing body of the City of Conway, South Carolina (the “City Council”) has duly enacted “AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF CONWAY, SOUTH CAROLINA PROVIDING FOR THE ESTABLISHMENT OF THE RIVERFRONT AND DOWNTOWN REDEVELOPMENT PROJECT AREA, THE APPROVAL OF THE RIVERFRONT AND DOWNTOWN REDEVELOPMENT PLAN, THE FINANCING OF REDEVELOPMENT PROJECTS, AND OTHER MATTERS RELATED THERETO” (the “Ordinance”). The final reading of the Ordinance was given at a meeting of the City Council held on December 1, 2025. The Ordinance adopts the Riverfront and Downtown Redevelopment Plan, establishes the Riverfront and Downtown Redevelopment Area, and provides for matters related thereto, including the issuance of obligations to finance the costs of the Redevelopment Projects. Capitalized terms used herein have the meanings ascribed thereto in the Ordinance, which is available for inspection at the office of the City Clerk of the City of Conway, South Carolina.

City of Conway, South Carolina
Riverfront and Downtown Redevelopment Plan

December 1, 2025

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Exhibit A – Properties Located within Redevelopment Area

Exhibit B – Map of Redevelopment Area

Exhibit C – Preliminary Equalized Assessed Value Certificate

Appendix I – Tax Increment Financing Law

1. Introduction

In accordance with the “Tax Increment Financing Law” as provided in Title 31, Chapter 6 of the Code of Laws of South Carolina 1976, as amended (the “TIF Law”), a copy of which is attached hereto as Appendix I, the City of Conway, South Carolina (the “City” or “Conway”) through the approval of this Riverfront and Downtown Redevelopment Plan (this “Redevelopment Plan”), will establish the Riverfront and Downtown Redevelopment Project Area (the “Redevelopment Area”) from which incremental real property tax revenues within such Redevelopment Area (the “Tax Increment Revenues”) will be used to finance needed public improvements and implement this Redevelopment Plan. This Redevelopment Plan has been created to: (1) describe conditions within a certain area of the City constituting blight and designate such area (as further defined below, the “Redevelopment Area”) as a blighted or conservation area; (2) develop comprehensive plans for the redevelopment of the Redevelopment Area to reduce, prevent, or eliminate the conditions constituting blight and thereby enhance the tax bases of the City and the taxing districts which extend into the Redevelopment Area; and (3) identify sources of funding for the implementation of certain public improvements within the Redevelopment Area.

Once adopted, the duration of the Redevelopment Plan shall not exceed December 31, 2064. Obligations authorized pursuant to the TIF Law (“TIF Bonds”) shall mature prior to such time and no series of TIF Bonds shall have a term in excess of 30 years. The TIF Bonds shall be secured by the Tax Increment Revenues and other monies legally pledged by the City.

The area covered by the Redevelopment Plan (the “Redevelopment Area”) encompasses approximately 449.5 acres within the City’s riverfront and downtown areas and former Grainger Plant site. The Redevelopment Area is shown on the map attached hereto as Exhibit B and individual parcel information for the parcels comprising the Redevelopment Area is described at Exhibit A.

The implementation of this Redevelopment Plan is intended to result in the reduction, prevention, or elimination of blight, the growth of the tax base within the Redevelopment Area; the improvement of the public health, safety, and welfare; and the creation of jobs through the attraction of private investment. Additionally, it is believed that absent the creation of the Redevelopment Area and implementation of the Redevelopment Plan, property values therein would remain static or even decline in value.

2. Description of the Redevelopment Area

A. Redevelopment Area

The Redevelopment Area consists of approximately 449.5 acres within the City comprising 294 parcels. A list of the parcels within the Redevelopment Area is attached to this Redevelopment Plan as Exhibit A. A map of the Redevelopment Area is provided as Exhibit B.

B. Existing Land Use

According to land use codes provided by the Horry County Assessor's Office, the existing land uses within the Redevelopment Area may be described as follows:

Residential

Based upon these land use codes, 100 parcels within the Redevelopment Area are described as having residential uses. These uses consist of single-family detached dwellings, duplexes, or condominiums. Of these parcels, 63 parcels are in use for residential purposes and 37 parcels are considered to be for residential use, but are presently vacant.

Commercial

175 parcels within the Redevelopment Area are described as being used for various commercial uses, including office buildings, retail, restaurants, banks, and other commercial purposes. Of these, 63 parcels are considered to be commercial in use but remain vacant at this time.

Civic, Institutional, and Utility

21 parcels within the Redevelopment Area are described as being used for various religious, civic, and utility purposes. These include parcels that are owned by the City, Horry County, and various churches and nonprofit organizations.

C. Zoning

Table 1 (below) shows the zoning designation of parcels in the Redevelopment Area.

Table 1

Zoning District	Number of Parcels
Low/Medium-Density Residential	3
Medium-Density Residential	32
High-Density Residential	24
Highway Commercial	36
Core Commercial	79
Central Business District	57
Waccamaw Riverfront District 1	29
Waccamaw Riverfront District 2	32
Planned Development District	1
Split Core Commercial/Medium-Density Residential	2
Split High-Density Residential/Conservation Preservation	1

D. Comprehensive Plan and Other Planning Documents

The policies in the 2023 City of Conway Comprehensive Plan (the “Comprehensive Plan”) provide specific guidance regarding future land uses that the City hereby incorporates into this Redevelopment Plan for the Redevelopment Area. Through the Comprehensive Plan, the City has adopted a map of future land uses to provide a blueprint for growth that enhances the quality of life for residents of the City and accommodates future development. The Redevelopment Area includes areas that are classified for future land uses as (1) conservation/preservation; (2) utility; (3) recreational; (4) institutional; (5) existing residential; (6) medium-density residential; (7) high-density residential; (8) neighborhood commercial; (9) mixed-use; and (10) downtown historic district. The Comprehensive Plan defines each future land use classification and incorporates zoning districts that are appropriate within each classification. The redevelopment projects that are contemplated under this Redevelopment Plan, and the private development that the City wishes to encourage, and in keeping with the City’s intentions regarding its future land use.

The redevelopment projects that are contemplated under this Redevelopment Plan and the land uses that the City intends to apply or encourage in the Redevelopment Area are informed by land use goals, objectives, and strategies discussed in the Comprehensive Plan:

Develop ways to allow and encourage mixed use. In support of this objective, the City has adopted strategies of researching approaches for allowing and encouraging mixed use and encouraging developers to take advantage of opportunities for mixed use development. This Redevelopment Plan adheres to this guidance by promoting mixed-use developments, which are contemplated among the private projects that are expected to occur within the Redevelopment Area as a consequence of the City carrying out this Redevelopment Plan.

Create a walkable and bikable city with multimodal transportation choices. In furtherance of this objective, the City seeks to implement its Greenway Plan. This Redevelopment Plan contemplates several redevelopment projects that will extend and interconnect greenways and walking trails within the City that will enhance its walkability and bikability.

Foster a distinctive, attractive city with a strong sense of place. In furtherance of this objective, the City has adopted strategies of continuing the Rebuild Conway program, which is intended to eliminate blight in areas of the City, implementing the City's corridor plans, including the creation of a municipal improvement district or tax increment finance district to fund such improvements, and support and enhance the City's identity as a "Rivertown." In support of this strategy, the overarching goal of this Redevelopment Plan is the elimination of blight within the Redevelopment Area. Further, the City seeks to fund corridor improvements and other public improvements along and in the vicinity of the City's riverfront area to promote private investment that will connect the City and its residents to the riverfront.

Preserve open space, natural beauty and critical environmental areas. To accomplish this objective the City seeks to protect wetlands and waterways to preserve the quality of the City as a Rivertown and encourage visitation for ecotourism. Many of the redevelopment projects contemplated in this Redevelopment Plan are intended to draw visitors to the City by enhancing the City's riverfront and other natural areas.

Strengthen and direct infill development toward and adjacent to existing parts of Conway with compatibility and neighborhood preservation as key elements to consider. The City has adopted strategies for the accomplishment of this objective of incentivizing new infill development and downtown development. The redevelopment projects contemplated in this Redevelopment Plan are expressly intended to induce and provide support for infill development within the riverfront and downtown areas of the City.

In addition to the Comprehensive Plan, the City has also undertaken other planning efforts and approved other planning documents that relate to the Redevelopment Area. These planning documents include the City's 2017 Riverfront and Downtown Master Plan (the "2017 Master Plan"), the 2022 Riverfront and Downtown Master Plan (the "2022 Master Plan"), and the 2022 Conway Pathways and Trails Plan (the "Trails Plan"). These plans include numerous general goals and objectives that will be furthered through the implementation of the Redevelopment Plan, including the following:

- Per the 2017 Master Plan, connect the downtown area with the riverfront per recommendations outlined in the Riverfront and Downtown Master Plan, including extending lighting under the bridge and extending the Riverwalk, with the goal of reinforcing Conway as a "riverfront downtown" rather than two separate districts. [Note: taken from Comprehensive Plan reference to 2017 Master Plan.

- Per the 2022 Master Plan, continue to work with private sector property owners to encourage high quality mixed-use infill development to further activate streets and open spaces and reinforce important downtown connections.
- Per the Trails Plan, enhance quality of life by connecting communities and destinations across the City and provide high-quality pathway and trail experiences.

3. Quantification of Blight within the Redevelopment Area

The Redevelopment Area includes approximately 449.5 acres of property of the 18,377 acres within the City, which represents approximately 2.45% of the total acreage within the incorporated limits of the City. TIF Law governing creation of the redevelopment area stipulates that the area must include a minimum of 1.5 acres. The City's proposed Redevelopment Area is above the required threshold of the TIF Law. By the terms of the TIF Law, to properly implement the Redevelopment Plan and create the Redevelopment Area, findings must be made that the Redevelopment Area is a blighted, conservation, or agricultural area.

Section 31-6-30(1) of the TIF Law describes certain factors of a blighted area that may be present within improved or vacant areas within the Redevelopment Area. An improved area is considered a blighted area if five or more of the following factors are present: "age; dilapidation; obsolescence; deterioration; illegal use of individual structures; presence of structures below minimum code standards; excessive vacancies; overcrowding of structures and community facilities; lack of necessary transportation infrastructure; presence of or potential environmental hazards; lack of water or wastewater services; inadequate electric, natural gas or other energy services; lack of modern communications infrastructure; lack of ventilation, light, sanitary or storm drainage facilities; inadequate utilities; excessive land coverage; deleterious land use or layout; depreciation of physical maintenance; lack of community planning; and static or declining land values are detrimental to the public safety, health, morals, or welfare." A vacant area is considered a blighted area if sound growth is impaired by two or more of the following factors: "obsolete platting of the vacant land; diversity of ownership of such land; tax and special assessment delinquencies on such land; deterioration of structures or site improvements in neighboring areas adjacent to the vacant land; overcrowding of structures and community facilities in neighboring areas adjacent to the vacant land; lack of necessary transportation infrastructure; presence of or potential environmental hazard; lack of water, or wastewater; lack of storm drainage facilities; inadequate electric and natural gas energy services; and lack of modern communications infrastructure."

Section 31-6-30(2) of the TIF Law describes certain factors of a conservation area that may be present within improved or vacant areas within the Redevelopment Area. An improved area is considered a conservation area (not yet blighted) if three or more of the following factors are present: "age; dilapidation; obsolescence; deterioration; illegal use of individual structures; presence of structures below minimum code standards; excessive vacancies; overcrowding of structures and community facilities; lack of necessary transportation infrastructure; presence of or potential environmental hazards; lack of water or wastewater services; inadequate electric, natural gas or other energy services; lack of modern communications infrastructure; lack of ventilation, light, sanitary or storm drainage facilities; inadequate utilities; excessive land coverage; deleterious land use or layout; depreciation of physical maintenance; lack of community planning; and static or declining land values are detrimental to the public safety, health, morals, or welfare." A vacant area is considered a conservation area (not yet blighted and if formerly improved, not yet blighted) if two or more of the following factors are present: "obsolete platting of the vacant land; diversity of ownership of the land; tax and special assessment delinquencies on the land; deterioration of structures or site improvements in neighboring areas adjacent to the vacant land; overcrowding of structures and community facilities in neighboring areas adjacent to the vacant land; lack of necessary transportation infrastructure; presence of or potential environmental hazard; lack of water, or wastewater; lack of storm drainage facilities; inadequate electric and natural gas energy services; and lack

of modern communications infrastructure; is detrimental to the public safety, health, morals, or welfare and may become a blighted area.”

Within the improved areas of the Redevelopment Area there exist residential and commercial improvements to property that are detrimental to public safety, health, morals, or welfare due to their age, dilapidated state, obsolescence, deterioration, failure to meet minimum code standards, and depreciation of physical maintenance. Within the Redevelopment Area there also exist improved residential and commercial areas that exhibit excessive vacancies. The vacant areas within the Redevelopment area are, in many instances, neighboring the improved parcels that contain deteriorated structures or site improvements. Further, the portions of the site of the former Grainger Generating Station contain potential environmental hazards. In addition, improved or vacant areas within the Redevelopment Area exhibit the same factors for blighted improved or vacant areas, although these areas may not yet be blighted.

Accordingly, the City Council has determined that there exists within the Redevelopment Area not less than eight factors within improved areas and not less than two factors within vacant areas that qualify the Redevelopment Area as a “blighted area.” Further, to the extent that portions of the Redevelopment Area are not yet blighted, each of these factors are additionally present and are sufficient to qualify these areas as “conservation areas.”

To determine whether the improved or vacant parcels in the Redevelopment Area are classified as either blighted areas or conservation areas, the City surveyed the Redevelopment Area and identified the following conditions:

1. Age – Many of the buildings and structures in the Redevelopment Area are decades-old or older. Due to the age of many of the buildings and structures within the Redevelopment Area and the marginal businesses that they attract, maintenance and upkeep has been deferred (thus leading to dilapidation and deterioration, as further discussed herein below).
2. Deterioration – Deterioration of the structures was evident throughout the area. Conditions that were observed included damaged roofs, peeling paint, boarded windows, deteriorated parking areas, overgrowth, and general disrepair.



3. Dilapidation – Dilapidated structures were found in the Redevelopment Area; examples included both residential and commercial structures. Many of these buildings are beyond repair.



4. Presence of Structures Below Minimum Code Standards – A number of structures in the Redevelopment Area do not meet the City's building codes. This applies to both vacant and occupied structures.
5. Obsolescence – Those structures within the Redevelopment Area that exhibit factors of age, dilapidation, and deterioration are also considered obsolescent.
6. Excessive Vacancies – Vacant structures exist throughout the Redevelopment Area. The presence of vacancies leads to an impression of decline and neglect. The vacant buildings are often allowed to deteriorate to the point that they are no longer habitable or commercially viable. Some properties, built for a specific use, are now obsolete because of their original design and previous usage.



7. Depreciation of Physical Maintenance – The vacant structures as well as many occupied buildings have not been maintained at acceptable levels. Conditions that were observed included fading and peeling paint, overgrowth of plant materials, broken areas of pavement, boarded windows, general disrepair, deteriorated signage and the presence of junk and other debris.



8. Lack of Storm Drainage Facilities – There is a lack of storm drainage facilities in the Redevelopment Area, causing frequent flooding during rain events.

In summary, the improved portions of the Redevelopment Area are considered blighted areas for the following reasons: (1) Age; (2) Dilapidation; (3) Deterioration; (4) Presence of Structures Below Minimum Code Standards; (5) Obsolescence; (6) Excessive Vacancies; (7) Depreciation of Physical Maintenance; and (8) Lack of Storm Drainage Facilities. Some vacant portions of the Redevelopment Area (1) are adjacent to improved parcels that contain deteriorated structures or site improvements or (2) contain potential environmental hazards. Some areas of the Redevelopment Area may not yet be considered blighted areas, but exhibit the factors set forth above and are considered conservation areas.

4. Redevelopment Objectives

Based on the issues identified in the Redevelopment Area, the City finds that publicly funded improvements are necessary to revitalize the Redevelopment Area and to stimulate private investment. In so doing, potential redevelopment can promote the health, safety, morals and welfare of the public and alleviate or potentially eradicate the blighted conditions. Redevelopment projects and activities in the Redevelopment Area will focus on the provision of adequate facilities, including, but not limited to, street and highway improvements, parking facilities, hardscape and streetscaping (curbs, gutters, and sidewalks), utility improvements and undergrounding, transportation and pedestrian infrastructure (bike and walking trails), recreation amenities, landscaping, site improvements, and other general improvements.

To meet this overall goal, the City has established the following primary objectives for its Redevelopment Plan:

- Promote the development of the former Grainger site for mixed-use and recreational purposes;
- Stimulate private investment in commercial and mixed-uses within the Redevelopment Area;
- Expand the City's tax base and increase tax revenue withing the Redevelopment Area and the City generally;
- Create additional job opportunities for residents of the City;
- Provide for general infrastructure improvements;
- Provide additional recreational opportunities in the area;
- Promote new parking, walking, and public transportation and other pedestrian-friendly opportunities to improve access to the Redevelopment Area; and
- Catalyze residential and commercial development in the areas adjacent to the Redevelopment Area.

The City anticipates achieving the above-objectives through the following general land uses in the Redevelopment Area:

- | | |
|-----------------|----------------------------------|
| • Commercial | • Mixed Use |
| • Cultural | • Park |
| • Educational | • Public |
| • Hospitality | • Recreational |
| o Hotel | • Residential |
| o Restaurant | o Single Family |
| o Conference | o Multi-family |
| o Entertainment | • Transportation |
| • Governmental | • Structured and Surface Parking |
| • Marina | • Utility |

5. Public Development Activities

The City plans to undertake a variety of projects (the “Redevelopment Projects”) within the Redevelopment Area. Certain of the Redevelopment Projects listed below are described conceptually in the 2017 Master Plan, 2022 Master Plan, or the Trails Plan. The timing, prioritization, and final selection of Redevelopment Projects will depend upon the growth of the Redevelopment Area and the availability of financing alternatives. Some improvements will be implemented in conjunction with other public improvements, public organizations and/or private developers. Redevelopment Projects consist of projects qualifying as a “Redevelopment Project” as that term is defined in the TIF Law that is in furtherance of the objectives of the Redevelopment Plan. Redevelopment Projects include, but are not limited to:

Planning/Implementation – The successful revitalization of the Redevelopment Area requires adequate planning for proper implementation. Planning assistance will be secured from City staff, and as needed, consultants. In utilizing consultants and other advisors, the City shall expend money for redevelopment project costs (as defined in the TIF Law).

Recreation and River-Access Improvements and Amenities – Development of plazas, parks, and greenspaces, and improvements therein, that may be used for concerts, festivals, farmer’s markets, and similar events, as well as other recreational activities, including but not limited to:

- Ash Pond Recreation Amenities (beach, marina, trails, and ancillary needs)
- Dredging of the Conway Marina and Canal Entrance to Ash Ponds
- “Laurel Street Fountain Park” at the Laurel Street and Riverwalk trail head, including plantings, public art, and amenities for trail users
- “The Lawn,” located at the City-owned open space at Laurel Street and Second Avenue, to serve as the City’s downtown “town square”
- Riverfront Gateway Park and Riverfront Improvements at Main Street Bridge

Trails, Greenways, and Connectors – Development of trails, greenways, and connecting paths to provide walkable and bikable access to and connectivity with the Riverfront, the City’s historic downtown, the City’s existing greenway and trail network, and new recreation amenities and improvements, including but not limited to:

- Garden Walk Extension
- Kingston Ferry, Trail, and Riverwalk Extension
- Connection of Lewis to Marina
- Trail Connecting Ash Ponds to Lake Busbee
- Rehabilitation of Train Trestle

Parking Facilities – Development of parking facilities to support hotel, commercial, and mixed-use development within the Redevelopment Area, including but not limited to:

- Parking Deck at Laurel Street and Second Avenue

Transportation Improvements and Infrastructure – Transportation improvements to improve connectivity and access to public and private amenities, including road and sidewalk improvements, including but not limited to:

- Highway 501 Off-Ramp
- Utilization of Existing Rail Spur

Property Acquisition and Development – The acquisition of real property and the construction of buildings and facilities in furtherance of any of the objectives of the Redevelopment Plan, including but not limited to:

- Construction of Buildings for Use by Coastal Carolina University and Horry Georgetown Technical College
- Purchase of Conway Housing Authority Property
- Construction of a Public Safety Facility

Landscaping and Streetscaping – Landscaping, streetscaping, and hardscaping improvements throughout the Redevelopment Area, to promote the welfare of its citizens and in furtherance of the objectives of the Redevelopment Plan.

Utilities and Related Infrastructure – The construction, installation, acquisition, upgrading, or relocation of utility and related infrastructure and appurtenances in furtherance of any of the objectives of the Redevelopment Plan, including placing utility lines underground.

Any Redevelopment Project may be located or constructed outside of the Redevelopment Area. To the extent any Redevelopment Project is located or constructed outside of the Redevelopment Area, such projects shall be located within the municipal limits of the City and should be analyzed for the benefits accruing to the Redevelopment Area. Further, any of the Redevelopment Projects shall include all necessary Redevelopment Project Costs as such term is used and defined in the TIF Law. The proceeds of any Redevelopment Projects by the City shall be deposited in accordance with the provisions the provisions of the TIF Law.

6. Redevelopment Project Costs

Redevelopment Project costs are estimated to be \$78,900,000. This estimate assumes growth occurs in the Redevelopment Area and new private investment in such area generates sufficient revenue to fund the Redevelopment Projects as described in Section 5 herein.

Due to several factors, it is expressly recognized that all of the Redevelopment Projects anticipated and discussed herein may be not be feasible. Considering the limited availability of financing or related capital, the City may prioritize the Redevelopment Projects in a manner that it determines, in its sole discretion, will provide the most likelihood of redevelopment within the Redevelopment Area. The City may also supplement Tax Increment Revenues with the sources identified in Section 8 hereof to finance or otherwise provide for Redevelopment Projects to the extent that Tax Increment Revenues are not available at the times or in the amounts necessary to meet the City's objectives under the Redevelopment Plan.

In addition to the Redevelopment Project costs, the City expects that long-term project maintenance (including lot clearing, as necessary, code enforcement, law enforcement, fire service, and other City services) in the Redevelopment Area will cost the City approximately \$100,000 per year.

7. Private Investment in the Redevelopment Area

At the time of the approval of this Redevelopment Plan, private investment of as much as \$170,500,000 is anticipated in the Redevelopment Area. The private investment contemplated by the City includes the development of hotels and related facilities of approximately \$50,000,000; restaurants, mixed-use, and other commercial development of approximately \$15,500,000; and private investment in the City's 808-acre site of the former Grainger Generating Station of approximately \$100,000,000. The City anticipates additional development in health care facilities within the Redevelopment Area resulting in the additional investment of \$20,000,000; however, this investment is expected to be exempt from property taxes.

The City has identified barriers to development in the area that make private investment difficult to secure. Some of the barriers, such as poor pedestrian connectivity and lack of recreational facilities, the City can address with revenues generated from the Redevelopment Area. Other barriers such as deteriorated and obsolete buildings, the City can address by incentivizing private investors through grant programs and other infrastructure initiatives and inducements. The Redevelopment Projects listed in the previous section were identified as catalysts to spark interest and private investment in the Redevelopment Area by focusing public investment on key undeveloped or underdeveloped properties and linking the Redevelopment Area to the rest of the community.

8. Redevelopment Financing

The City anticipates that the sources of funds to pay Redevelopment Project costs will come from several sources. These sources include:

- Obligations, including:
 - o TIF Bonds;
 - o General obligations bonds;; and
 - o Revenue bonds, including bonds payable from special sources including hospitality or accommodations fees;
- Installment or lease purchase financings or bonds
- Pay as you go financing payable from the Tax Increment Revenues;
- State and federal grants;
- Private contributions;
- Hospitality and accommodation fees or taxes; and
- Other funds available to the City.

The sources and amounts of the financing from various sources will depend upon the availability of those funding sources. The City estimates that Tax Increment Revenues could be in excess of \$2,726,295 or more annually, depending on the level of private investment and growth in the Redevelopment Area. TIF Bonds or Installment Purchase Revenue Bonds utilizing revenues from the Redevelopment Area, from time to time in one or more series, will be issued to pay for Redevelopment Projects (when and if financing is available). The TIF Law requires that the initial series of TIF Bonds be issued within 10 years after adoption by the City of an ordinance approving this Redevelopment Plan. No TIF Bonds or other financing for Redevelopment Projects will be issued with a final maturity that exceeds 30 years from the date of issuance thereof. The aggregate principal amount of all TIF Bonds issued in connection with this Redevelopment Plan will not exceed \$80 million (provided no principal limitation shall apply to any refunding transaction that achieves an overall debt service savings), absent an amendment following the procedures set forth at Section 31-6-80(F) of the TIF Law.

Should the City so determine, any TIF Bonds or other anticipated financing source may be combined with other financing sources and financing structures, including sources and structures not listed above.

9. Impact on Affected Taxing Districts

In addition to the City, two local taxing jurisdictions impose property taxes within the Redevelopment Area: Horry County (the “County”) and the Horry County School District (the “School District” together with the County, the “Taxing Districts”). Despite sustained efforts by the City to bring redevelopment to the Redevelopment Area, property tax values and resulting revenues generated from the Redevelopment Area have been stagnate over the past 10 years.

The revitalization of the Redevelopment Area is intended to attract new investment that will restore a productive tax base for local governments, reduce, prevent, or eliminate blight, and support healthy, sustainable urban growth. The City estimates potential for up to \$170.5 million in new, taxable private investment. This new private investment will come from a variety of sources, as discussed in Section 7 above.

As of tax year 2024, property within the boundaries of the Redevelopment Area had an estimated total assessed value of \$2,752,490, as set forth in Exhibit C. Real property taxes on this assessment are estimated (based on tax year 2024 millage levies) to be as follows:

Table 2

<u>Taxing District</u>	<u>2024 Millage Levies</u>	<u>Tax Revenues</u>
School District	119.1	\$327,822
County	52.1	143,405
Total	171.2	\$471,227

During the redevelopment process, the Taxing Districts will continue to receive real property tax revenues at the same approximate level as that shown above, even after the adoption of this Redevelopment Plan, the issuance of TIF Bonds, and the initiation of Redevelopment Projects. The Tax Increment Revenues (paid into the Special Tax Allocation Fund (as defined in the TIF Law)), which will be used to pay debt service on the TIF Bonds and to otherwise fund Redevelopment Projects, constitute new taxes resulting from growth and value increases within the Redevelopment Area. No Taxing District, regardless of their consent to the imposition of the new tax increment, will lose existing tax revenue as a result of the implementation of this Redevelopment Plan.

The creation of the Redevelopment Area and implementation of the Redevelopment Plan has no impact on personal property taxes collected within the Redevelopment Area. The Taxing Districts will continue to receive tax revenues from personal property at the existing level and will benefit from all future increases. Even as the City collects Tax Increment Revenues to provide for redevelopment, revenue increases should be realized by all Taxing Districts as a result of investments within the Redevelopment Area.

In summary, this Redevelopment Plan and the Redevelopment Projects authorized herein are expected to have a positive overall impact on the tax revenues of each Taxing District.

Each of the Taxing Districts will benefit significantly in the short and long terms from the investments made in the Redevelopment Projects. In the short term, the Redevelopment Projects will improve public spaces, streets, intersections, and other infrastructure that are used by all. In the long term, the Redevelopment Projects will help attract high quality investment to the Redevelopment Area that will add to the tax base and financial strength of each entity. Upon completion of the Redevelopment Projects, and absent the amendment of the Redevelopment Plan, the Redevelopment Area will be dissolved and the full financial benefit of all growth that has occurred within the Redevelopment Area will accrue directly to each entity.

In summary, the proposed Redevelopment Projects will have no effect on current revenues of the entities that have taxing powers in the Redevelopment Area. All Taxing Districts will receive new revenues resulting from property taxes on new personal property investments and from the growth of real estate values outside the Redevelopment Area. All entities will forgo a portion of their future revenue growth for a period of time. In return, all will benefit from a stronger, more diverse tax base and economy, improved infrastructure, and a more attractive community.

10. Displacement Impact of Redevelopment Plan

The possible acquisition of the Lee Haven apartment complex, which is owned and operate by the Conway Housing Authority, is included among the Redevelopment Projects and may result in the elimination of approximately 32 dwelling units. The elimination of these units would result in the displacement of the residents thereof. Should the acquisition of the Lee Haven apartment complex result in the elimination of these housing units, the City would utilize the following procedures for the creation of housing opportunities for such residents, to the extent feasible, to enable a substantial number of the displaced persons to relocate within or in close proximity to the Redevelopment Area:

1. Well in advance of the acquisition of the Lee Haven apartment complex, begin coordinating with the Conway Housing Authority to ensure that any necessary relocations may be accomplished in such a way as to minimize the impact on residents.
2. Prior to the elimination of any dwelling units within the Lee Haven apartment complex, distribute notices and associated literature to residents (i) informing them that they may be relocated; (ii) describing the relocation assistance, including financial assistance, that may be provided and any requirements for eligibility; (iii) explaining the relocation process and the support that may be made available; (iv) informing the resident that they will not be required to relocate without first having been given at least 90 days-notice; and (v) providing a general explanation of the resident's rights under State law.
3. Schedule individual meetings with residents to discuss their specific needs and complete a profile on each resident, to include information concerning income and replacement housing needs.
4. Conduct a survey of other housing available in the vicinity of the Redevelopment Area, including housing that may be available by the Conway Housing Authority, and create a database of available housing options.
5. Work directly with each resident to locate and select comparable housing based on profile and have the City Construction Services Department verify that the new structure is safe, decent, and sanitary.
6. Prepare paperwork required to validate residents' relocation assistance payments, provide assistance to minimize impact of the relocation, and assist with the preparation of a claim for a relocation payment.
7. Provide each resident with at least 90-days notice of any required relocation.
8. Provide assistance to each property owner/tenant in moving to a new location, and upon completion of move make the requisite moving assistance payment.

It is anticipated that all other work in connection with the Redevelopment Plan will take place on public rights-of-way, publicly-owned property, or newly acquired property that is currently vacant. The City does not anticipate that the implementation of the Redevelopment Plan will result in the displacement

of other residents. Should there be temporary or permanent displacement of residents as a result of the implementation of other components of the Redevelopment Plan, including any displacement involving the acquisition of private property, the City will follow all requirements of Section 28-11-10 of the Code of Laws of South Carolina 1976, as amended.

11. Properties within the Redevelopment Area

Attached hereto as Exhibit A is a listing, by parcel identification number, of each of the current 294 parcels within the Redevelopment Area. Also included within such Exhibit are the names of the property owners, the parcel identification number, current fair market value as determined by the County, and the current taxable assessed value for each parcel.

12. Future Amendments to the Redevelopment Plan

As necessary to achieve the objectives of this Redevelopment Plan, the City may amend this plan to include adjacent areas which would benefit from redevelopment activities. Any such amendments to this Redevelopment Plan shall be made in compliance with the TIF Law.

13. Estimate of Equalized Assessed Value

For tax year 2024 the most recent equalized assessed value for the Redevelopment Area is \$2,752,490. It is estimated that the equalized assessed value after redevelopment (as of December 31, 2064) will be \$12,983,570.

Exhibit A

Properties Located within Redevelopment Area

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
ALI BYRD LLC	36803030039	\$71,883	\$3,540
ALI BYRD LLC	36803030040	\$65,170	\$3,210
ALI BYRD LLC	36803030041	\$52,920	\$2,610
ANDERSON BROTHER BANK	36804040007	\$230,400	\$13,820
ANDERSON BROTHER BANK	36804040008	\$37,500	\$2,250
ANDERSON BROTHERS BANK	36804040012	\$187,537	\$11,250
ANDERSON THOMAS J II	36803020087	\$64,015	\$1,150
ANDERSON THOMAS J II	36804020063	\$484,897	\$21,080
ANDERSON THOMAS J II	36804020064	\$105,593	\$6,130
ANDERSON THOMAS J II	36804020065	\$124,081	\$6,060
ANDERSON THOMAS J II	36804020107	\$140,058	\$8,400
ANDERSON THOMAS J II	36804020115	\$25,593	\$1,330
ANDERSON THOMAS J II	36804020118	\$227,502	\$13,080
B & R CAPITAL LLC	36701040020	\$208,900	\$8,360
BABCOCK MATTHEW J	36804040050	\$100,953	\$3,350
BADGETT THOMAS MARION MD	36701040021	\$208,900	\$12,420
BIANGO LEAH	36804040055	\$238,507	\$8,950
BILLIN INVESTMENTS A SC GP	36804040037	\$41,089	\$800
BILLIN INVESTMENTS A SC GP	36804040038	\$31,030	\$610
BILLIN INVESTMENTS A SC GP	36804040039	\$133,197	\$5,510
BIVINS ROY L TR ETAL	36701010028	\$132,099	\$7,920
BRADHAM FAYE R	36701040012	\$218,400	\$13,100
BROWN CECIL SHUFORD TR ETAL	36803030016	\$230,293	\$13,820
BROWN CECIL SHUFORD TR ETAL	36803030017	\$43,845	\$2,630
BROWN CECIL SHUFORD TR ETAL	36804040053	\$42,481	\$2,550
BROWN CECIL SHUFORD TR ETAL	36806020001	\$106,677	\$6,400
BURCH WARREN A & JANE L	36701010045	\$304,378	\$6,440
BURROUGHS & CHAPIN COMPANY INC	36701010004	\$339,295	\$12,780
CALDWELL MARJORIE LEWIS ETAL	36701040024	\$208,900	\$8,360
CANOLINA LLC	36803030010	\$2,370,595	\$142,230
CAROLINE'S LLC	33916040015	\$264,341	\$5,210
CARPENTER WILLIAM D ETAL	36803030062	\$279,213	\$13,800
CASE NANCY S	36803040007	\$253,201	\$11,410
CEASAR 304 LLC	36804020109	\$60,982	\$3,660
CHAN YIU WING & HOI FAI	36804020057	\$126,676	\$7,600
CHERRY HILL MISSIONARY BAPTIST CHURCH OF CONWAY SC	36803030063	\$190,668	\$0

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
CHERRY HILL MSSNRY BAPTIST CHURCH C/O CHURCH OF CONWAY	36803020135	\$711,550	\$0
CHESTNUT DATHAN C ETAL C/O CECILIA ANN PRYOR	36803020090	\$63,418	\$1,410
CHESTNUT DATHAN C ETAL C/O CECILIA ANN PRYOR	36803020091	\$81,103	\$2,960
CHS OF 1995 INVESTMENTS LLC	36701010042	\$573,938	\$27,030
CHS OF 1995 INVESTMENTS LLC	36701010058	\$215,095	\$12,900
CHS OF 1995 INVESTMENTS LLC	36701040004	\$125,071	\$7,510
CHS OF 1995 INVESTMENTS LLC	36701040009	\$2,927,200	\$175,630
CHS OF 1995 INVESTMENTS LLC	36701040031	\$152,726	\$9,160
CHS OF 1995 INVESTMENTS LLC	36701040034	\$499,055	\$17,410
CHS OF 1995 INVESTMENTS LLC	36803040082	\$282,975	\$9,960
CHS OF 1995 INVESTMENTS LLC C/O HOLBERT JAY	33813030021	\$1,010,770	\$60,650
CIACCIO HOLDING LLC	36701010036	\$127,117	\$7,620
CITY OF CONWAY	33916040019	\$232,029	\$0
CITY OF CONWAY	36701010001	\$200,971	\$0
CITY OF CONWAY	36701010002	\$664,153	\$0
CITY OF CONWAY	36701010005	\$2,673,590	\$0
CITY OF CONWAY	36701010007	\$92,046	\$0
CITY OF CONWAY	36701010008	\$455,215	\$0
CITY OF CONWAY	36701010032	\$318,942	\$0
CITY OF CONWAY	36701010039	\$150,851	\$0
CITY OF CONWAY	36701010049	\$131,291	\$0
CITY OF CONWAY	36701010052	\$901,692	\$0
CITY OF CONWAY	36701010059	\$93,622	\$0
CITY OF CONWAY	36701010060	\$101,099	\$0
CITY OF CONWAY	36701010061	\$99,380	\$0
CITY OF CONWAY	36701010062	\$110,812	\$0
CITY OF CONWAY	36701010063	\$98,750	\$0
CITY OF CONWAY	36701010064	\$23,209	\$0
CITY OF CONWAY	36701010066	\$242,997	\$0
CITY OF CONWAY	36701010069	\$154,134	\$0
CITY OF CONWAY	36701040032	\$146,844	\$0
CITY OF CONWAY	36701040033	\$160,000	\$0
CITY OF CONWAY	36701040036	\$102,456	\$0
CITY OF CONWAY	36708010001	\$467,928	\$0
CITY OF CONWAY	36708010002	\$803,790	\$0
CITY OF CONWAY	36708010003	\$3,544,744	\$0

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
CITY OF CONWAY	36803020098	\$44,971	\$0
CITY OF CONWAY	36803020099	\$45,853	\$0
CITY OF CONWAY	36803020100	\$48,083	\$0
CITY OF CONWAY	36803020101	\$44,954	\$0
CITY OF CONWAY	36803030001	\$45,170	\$0
CITY OF CONWAY	36803030002	\$45,819	\$0
CITY OF CONWAY	36803030003	\$43,704	\$0
CITY OF CONWAY	36803030014	\$281,064	\$0
CITY OF CONWAY C/O CHAMBER OF COMM	36701010006	\$1,000	\$0
CITY OF CONWAY WATER TANK	36701040041	\$212,310	\$0
CMJ ENTERPRISES LLC	36804020069	\$275,836	\$16,550
COASTAL PROPERTY SERVICES LLC	36804030026	\$41,250	\$2,480
COASTAL PROPERTY SERVICES LLC	36804030027	\$69,958	\$4,200
COGGINS FRANCES D TR ETAL	36804020018	\$368,230	\$22,090
COLLINS DIANA MARIE TR ETAL	36701040017	\$208,900	\$12,530
CONSIGN FOR EQUINE LLC	36804020113	\$67,500	\$2,230
CONWAY FORD INC	36803030043	\$345,740	\$20,740
CONWELL RONALD O JR	36803020096	\$102,657	\$2,780
COOPER THOMAS RICKY	36804040056	\$80,650	\$2,180
COOPER WENDELL L (EST OF)	36803030061	\$51,779	\$2,550
COOPER-GARCIA MELISSA L	36805010012	\$115,811	\$5,770
COX HENSON BERRY JR ETAL	36701040029	\$208,900	\$12,420
CRICK BRANDON G	36804040033	\$154,172	\$9,250
CROSBY HARLON A & NINA	36804040063	\$66,836	\$2,610
CYPRESS INN PROPERTY LLC	36701040038	\$1,870,265	\$96,850
DDG INVESTMENTS LLC	36701040026	\$218,700	\$12,420
DEWITT EDNA	36803030005	\$97,506	\$3,230
DISTRICT COLLISION LLC	36803030053	\$140,266	\$8,420
DUKES EVERLENA ETAL C/O EDWARD SMITH	36803030008	\$72,601	\$1,370
EFI LLC	36701040027	\$218,700	\$13,120
ELM STREET LLC	36804020108	\$156,975	\$9,420
FAULK GREGORY C	36803030047	\$140,393	\$8,420
FENNER JACK L TR ETAL	36804040049	\$97,499	\$3,400
FENNER JACK L TR ETAL	36805010016	\$81,780	\$1,860
FENNER JACK L TR ETAL	36805010017	\$46,200	\$1,160
FENNER JACK L TR ETAL	36805010018	\$46,200	\$1,160
FISHER STEVEN JOHN	36701040015	\$208,900	\$8,360
FLOYD JOSEPH CAREY	36701040014	\$208,900	\$12,530
FOSTERING HOPE INC	36804020110	\$507,489	\$0

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
G&P INVESTMENTS LLC	36805010002	\$821,239	\$28,730
G&P INVESTMENTS LLC	36805010003	\$30,000	\$1,800
GERALD LAND HOLDINGS LLC	36803030030	\$8,000	\$180
GIBSON JUANITA I	36803020085	\$88,603	\$1,700
GRAHAM KAY W	36701040018	\$208,900	\$12,420
GRAY ANTWAN	36803020084	\$86,501	\$2,840
GUMBO LIMBO GROUP LLC	36803030011	\$257,231	\$15,430
HABITAT FOR HUMANITY OF HORRY COUNTY INC	36805010011	\$40,125	\$2,410
HAMMIE JOSEPH C (LE) C/O JOHNNIE S MURRELL	36803030055	\$144,050	\$4,310
HARDEE DAVID KEVIN	36805010014	\$41,389	\$1,110
HARDEE JENNIE DIANE SHELLEY	36805010010	\$112,842	\$4,830
HARDEE RAY ETAL	36804040035	\$242,639	\$10,970
HARDWICK L BRICE	36701010046	\$196,382	\$7,780
HARRELSON TIMOTHY D	36804040061	\$165,539	\$9,930
HAYES K SHERWOOD & LINDA N	36701040016	\$208,900	\$12,420
HEALTH CARE PARTNERS OF SC INC	36803020102	\$362,724	\$0
HEALTH CARE PARTNERS OF SC INC	36804040028	\$2,696,803	\$0
HEALTH CARE PARTNERS OF SOUTH CAROLINA INC	36804040030	\$418,584	\$25,120
HEALTH CARE PARTNERS OF SOUTH CAROLINA INC	36804040064	\$493,128	\$29,590
HEDGEPATH LYNETTE ROGERS	36804020067	\$104,212	\$6,250
HEMINGWAY DELORIS ETAL C/O MILLIE MCCOY	36803020066	\$182,598	\$4,000
HILL ALLYSON F	36804020066	\$50,162	\$3,000
HORRY COUNTY	36701040002	\$1,064,493	\$0
HORRY COUNTY	36804030001	\$816,400	\$0
HORRY COUNTY A BODY POLITIC	36701020002	\$21,780	\$0
HORRY COUNTY A BODY POLITIC	36701040001	\$1,058,508	\$0
HORRY COUNTY A BODY POLITIC	36701040005	\$144,887	\$0
HORRY COUNTY A BODY POLITIC	36803030019	\$730,719	\$0
HORRY COUNTY A BODY POLITIC	36804020068	\$567,538	\$0
HORRY COUNTY A BODY POLITIC	36804040029	\$1,452,449	\$0
HORRY COUNTY HISTORICAL SOCIETY C/O BEN BURROUGHS	36701010047	\$52,706	\$0
HORRY FURNITURE CO	36804010014	\$349,822	\$15,460
HORRY FURNITURE CO	36804040057	\$40,325	\$1,090
HORRY FURNITURE CO	36805010019	\$40,325	\$1,090
HORRY FURNITURE CO INC	36804010015	\$50,075	\$550
HORRY FURNITURE CO INC	36804020024	\$799,905	\$27,720

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
HORRY FURNITURE CO INC	36804030029	\$86,250	\$5,180
HORRY FURNITURE CO INC	36804040052	\$43,646	\$820
HORRY FURNITURE CO INC	36804040054	\$40,325	\$1,090
HORRY FURNITURE COMPANY INC	36804020023	\$550,659	\$22,560
HORRY TERESA	36803020103	\$275,771	\$8,950
HORRY THOMAS	36805010006	\$87,538	\$3,360
HOUSING AUTHORITY	36805020002	\$1,306,800	\$0
HUGHES JENNIFER L	36804040051	\$94,340	\$4,280
HWLC II LLC	36803030022	\$125,972	\$5,900
ICON PROFESSIONAL CENTER LLC	36804040013	\$656,946	\$29,360
INMAN NELL L	36803030051	\$50,050	\$2,840
INMAN NELL L	36803030052	\$33,810	\$1,670
INMAN NELL L	36805010015	\$45,495	\$1,160
J TWENTY NINE ELEVEN LLC	36804040016	\$199,433	\$8,420
JOHNSON JEFFREY E	36804040003	\$660,106	\$25,500
JONES AVERY LARUE (LE)	33916040016	\$101,197	\$6,070
JORDAN ALAN HENRY ETAL	36804020106	\$564,285	\$30,550
JORDAN KENNETH DEWAYNE	36804040059	\$42,525	\$2,070
JOSH & LAURA'S LAND LLC	36803030049	\$298,058	\$15,900
JTR LLC	36804040034	\$318,085	\$18,710
KEDARNATH LLC	36803030015	\$1,247,996	\$74,880
KELLY PATRICK E SR ETAL	36806020003	\$45,693	\$850
KINGSTON PRESBYTERIAN CHURCH	36701010051	\$2,061,711	\$0
KINGSTON PRESBYTERIAN CHURCH INC	36701010044	\$178,715	\$0
KINGSTON PRESBYTERIAN CHURCH INC	36701010048	\$458,266	\$0
KURLOWSKI TODD A ETAL	36701040023	\$218,700	\$12,420
LAUREL STREET CONWAY LLC	36701040030	\$208,900	\$12,420
LOMELI RIGOBERTO O JR ETAL	36805010021	\$40,125	\$2,410
LOVIN JAMES W & TINA M ETAL	36804040058	\$108,463	\$1,830
MANCIL LAURA B	36803030042	\$59,100	\$3,550
MAPLE STREET LAND CO LLC	36701040025	\$208,900	\$8,360
MARION LAND CO LLC	36804040014	\$366,222	\$21,080
MARION LAND CO LLC	36804040015	\$89,400	\$5,360
MARION LAND CO LLC	36804040040	\$473,655	\$28,420
MARION LAND CO LLC	36804040041	\$97,500	\$5,610
MARTIN PEGGY H	36805010009	\$43,875	\$620
MARTIN SHARON DENISE	36805010008	\$57,756	\$2,310
MCCRAY JOSEPH ETAL C/O GARY JOSEPH MCCRAY	36803030050	\$60,690	\$2,050

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
MCMILLAN SUSAN HOFFER	36701010030	\$185,950	\$7,420
MCMILLAN SUSAN HOFFER	36701010031	\$176,632	\$10,600
MCMILLAN SUSAN HOFFER	36701010034	\$234,716	\$11,900
MCMILLAN SUSAN HOFFER	36701010065	\$1,028,824	\$32,030
MCMILLAN SUSAN HOFFER	36701010067	\$2,097	\$60
MCNULTY WILLIAM RONALD	36805010005	\$53,110	\$2,180
MCQUEEN TONYA Y	36803020086	\$46,683	\$760
MISHOE KEITH B & KARA C	36805010007	\$92,849	\$2,760
MORIS DANIEL ETAL	36803030009	\$79,313	\$2,670
MORIS DANIEL JOHN ETAL	36803020089	\$124,315	\$7,240
MST OF CONWAY LLC	36701010035	\$623,754	\$34,270
MURPHY-SMITH LINDA ETAL	36803020071	\$75,807	\$1,980
MURRELL JOHNNIE MAE SPAIN EST ETAL C/O CLEMON HAMMIE	36803030054	\$57,709	\$1,650
NARDONE GERARD VINCENT	36804040010	\$419,058	\$25,140
NARDONE GERARD VINCENT	36804040011	\$231,440	\$13,890
NESBITT INC	36701010029	\$400,000	\$24,000
NORMAN & 3RD LLC	36701010050	\$744,844	\$34,570
NORMAN EARL P JR	36701040028	\$218,700	\$8,750
PALMETTO CHEVROLET	36804020031	\$100,113	\$6,010
PALMETTO CHEVROLET CO	36804020032	\$309,057	\$18,540
PALMETTO CHEVROLET CO INC	36804020030	\$147,600	\$8,860
PALMETTO MGMT GROUP OF THE COAST LLC	33916040013	\$269,344	\$11,570
PALMETTO REAL ESTATE OF CONWAY LLC	36804020010	\$1,303,848	\$71,550
PALMETTO REAL ESTATE OF CONWAY LLC	36804020020	\$725,825	\$38,740
PALMETTO REAL OF CONWAY LLC	36804020111	\$334,308	\$20,060
PALMETTO REAL OF CONWAY LLC	36804020112	\$67,500	\$3,880
PARRISH VENTURES LLC	36701010027	\$57,583	\$3,450
PARRISH VENTURES LLC	36701010040	\$137,301	\$4,980
PARRISH VENTURES LLC	36701010041	\$97,110	\$5,830
PEAVY RONALD G	36804040047	\$37,500	\$2,250
PHILLIPS GENEVA S ETAL	36803030006	\$88,089	\$2,320
PIPPIN KENNETH A	36701040011	\$208,900	\$12,420
PIPPIN KENNETH A	36701040013	\$208,900	\$12,420
PLAN-X VENTURES LLC	36803020104	\$51,419	\$720
PORTOFINO VILLAS AT GRANDE DUNES INC	36804040036	\$41,539	\$930
RAY J CHARLEY	36803030034	\$1,050,789	\$63,050
RAY-WATSON CO	36804020019	\$290,677	\$15,910
RAY-WATSON LLC	36701010037	\$119,426	\$7,160

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
REISS RICHARD ANDREW	36803020106	\$240,500	\$7,130
RIVERFRONT VENTURES LLC	36701010054	\$2,205,180	\$7,660
RIVERTOWN PROPERTIES OF CONWAY LLC	36701010056	\$1,059,061	\$63,540
ROGERS THELMA	36803030056	\$49,875	\$540
ROGERS THELMA (LE)	36803030057	\$135,488	\$4,160
SALVATION ARMY THE	36804040004	\$2,736,282	\$0
SC PUBLIC SERVICE AUTHORITY	36800000015	\$426,370	\$0
SCPSA	36800000008	\$2,532,450	\$0
SDWR LLC	36804020022	\$71,382	\$4,110
SDWR LLC	36804030030	\$37,500	\$2,250
SDWR LLC	36805010004	\$40,125	\$1,090
SEA JAY LLC	36804040046	\$37,500	\$2,250
SHILOH PROPERTIES OF CONWAY LLC	36803030060	\$123,498	\$6,900
SHRI NILKANTH LLC	36803030020	\$212,998	\$12,780
SKIPPER LARRY C & LORNA H	36804040048	\$92,636	\$2,870
SKIPPER MELISSA M	36804040042	\$378,902	\$22,730
SKIPPER TAFT JR	36804040044	\$36,600	\$2,200
SKIPPER TAFT JR & ALVA JANE	36804040006	\$37,500	\$2,250
SMALL NATHAN	36806020002	\$247,511	\$9,970
SMITH ALFRED JR	36803020097	\$51,006	\$430
SMITH DARREN L ETAL	36701010053	\$1,935,496	\$26,840
SMITH DARREN L ETAL	36701010068	\$47,372	\$1,820
SMITH DOROTHY ETAL	36803030018	\$25,680	\$700
SMITH EDWARD	36803030058	\$120,471	\$2,370
SMITH LEE W & JULIA A	36803020088	\$96,734	\$0
SMITH LONNIE EUGENE ETAL	36805010013	\$41,375	\$2,480
SNOW HILL COMPANY	33900000018	\$405,200	\$110
SNOW HILL COMPANY	33916030001	\$54,600	\$20
SNOW HILL COMPANY	33916040001	\$18,025	\$20
SOKHAL LLC	36803030037	\$374,245	\$18,140
SOUTH CAROLINA PUBLIC SERVICE AUTH C/O PERRY GASKINS	36804030028	\$41,250	\$0
SOUTH CAROLINA PUBLIC SERVICE AUTH C/O PERRY GASKINS	36804040001	\$82,500	\$0
SOUTH CAROLINA PUBLIC SERVICE AUTH C/O PERRY GASKINS	36804040002	\$136,875	\$0
SPA ON MAIN LLC	36701010043	\$369,218	\$19,290
SPIVEY FAMILY LIMITED PARTNERSHIP OF ORLANDO	33916040010	\$242,618	\$13,950
SPIVEY FAMILY LIMITED PARTNERSHIP OF ORLANDO	36803030044	\$509,035	\$11,840

Property Owner	Parcel ID	Fair Market Value	Taxable Assessed Value
SPIVEY FAMILY LIMITED PARTNERSHIP OF ORLANDO	36803040008	\$363,600	\$5,860
STALVEY RONALD J SR	36803030021	\$358,624	\$17,990
STALVEY RONALD SR C/O JAMES LUND SPEC ASSETS MGR	36803030033	\$389,911	\$9,880
STEVENS DANNY R ETAL	36701040019	\$208,900	\$8,360
STUCKEY BROTHERS & SISTER LLC	36803030045	\$162,272	\$5,870
TARLTON NED F & JEAN T PELLETIER	36803020082	\$62,171	\$1,360
TARTAGLIA ANDREW R ETAL	36804040045	\$37,500	\$2,250
TD BANK NA	36804040031	\$957,219	\$39,140
TD BANK NA C/O LEASE AND TAX ADMINISTRATION DEPT	36804040032	\$85,500	\$5,130
THE CYPRESS INN PROPERTY LLC	36701040003	\$131,247	\$7,550
THE CYPRESS INN PROPERTY LLC	36701040042	\$703,406	\$40,450
THE LOTUS COMPANY LLC	36803020083	\$90,324	\$3,630
THOMAS JOHN C	36804030031	\$456,697	\$18,220
THOMPSON PHILIP C SR ETAL	33916040014	\$107,989	\$5,050
TOM JEFFREY JOHN	36804040043	\$100,484	\$2,330
TREWHELLA LESLIE L	36701040022	\$208,900	\$12,530
TRI-CITY INVESTORS C/O LEVERNE GRAHAM	36804040062	\$31,500	\$1,290
TRUITT & GRACE INVESTMENTS LLC	36701010038	\$199,465	\$11,960
UNITED BANK	36803030012	\$864,183	\$37,230
URMAR LLC	36803030038	\$70,133	\$1,990
WACCAMAW REGIONAL TRANSP AUTHORITY	36804040017	\$2,199,407	\$0
WACCAMAW SHRINE CLUB C/O J H FOXWORTH ETAL ASTRUSTEES	36701040008	\$577,175	\$0
WASHINGTON ANNIE (HEIRS AT LAW) C/O JEANETTE WILKERSON	36803030059	\$43,890	\$480
WATER TOWER PROPERTIES LLC	36701040035	\$530,775	\$31,840
WATER TOWER PROPERTIES LLC	36701040037	\$220,316	\$9,130
WATSON COMMERCIAL LLC	36804030025	\$97,500	\$5,850
WATSON COMMERCIAL LLC	36804040005	\$119,100	\$7,150
WATSON COMMERCIAL LLC	36804040009	\$157,500	\$9,450
WEAVER ANTHONY	36803030004	\$66,159	\$3,600
WELLONS MANAGEMENT INC	36803030013	\$110,591	\$5,930
WEST ORRIE E	33916040011	\$229,578	\$9,250
WESTBURY EDWIN L & NANCY RENEE	36805010001	\$174,376	\$4,650
WESTBURY NANCY RENEE ETAL	36805020001	\$90,000	\$5,400
WILLIAMSON SEEMONE ETAL	36803020105	\$137,111	\$4,100
WILSON CLARA O	36803030007	\$77,662	\$3,180

Exhibit B

Map of Redevelopment Area

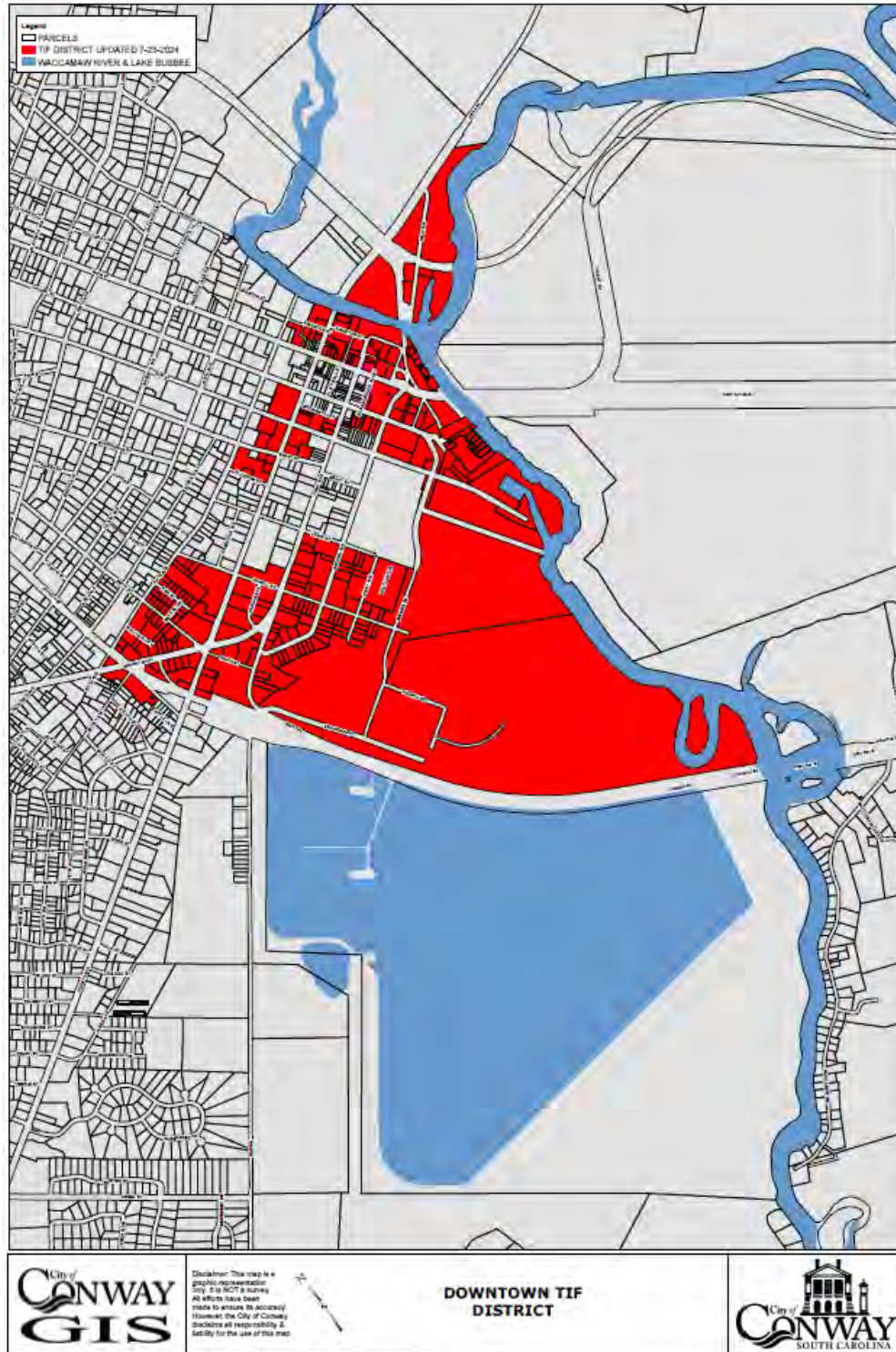


Exhibit C

Preliminary Equalized Assessed Value Certificate

STATE OF SOUTH CAROLINA)
)
COUNTY OF HORRY)

Whereas, in connection with the proposed creation by the City of Conway, South Carolina of the Riverfront and Downtown Redevelopment Project Area and the implementation of the Riverfront and Downtown Redevelopment Plan under Title 31, Chapter 6 of the Code of Laws of South Carolina 1976, as amended, the City Council of the City of Conway is considering the enactment of an ordinance under Section 31-6-80 of the Code of Laws of South Carolina 1976, as amended and has submitted a list of real property comprising the proposed Riverfront and Downtown Redevelopment Project Area, attached hereto as Exhibit A (the “**TIF Properties**”).

Now, therefore, I, the undersigned County Auditor of Horry County, South Carolina, DO HEREBY CERTIFY that the preliminary equalized assessed value of the TIF Properties, for the tax year 2024, which is the latest completed assessment thereof, is not less than the sum of \$2,752,490.

Beth Calhoun, County Auditor
Horry County, South Carolina

_____, 2025

Appendix 1

“Tax Increment Financing Law”

SECTION 31-6-10. Short title.

This chapter may be cited as the "Tax Increment Financing Law".

HISTORY: 1984 Act No. 452, Section 1.

SECTION 31-6-20. Declaration of legislative findings.

(A) The General Assembly finds that:

(1) Section 14 of Article X of the Constitution of South Carolina provides that the General Assembly may authorize by general law that indebtedness for the purpose of redevelopment within incorporated municipalities may be incurred and that the debt service of such indebtedness be provided from the added increments of tax revenues to result from the project.

(2) An increasing demand for public services must be provided from a limited tax base. Incentives must be provided for redevelopment in areas which are, or threaten to become, predominantly slum or blighted.

(3) There exist in many municipalities of this State blighted and conservation areas; the conservation areas are rapidly deteriorating and declining and may soon become blighted areas if their decline is not checked; the stable economic and physical development of the blighted areas and conservation areas is endangered by the presence of blighting factors as manifested by progressive and advanced deterioration of structures, by the overuse of housing and other facilities, by a lack of physical maintenance of existing structures, by obsolete and inadequate community facilities, and a lack of sound community planning, by obsolete platting, diversity of ownership, excessive tax and special assessment delinquencies, or by a combination of these factors; that as a result of the existence of blighted areas and areas requiring conservation, there is an excessive and disproportionate expenditure of public funds, inadequate public and private investment, unmarketability of property, growth in delinquencies and crime, and substandard housing conditions and zoning law violations in such areas together with an abnormal exodus of families and businesses so that the decline of these areas impairs the value of private investments and threatens the sound growth and the tax base of taxing districts in such areas, and threatens the health, safety, morals, and welfare of the public.

(4) In order to promote and protect the health, safety, morals, and welfare of the public, blighted conditions need to be eradicated and conservation measures instituted and redevelopment of such areas undertaken; to remove and alleviate adverse conditions it is necessary to encourage private investment and restore and enhance the tax base of the taxing districts in such areas by the redevelopment of project areas. The eradication of blighted areas and treatment and improvement of areas by redevelopment projects is declared to be essential to the public interest.

(4.5) There exists in or contiguous to many municipalities in the State large tracts of land which served the people of this State and its economy when originally developed and maintained over the generations as agricultural property, contributing food, fiber, timber, and pulpwood, and which now, in an evolving economy and amidst a much smaller, yet vastly more efficient agricultural economy, are in need of redevelopment to provide multiple uses utilizing the redevelopment tools provided in this chapter.

(5) The use of incremental tax revenues derived from the tax rates of various taxing districts in redevelopment project areas for the payment of redevelopment project costs is of benefit to the taxing districts because taxing districts located in redevelopment project areas would not derive the benefits of an increased assessment base without the benefits of tax increment financing, all surplus tax revenues are turned over to the taxing districts in redevelopment project areas, and all taxing districts benefit from the removal of blighted conditions, the eradication of conditions requiring conservation measures, and the redevelopment of agricultural areas.

(B) The General Assembly intends to implement the authorization granted in Article X, Section 14, of the Constitution of this State. The authorization in this chapter provides for this State an essential method for financing redevelopment. The governing bodies of the incorporated municipalities are vested with all powers consistent with the Constitution necessary, useful, and desirable to enable them to accomplish redevelopment in areas which are or threaten to become blighted and to sufficiently meet all constitutional requirements pertaining to incurring indebtedness for the purpose of redevelopment and funding the debt service of such indebtedness from the added increment of tax revenues to result from such redevelopment as provided in subsection (10) of Section 14 of Article X of the Constitution of this State. The indebtedness incurred pursuant to subsection (10) of Section 14 of Article X of the Constitution is exempt from all debt limitations imposed by Article X. The powers granted in this chapter must be in all respects exercised for the benefit of the inhabitants of the State, for the increase of its commerce, and for the promotion of its welfare and prosperity.

(C) All action taken by any municipality in carrying out the purposes of this chapter will perform essential governmental functions.

(D) Pursuant to the authorization granted in Article VIII, Section 13, of the Constitution of this State, if a redevelopment project area is located in more than one municipality, the powers granted herein may be exercised jointly.

HISTORY: 1984 Act No. 452, Section 1; 2005 Act No. 109, Sections 9.A, 9.B.

Editor's Note

2012 Act No. 267, Section 1, provides as follows:

"The General Assembly finds and determines that the legislative findings contained in Section 31-6-20 of the 1976 Code remain true and correct as of the effective date of this act. The General Assembly further finds and determines that it would further the purposes of the Tax Increment Financing Law, Sections 31-6-10, et seq. of the 1976 Code, and would be in the public interest, to explicitly confirm the ability of municipalities and one or more taxing districts to provide by intergovernmental agreement for partial or modified participation in a redevelopment project. The General Assembly further finds that such intergovernmental agreements are consistent with and permissible under existing law, and accordingly the purpose of this act is to explicitly confirm the validity and enforceability of such intergovernmental agreements, whether entered into prior or subsequent to the effective date of this act. This act may not be construed to create a negative implication that any such intergovernmental agreement entered into prior to the effective date of this act is not valid or enforceable."

SECTION 31-6-30. Definitions.

Unless the context clearly indicates otherwise:

(1) "Blighted area" means any improved or vacant area within the boundaries of a redevelopment project area located within the territorial limits of the municipality where:

(a) if improved, industrial, commercial, and residential buildings or improvements, because of a combination of five or more of the following factors: age; dilapidation; obsolescence; deterioration; illegal use of individual structures; presence of structures below minimum code standards; excessive vacancies; overcrowding of structures and community facilities; lack of necessary transportation infrastructure; presence of or potential environmental hazards; lack of water or wastewater services; inadequate electric, natural gas or other energy services; lack of modern communications infrastructure; lack of ventilation, light, sanitary or storm drainage facilities; inadequate utilities; excessive land coverage; deleterious land use or layout; depreciation of physical maintenance; lack of community planning; and static or declining land values are detrimental to the public safety, health, morals, or welfare or;

(b) if vacant, the sound growth is impaired by:

(i) a combination of two or more of the following factors: obsolete platting of the vacant land; diversity of ownership of such land; tax and special assessment delinquencies on such land; deterioration of structures or site improvements in neighboring areas adjacent to the vacant land; overcrowding of structures and community facilities in neighboring areas adjacent to the vacant land; lack of necessary transportation infrastructure; presence of or potential environmental hazard; lack of water, or wastewater; lack of storm drainage facilities; inadequate electric and natural gas energy services; and lack of modern communications infrastructure; or

(ii) the area immediately prior to becoming vacant qualified as a blighted area.

Any area within a redevelopment plan established by Chapter 10 of Title 31 is deemed to be a blighted area.

(1.5) "Agricultural area" means any unimproved or vacant area formerly developed and used primarily for agricultural purposes within the boundaries of a redevelopment project area located within the territorial limits of the municipality where redevelopment and sound growth is impaired by a combination of three or more of the following factors: obsolete platting of the land; diversity of ownership of the land; tax and special assessment delinquencies on the land; deterioration of structures or site improvements in neighboring areas adjacent to the land; overcrowding of structures and community facilities in neighboring areas adjacent to the land; lack of necessary transportation infrastructure; presence of or potential environmental hazards; lack of water or wastewater; lack of storm drainage facilities; inadequate electric, natural gas or other energy services; lack of modern communications infrastructure; lack of community planning; agricultural foreclosures; and static or declining land values.

(2) "Conservation area" means any improved area or vacant area within the boundaries of a redevelopment project area located within the territorial limits of the municipality that is not yet a blighted area where:

(a) if improved, because of a combination of three or more of the following factors: age; dilapidation; obsolescence; deterioration; illegal use of individual structures; presence of structures below minimum code standards; excessive vacancies; overcrowding of structures and community facilities; lack of necessary transportation infrastructure; presence of or potential environmental hazards; lack of water or wastewater services; inadequate electric, natural gas or other energy services; lack of modern communications infrastructure; lack of ventilation, light, sanitary or storm drainage facilities; inadequate utilities; excessive land coverage; deleterious land use or layout;

depreciation of physical maintenance; lack of community planning; and static or declining land values are detrimental to the public safety, health, morals, or welfare or;

(b) if vacant, the sound growth is impaired by a combination of two or more of the following factors: obsolete platting of the vacant land; diversity of ownership of the land; tax and special assessment delinquencies on the land; deterioration of structures or site improvements in neighboring areas adjacent to the vacant land; overcrowding of structures and community facilities in neighboring areas adjacent to the vacant land; lack of necessary transportation infrastructure; presence of or potential environmental hazard; lack of water, or wastewater; lack of storm drainage facilities; inadequate electric and natural gas energy services; and lack of modern communications infrastructure; is detrimental to the public safety, health, morals, or welfare and may become a blighted area.

(3) "Municipality" means an incorporated municipality of this State.

(4) "Obligations" means bonds, notes, or other evidence of indebtedness issued by the municipality to carry out a redevelopment project or to refund outstanding obligations.

(5) "Redevelopment plan" means the comprehensive program of the municipality for redevelopment intended by the payment of redevelopment costs to reduce or eliminate those conditions which qualified the redevelopment project area as an agricultural area, blighted area, conservation area or combination thereof, and thereby to enhance the tax bases of the taxing districts which extend into the project redevelopment area. Each redevelopment plan shall set forth in writing the program to be undertaken to accomplish the objectives and shall include, but not be limited to, estimated redevelopment project costs including long-term project maintenance, as applicable, the anticipated sources of funds to pay costs, the nature and term of any obligations to be issued, the most recent equalized assessed valuation of the project area, an estimate as to the equalized assessed valuation after redevelopment, and the general land uses to apply in the redevelopment project area. A redevelopment plan established by Chapter 10 of Title 31 is deemed a redevelopment plan for purposes of this paragraph.

(6) "Redevelopment project" means any buildings, improvements, including street, road, and highway improvements, water, sewer and storm drainage facilities, parking facilities, tourism and recreation-related facilities, energy production or transmission infrastructure, communications technology, and public transportation infrastructure including, but not limited to, rail and airport facilities. Any project or undertaking authorized under Section 6-21-50 also may qualify as a redevelopment project under this chapter. All the projects are to be publicly owned. A redevelopment may be located outside of the redevelopment area provided the municipality makes specific findings of benefit to the redevelopment project area and the project area is located within the municipal limits. A redevelopment project for purposes of this chapter also includes affordable housing projects where all or a part of new property tax revenues generated in the tax increment financing district are used to provide or support publicly and privately owned affordable housing in the district or is used to provide infrastructure projects to support publicly and privately owned affordable housing in the district. The term "affordable housing" as used herein means residential housing for rent or sale that is appropriately priced for rent or sale to a person or family whose income does not exceed eighty percent of the median income for the local area, with adjustments for household size, according to the latest figures available from the United States Department of Housing and Urban Development (HUD).

(7) "Redevelopment project area" means an area within the incorporated area of and designated by the municipality, which is not less in the aggregate than one and one-half acres and in respect

to which the municipality has made a finding that there exist conditions that cause the area to be classified as an agricultural area, a blighted area, or a conservation area, or a combination thereof.

(8) "Redevelopment project costs" means and includes the sum total of all reasonable or necessary costs incurred or estimated to be incurred and any costs incidental to a redevelopment project. The costs include, without limitation:

(a) costs of studies and surveys, plans, and specifications; professional service costs including, but not limited to, architectural, engineering, legal, marketing, financial, planning, or special services.

(b) property assembly costs including, but not limited to, acquisition of land and other property, real or personal, or rights or interest therein, demolition of buildings, and the clearing and grading of land.

(c) costs of rehabilitation, reconstruction, repair, or remodeling of a redevelopment project.

(d) costs of the construction and long-term maintenance of a redevelopment project.

(e) financing costs including, but not limited to, all necessary and incidental expenses related to the issuance of obligations and which may include payment of interest on any obligations issued under the provisions of this chapter accruing during the estimated period of construction of any redevelopment project for which the obligations are issued and including reasonable reserves related thereto.

(f) relocation costs, including relocation or removal costs of federal, state, or local government facilities or activities, to the extent that a municipality determines that relocation costs must be paid or required by federal or state law.

(9) "Taxing districts" means counties, incorporated municipalities, schools, special purpose districts, and public and any other municipal corporations or districts with the power to levy taxes. Taxing districts include school districts which have taxes levied on their behalf.

(10) "Vacant land" means any parcel or combination of parcels of real property without industrial, commercial, and residential buildings.

HISTORY: 1984 Act No. 452, Section 1; 1996 Act No. 253, Section 1; 1999 Act No. 93, Section 17; 1999 Act No. 109, Section 2; 2002 Act No. 207, Section 1; 2005 Act No. 109, Section 10; 2008 Act No. 358, Section 1, eff June 25, 2008; 2020 Act No. 145 (S.207), Section 3, eff September 28, 2020.

Code Commissioner's Note

In 2013, the Code Commissioner removed text which formerly appeared as the second sentence of subsection (1)(b)(ii) and added it as the last undesignated paragraph under subsection (1).

Effect of Amendment

The 2008 amendment, in subsection (6), added the fifth and sixth sentences relating to affordable housing projects.

2020 Act No. 145, Section 3, in (6), in the fifth sentence, inserted "and privately" following "or support publicly" and "publicly and" following "projects to support".

SECTION 31-6-40. Issuance of obligations for redevelopment costs; security; manner of retirement.

Obligations secured by the special tax allocation fund set forth in Section 31-6-70 for the redevelopment project area may be issued to provide for redevelopment project costs. The obligations, when so issued, must be retired in the manner provided in the ordinance authorizing

the issuance of the obligations by the receipts of taxes levied as specified in Section 31-6-110 against the taxable property included in the area and other revenue as specified in Section 31-6-110 designated by the municipality which source does not involve revenues from any tax or license. In the ordinance the municipality may pledge all or any part of the funds in and to be deposited in the special tax allocation fund created pursuant to Section 31-6-70 to the payment of the redevelopment project costs and obligations. Any pledge of funds in the special tax allocation fund must provide for distribution to the taxing districts of monies not required for payment and securing of the obligations and the excess funds are surplus funds. In the event a municipality only pledges a portion of the monies in the special tax allocation fund for the payment of redevelopment project costs or obligations, any funds remaining in the special tax allocation fund after complying with the requirements of the pledge are also considered surplus funds. All surplus funds must be distributed annually to the taxing districts in the redevelopment project area by being paid by the municipality to the county treasurer of the county in which the municipality is located. The county treasurer shall immediately thereafter make distribution to the respective taxing districts in the same manner and proportion as the most recent distribution by the county treasurer to the affected districts of real property taxes from real property in the redevelopment project area.

In addition to obligations secured by the special tax allocation fund, the municipality may pledge for a period not greater than the term of the obligations toward payment of the obligations any part of the revenues remaining after payment of operation and maintenance, of all or part of any redevelopment project.

The obligations may be issued in one or more series, may bear such date or dates, may mature at such time or times not exceeding thirty years from their respective dates, may bear such rate or rates of interest as the governing body shall determine, may be in such denomination or denominations, may be in such form, either coupon or registered, may carry such registration and conversion privileges, may be executed in such manner, may be payable in such medium of payment, at such place or places, may be subject to such terms of redemption, with or without premium, may be declared or become due before the maturity date thereof, may provide for the replacement of mutilated, destroyed, stolen, or lost bonds, may be authenticated in such manner and upon compliance with such conditions, and may contain such other terms and covenants, as may be provided by the governing body of the municipality. If the governing body determines to sell any obligations the obligations must be sold at public or private sale in such manner and upon such terms as the governing body considers best for the interest of the municipality.

A certified copy of the ordinance authorizing the issuance of the obligations must be filed with the clerk of the governing body of each county and treasurer of each county in which any portion of the municipality is situated and shall constitute the authority for the extension and collection of the taxes to be deposited in the special tax allocation fund.

A municipality also may issue its obligations to refund in whole or in part obligations previously issued by the municipality under the authority of this chapter, whether at or prior to maturity, and all references in this chapter to "obligations" are considered to include these refunding obligations.

The debt incurred by a municipality pursuant to this chapter is exclusive of any statutory limitation upon the indebtedness a taxing district may incur. All obligations issued pursuant to this chapter shall contain a statement on the face of the obligation specifying the sources from which payment is to be made and shall state that the full faith, credit, and taxing powers are not pledged for the obligations.

The trustee or depositary under any indenture may be such persons or corporations as the governing body designates, or they may be nonresidents of South Carolina or incorporated under the laws of the United States or the laws of other states of the United States.

HISTORY: 1984 Act No. 452, Section 1; 1987 Act No. 200, Section 1.

SECTION 31-6-50. Application of proceeds of obligations.

The proceeds from obligations issued under authority of this chapter must be applied only for the purpose for which they were issued. Any premium and accrued interest received in any such sale must be applied to the payment of the principal of or the interest on the obligations sold. Any portion of the proceeds not needed for redevelopment project costs must be applied to the payment of the principal of or the interest on the obligations.

HISTORY: 1984 Act No. 452, Section 1.

SECTION 31-6-60. Exemption of obligations and interest thereon from South Carolina taxes.

The obligations authorized by this chapter and the income from the obligations and all security agreements and indentures executed as security for the obligations made pursuant to the provisions of this chapter and the revenue derived from the obligations are exempt from all taxation in the State of South Carolina except for inheritance, estate, or transfer taxes and all security agreements and indentures made pursuant to the provisions of this chapter are exempt from all state stamp and transfer taxes.

HISTORY: 1984 Act No. 452, Section 1.

SECTION 31-6-70. Ordinance pertaining to allocation of taxes; distribution of surplus funds; termination of redevelopment area status and dissolution of tax allocation fund.

A municipality, within ten years after the date of adoption of an ordinance providing for approval of a redevelopment plan pursuant to Section 31-6-80, may issue the initial obligations under this chapter to finance the redevelopment project upon adoption of an ordinance providing that:

- (1) after the issuance of the obligations; and
- (2) after the total equalized assessed valuation of the taxable real property in a redevelopment project area exceeds the certified "total initial equalized assessed value" established in accordance with Section 31-6-100(B) of all taxable real property in the project area, the ad valorem taxes, if any, arising from the levies upon taxable real property in the project area by taxing districts and tax rates determined in the manner provided in Section 31-6-100(B) each year after the obligations have been issued until obligations issued under this chapter have been retired and redevelopment project costs have been paid must be divided as follows:

- (a) that portion of taxes levied upon each taxable lot, block, tract, or parcel of real property which is attributable to the total initial equalized assessed value of all taxable real property in the redevelopment project area must be allocated to and when collected must be paid by the county treasurer to the respective affected taxing districts in the manner required by law in the absence of the adoption of the redevelopment plan; and

- (b) that portion, if any, of taxes which is attributable to the increase in the current total equalized assessed valuation of all taxable real property in the redevelopment project area over

and above the total initial equalized assessed value of taxable real property in the redevelopment project area must be allocated to and when collected must be paid to the municipality which shall deposit the taxes into a special fund called the special tax allocation fund of the municipality for the purpose of paying redevelopment project costs and obligations incurred in the payment of the costs and obligations. The municipality may pledge in the ordinance the funds in and to be deposited in the special tax allocation fund for the payment of the costs and obligations.

Any ordinance adopted based on acts of the municipality occurring before the effective date of this chapter must incorporate by reference and adopt those prior acts undertaken in accordance with the procedures of this chapter as if they had been undertaken pursuant to this chapter.

Obligations may be issued subsequent to the initial ten-year period. When obligations issued under this chapter have been retired and redevelopment project costs incurred under this chapter have been paid or budgeted pursuant to the redevelopment plan, as evidenced by resolution of the governing body of the municipality, all surplus funds then remaining in the special tax allocation fund must be paid by the municipal treasurer to the county treasurer who immediately, after receiving the payment, shall pay the funds to the taxing districts in the redevelopment project area in the same manner and proportion as the most recent distribution by the treasurer to the affected districts of real property taxes from real property in the redevelopment project area.

Upon the payment of all redevelopment project costs, retirement of all obligations of a municipality issued under this chapter, and the distribution of any surplus monies pursuant to this section, the municipality shall adopt an ordinance dissolving the tax allocation fund for the project redevelopment area and terminating the designation of the redevelopment project area as a redevelopment project area for purposes of this chapter. Thereafter, the rates of the taxing districts must be extended and taxes levied, collected, and distributed in the manner applicable in the absence of the adoption of a redevelopment plan and the issuance of obligations under this chapter.

If ten years have passed from the time a redevelopment project area is designated and the municipality has not issued the initial obligations under this chapter to finance the redevelopment project, upon the expiration of the ten-year term, the municipality shall adopt an ordinance terminating the designation of the redevelopment project area.

HISTORY: 1984 Act No. 452, Section 1; 1987 Act No. 200, Section 2; 2002 Act No. 207, Section 2.

SECTION 31-6-80. Public hearing prior to approval of redevelopment plan; changes in plan; notice to, and objections by taxing districts; adoption of ordinance prior to issuance of obligations; changes to redevelopment plan.

(A) Prior to the issuance of any obligations under this chapter, the municipality shall set forth by way of ordinance the following:

- (1) a copy of the redevelopment plan containing a statement of the objectives of a municipality with regard to the plan;
- (2) a statement indicating the need for and proposed use of the proceeds of the obligations in relationship to the redevelopment plan;
- (3) a statement containing the cost estimates of the redevelopment plan and redevelopment project and the projected sources of revenue to be used to meet the costs including estimates of tax increments and the total amount of indebtedness to be incurred;
- (4) a list of all real property in the redevelopment project area;

- (5) the duration of the redevelopment plan;
 - (6) a statement of the estimated impact of the redevelopment plan upon the revenues of all taxing districts in which a redevelopment project area is located;
 - (7) findings that:
 - (a) the redevelopment project area is an agricultural, blighted, or conservation area and that private initiatives are unlikely to alleviate these conditions without substantial public assistance;
 - (b) property values in the area would remain static or decline without public intervention;
- and
- (c) redevelopment is in the interest of the health, safety, and general welfare of the citizens of the municipality.

(B) Before approving any redevelopment plan under this chapter, the governing body of the municipality must hold a public hearing on the redevelopment plan after published notice in a newspaper of general circulation in the county in which the municipality and any taxing district affected by the redevelopment plan is located not less than fifteen days and not more than thirty days prior to the hearing. The notice shall include:

- (1) the time and place of the public hearing;
- (2) the boundaries of the proposed redevelopment project area;
- (3) a notification that all interested persons will be given an opportunity to be heard at the public hearing;
- (4) a description of the redevelopment plan and redevelopment project; and
- (5) the maximum estimated term of obligations to be issued under the redevelopment plan.

(C) Not less than forty-five days prior to the date set for the public hearing, the municipality shall give notice to all taxing districts of which taxable property is included in the redevelopment project area, and in addition to the other requirements of the notice set forth in the section, the notice shall request each taxing district to submit comments to the municipality concerning the subject matter of the hearing prior to the date of the public hearing.

(D) If a taxing district does not file an objection to the redevelopment plan at or prior to the date of the public hearing, the taxing district is considered to have consented to the redevelopment plan and the issuance of obligations under this chapter to finance the redevelopment project, provided that the actual term of obligations issued is equal to or less than the term stated in the notice of public hearing. The municipality may issue obligations to finance the redevelopment project to the extent that each affected taxing district consents to the redevelopment plan. The tax increment for a taxing district that does not consent to the redevelopment plan must not be included in the special tax allocation fund.

(E) Prior to the adoption of an ordinance approving a redevelopment plan pursuant to Section 31-6-80, changes may be made in the redevelopment plan that do not add parcels to or expand the exterior boundaries of the redevelopment project area, change general land uses established pursuant to the redevelopment plan or the proposed use of the proceeds of the obligations in relationship to the redevelopment plan, or extend the maximum amount or term of obligations to be issued under the redevelopment plan, without further hearing or notice, provided that notice of the changes is given by mail to each affected taxing district and by publication in a newspaper or newspapers of general circulation within the taxing districts not less than ten days prior to the adoption of the changes by ordinance. Notice of the adoption of the ordinance must be published by the municipality in a newspaper having general circulation in the affected taxing districts. Any interested party may, within twenty days after the date of publication of the notice of adoption of

the redevelopment plan, but not afterwards, challenge the validity of such adoption by action de novo in the court of common pleas in the county in which the redevelopment plan is located.

(F)(1) Subsequent to the adoption of an ordinance approving a redevelopment plan pursuant to Section 31-6-80, the municipality may by ordinance make changes to the redevelopment plan that do not add parcels to or expand the exterior boundaries of the redevelopment project area, change general land uses established pursuant to the redevelopment plan, change the proposed use of the proceeds of the obligations in relationship to the redevelopment plan, or extend the maximum amount or term of obligations to be issued under the redevelopment plan, in accordance with the following procedures:

(a) The municipality must provide notice of the proposed changes by mail to each affected taxing district. The proposed changes shall become effective only with respect to affected taxing districts that consent to the proposed changes by resolution of the governing body of the taxing districts.

(b) The municipality must publish notice of the adoption of the ordinance in a newspaper having general circulation in the affected taxing districts. Any interested party may, within twenty days after the date of publication of the notice of adoption of the redevelopment plan, but not afterwards, challenge the validity of the adoption by action de novo in the court of common pleas in the county in which the redevelopment plan is located.

(2) Subsequent to the adoption of an ordinance approving a redevelopment plan pursuant to Section 31-6-80, the municipality may by ordinance make changes to the redevelopment plan that adds parcels to or expands the exterior boundaries of the redevelopment project area, to general land uses established pursuant to the redevelopment plan, to the proposed use of the proceeds of the obligations in relationship to the redevelopment plan, or to extend the maximum amount or term of obligations to be issued under the redevelopment plan, in accordance with the procedures provided in this chapter for the initial approval of a redevelopment project and designation of a redevelopment project area.

(3) If the redevelopment project or portion of it is to be located outside of the redevelopment project area, the municipality shall by resolution make a specific finding of benefit to the redevelopment project area and provide written notice to the affected taxing district. No further action is required of the municipality.

HISTORY: 1984 Act No. 452, Section 1; 1987 Act No. 200, Section 3; 1999 Act No. 93, Section 18; 1999 Act No. 109, Section 3; 2002 Act No. 207, Section 3; 2005 Act No. 109, Section 11; 2012 Act No. 267, Section 3, eff June 20, 2012.

Effect of Amendment

The 2012 amendment added the subsection identifiers, rewrote subsection (E), and added subsection (F).

SECTION 31-6-85. Intergovernmental agreement for redevelopment project.

The municipality and one or more taxing districts may at any time provide by intergovernmental agreement that such taxing district or taxing districts will participate in a redevelopment project on a partial or modified basis. Such intergovernmental agreement shall become effective, and shall be valid and enforceable for the entire duration thereof, upon its approval by ordinance enacted by the municipality and by ordinance or resolution, whichever is applicable, enacted or approved by the affected taxing district or taxing districts.

HISTORY: 2012 Act No. 267, Section 2, eff June 20, 2012.

SECTION 31-6-90. Persons displaced by redevelopment project.

When there are any persons residing in the area covered by the redevelopment plan:

(1) The redevelopment plan shall include:

(a) An assessment of the displacement impact of the redevelopment project and provisions for the relocation of all persons who would be displaced by the project, provided that no residents may be displaced by a redevelopment project unless housing is made available to them pursuant to the terms of this section.

(b) Provisions for the creation of housing opportunities to the extent feasible to enable a substantial number of the displaced persons to relocate within or in close proximity to the area covered by the redevelopment plan.

(2) Prior to authorizing the demolition of any residential units in connection with a tax increment financing plan, the governing body of the municipality must insure that the redevelopment plan complies with the requirements of this section and further that standard housing is made available to all persons to be displaced.

(3) Persons displaced by a redevelopment plan are entitled to the benefits and protections available under Section 28-11-10. The costs of the relocation are proper expenditures for the proceeds of any obligations issued under this chapter.

HISTORY: 1984 Act No. 452, Section 1.

SECTION 31-6-100. Assessment of value of real estate in redevelopment project area.

(A) If a municipality by ordinance approves a redevelopment plan pursuant to Section 31-6-80, the auditor of the county in which the municipality is situated, immediately after adoption of the ordinance pursuant to Section 31-6-80, must, upon request of the municipality, determine and certify:

(1) the most recently ascertained equalized assessed value of all taxable real property within the redevelopment project area, as of the date of adoption of the ordinance adopted pursuant to Section 31-6-80, which value is the "initial equalized assessed value" of the property; and

(2) the total equalized assessed value of all taxable real property within the redevelopment project area and certifying the amount as the "total initial equalized assessed value" of the taxable real property within the redevelopment project area.

(B) After the county auditor has certified the total initial equalized assessed value of the taxable real property in the area, then in respect to every taxing district containing a redevelopment project area, the county auditor or any other official required by law to ascertain the amount of the equalized assessed value of all taxable property within the district for the purpose of computing the rate percent of tax to be extended upon taxable property within such district, shall in every year that obligations are outstanding for redevelopment projects in the redevelopment area ascertain the amount of value of taxable property in a project redevelopment area by including in the amount the certified total initial equalized assessed value of all taxable real property in the area in lieu of the equalized assessed value of all taxable real property in the area. The rate percent of tax determined must be extended to the current equalized assessed value of all property in the redevelopment project area in the same manner as the rate percent of tax is extended to all other

taxable property in the taxing district. The method of extending taxes established under this section terminates when the municipality adopts an ordinance dissolving the special tax allocation fund for the redevelopment project.

HISTORY: 1984 Act No. 452, Section 1; 1987 Act No. 200, Section 4.

SECTION 31-6-110. Disposition of revenues from municipal property within project area; deposit of revenues from sale of property acquired with proceeds of obligations.

Revenues received by the municipality from any property, building, or facility owned by the municipality or any agency or authority established by the municipality in the redevelopment project area may be used to pay redevelopment project costs or reduce outstanding obligations of the municipality incurred under this chapter for redevelopment project costs. If the obligations are used to finance the extension or expansion of a system as defined in Section 6-21-40 in the redevelopment project area, all or a portion of the revenues of the system, whether or not located entirely within the redevelopment project area, including the revenues of the redevelopment project, may be pledged to secure the obligations issued under this chapter. The municipality is fully empowered to use any of the powers granted by either or both of the provisions of Chapter 17 of Title 6 (The Revenue Bond Refinancing Act of 1937) or the provisions of Chapter 21 of Title 6 (Revenue Bond Act for Utilities). In exercising the powers conferred by the provisions, the municipality may make any pledges and covenants authorized by any provision of those chapters. The municipality may place the revenues in the special tax allocation fund or a separate fund which must be held by the municipality or financial institution designated by the municipality. Revenue received by the municipality from the sale or other disposition of real property acquired by the municipality with the proceeds of obligations issued under the provisions of this chapter must be deposited by the municipality in the special tax allocation fund or a separate fund which must be held by the municipality or financial institution designated by the municipality. Proceeds of grants may be pledged by the municipality and deposited in the special tax allocation fund or a separate fund.

HISTORY: 1984 Act No. 452, Section 1; 1987 Act No. 200, Section 5.

SECTION 31-6-120. Project located within more than one municipality.

If the redevelopment project area is located within more than one municipality, the municipalities may jointly adopt a redevelopment plan and authorize obligations as provided under the provisions of this chapter.

HISTORY: 1984 Act No. 452, Section 1.



STAFF REPORT
250 Chevy Chase Dr.

COUNCIL MTG DATE: December 1, 2025	AGENDA ITEM: VI.A.
ORDINANCE: #ZA2026-02-02 (A)	AGENDA SECTION: First Reading
ISSUE: Petition to annex approximately 0.22+/- acres of property located at 250 Chevy Chase Dr.	
APPLICANT(S): Christopher McInvale	PIN(s): 367-13-01-0031
CURRENT ZONING: Residential, mobile homes allowed (MSF10) – min. lot size of 10,000 sq. ft.	PROPOSED ZONING (upon annexation): Low/Medium-Density Residential (R-1)
BACKGROUND: The subject property, identified as Lot 69 A Red Hill, the property was transferred to the current owners on October 17, 2025. Restrictive Covenants were recorded on November 10, 2025. The property contains a single-family dwelling and a detached storage building. Properties abutting the side and rear of the subject parcel are within the city limits. Annexation is being requested as a requirement for a name change to the city utility service account. The adjacent parcel fronting Claridy Rd was annexed in 2011, and other lots with frontage on Claridy Rd were annexed in 2016 and 2023.	
SURROUNDING USES/ZONING: The property abuts a vacant lot in the city limits, zoned FA and is surrounded by residential lots, zoned R-1 in the city limits or MSF-10 if in the unincorporated area of the county.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Low/Medium-Density Residential (R-1). Per Section 3.2.3 of the UDO, <i>the intent of the R-1 district is to provide for the preservation and expansion of areas for low to medium density, detached single-family residential development in the City of Conway. The district shall present a relatively spacious character, promote quiet, livable neighborhoods, and prohibit uses that are incompatible with the residential nature of the surrounding area.</i>	
PLANNING COMMISSION RECOMMENDATION (and public hearing): Planning Commission is scheduled to hold the public hearing and consider the proposed zoning upon annexation at their January 8th mtg.	
TRC RECOMMENDATION / COMMENTS (if applicable): None	
RECOMMENDED ACTION: Approve First Reading of Ordinance #ZA2026-02-02 (A) to annex the subject property.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2026-02-02 (A)

AN ORDINANCE TO ANNEX INTO THE CITY LIMITS OF CONWAY, APPROXIMATELY 0.22+/- ACRES OF PROPERTY, IDENTIFIED BY PIN: 367-13-01-0031 AND LOCATED AT 250 CHEVY CHASE DRIVE, TO INCLUDE ALL WATERWAYS, ROADS, AND RIGHTS-OF-WAY ADJACENT TO THE PROPERTY.

SECTION 1. FINDINGS OF FACTS:

- WHEREAS,** Section § 5-3-150, Code of Laws of South Carolina (1976) as amended, provides a method of annexing property into a city or town by a petition signed by all persons owning real estate in the area requesting annexation; and
- WHEREAS,** A proper petition has been filed with the City of Conway by one hundred percent (100%) of the freeholders owning one hundred percent (100%) of the assessed value of the contiguous property herein described, petitioning for annexation of the property to the City of Conway under the provisions of SC Code of Laws, Section § 5-3-150(3); and
- WHEREAS,** The area comprising said property is contiguous to the City of Conway and meets all statutory requirements for annexation; and
- WHEREAS,** It appears to City Council that annexation would be in the best interest of property owners and the City.

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Council of the City of Conway, South Carolina, duly assembled and with authority of same, pursuant to Section § 5-3-150, Code of Laws of South Carolina (1976), as amended, the following described property is hereby annexed to and made part of the City of Conway, to wit:

Approximately 0.22+/- acres of property identified by PIN: 367-13-01-0031 and located at 250 Chevy Chase Dr.

Upon annexation, the property shall become subject to the City's jurisdiction for the rendition of all applicable municipal services. This annexation includes all waterways, roads, and rights-of-way adjacent to the property. For a more specific description of said property, see attached map(s).

SECTION 2. APPLICATION OF ZONING:

The official zoning map of the City of Conway shall be amended by separate ordinance following Planning Commission review and recommendation in accordance with S.C. Code § 6-29-760.

SECTION 3. EFFECTIVE DATE:

The annexation is effective as of the date of the final reading of this Ordinance.

RATIFIED BY CITY COUNCIL, duly assembled, this _____ day of _____, 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: 12/01/2025

Final Reading: _____

Legend



PARCELS

PIN #: 367-13-01-0031

CHEVY CHASE DR

WEDDING LN

CLARIDY RD

EL PASO DR



Legend



PARCELS

PIN #: 367-13-01-0031

CLARIDY RD

HWY 501 BUS

DEPOT RD

WEDDING LN

CHEVY CHASE DR

WASHINGTON AVE

EL PASO DR

AMBER LN

WASHINGTON

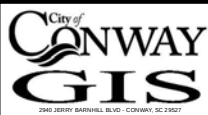
HWY 544

HARVEST GOLD DR

GEMSTONE BLVD

GOLDEN RESIN RD

PRIVATE DR



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.

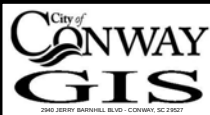
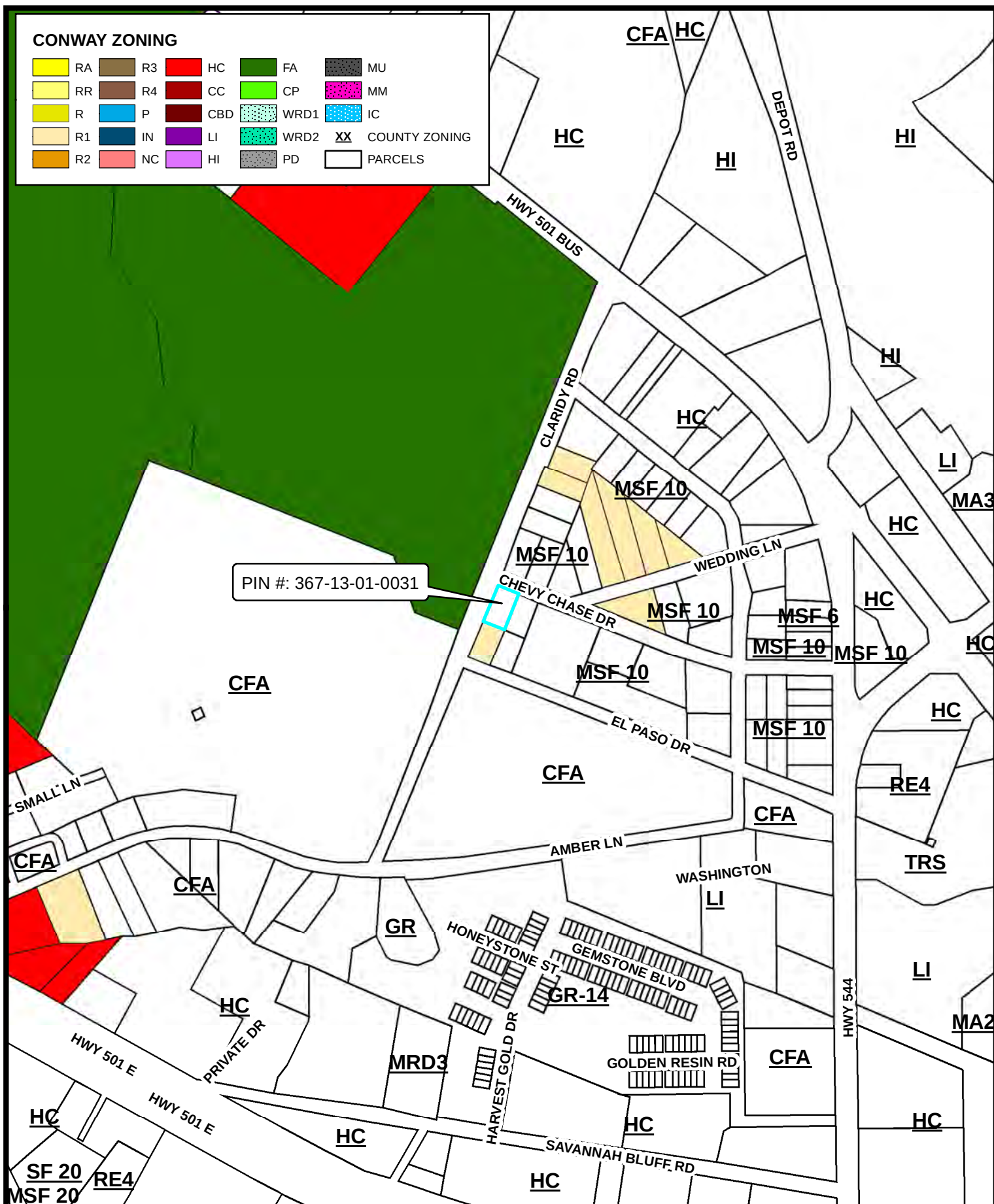


PIN #: 367-13-01-0031
TMS #: 137-16-02-001
250 CHEVY CHASE DR



CONWAY ZONING

RA	R3	HC	FA	MU
RR	R4	CC	CP	MM
R	P	CBD	WRD1	IC
R1	IN	LI	WRD2	XX COUNTY ZONING
R2	NC	HI	PD	PARCELS



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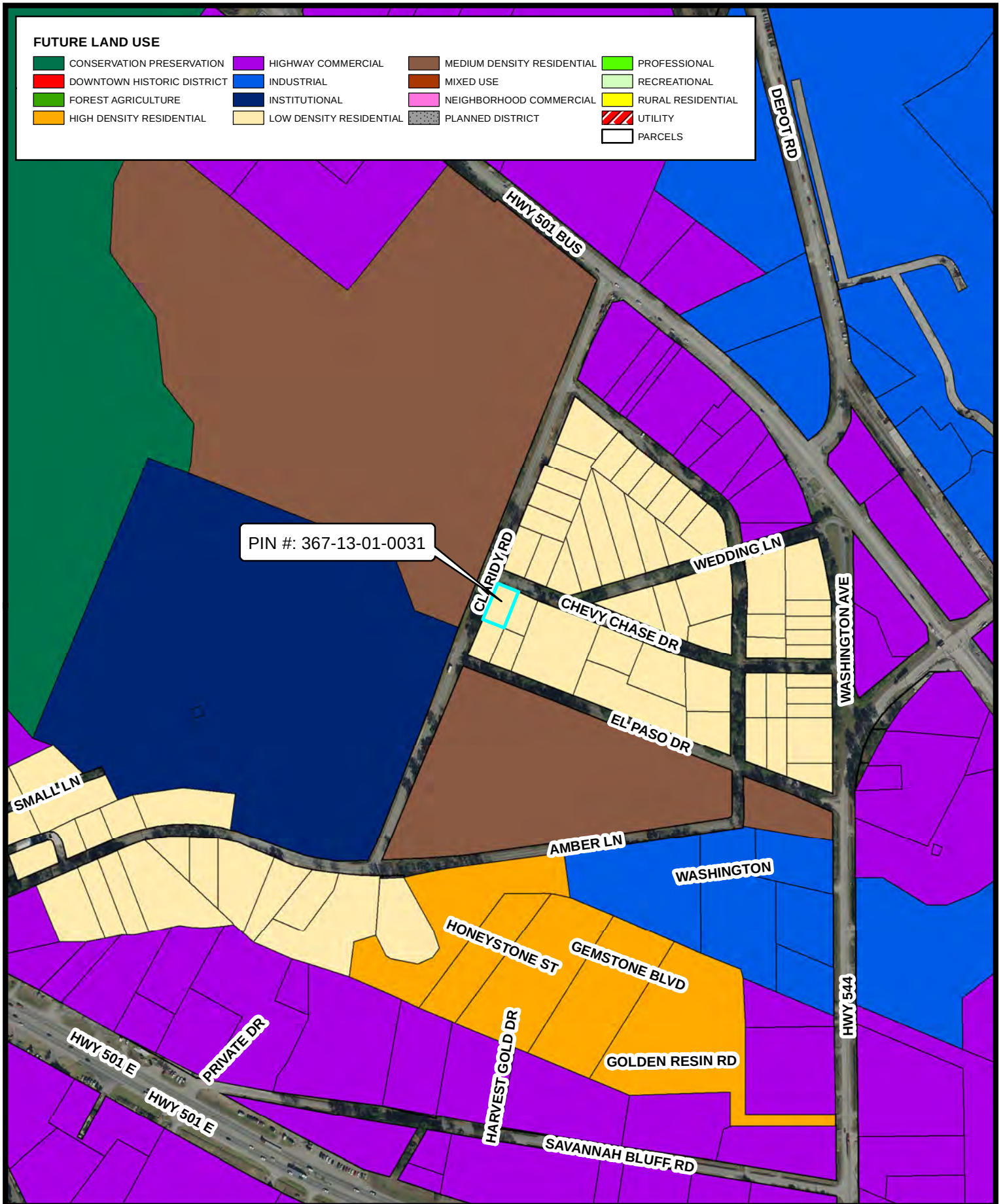
PIN #: 367-13-01-0031
TMS #: 137-16-02-001
250 CHEVY CHASE DR



FUTURE LAND USE

CONSERVATION PRESERVATION	HIGHWAY COMMERCIAL	MEDIUM DENSITY RESIDENTIAL	PROFESSIONAL
DOWNTOWN HISTORIC DISTRICT	INDUSTRIAL	MIXED USE	RECREATIONAL
FOREST AGRICULTURE	INSTITUTIONAL	NEIGHBORHOOD COMMERCIAL	RURAL RESIDENTIAL
HIGH DENSITY RESIDENTIAL	LOW DENSITY RESIDENTIAL	PLANNED DISTRICT	UTILITY
			PARCELS

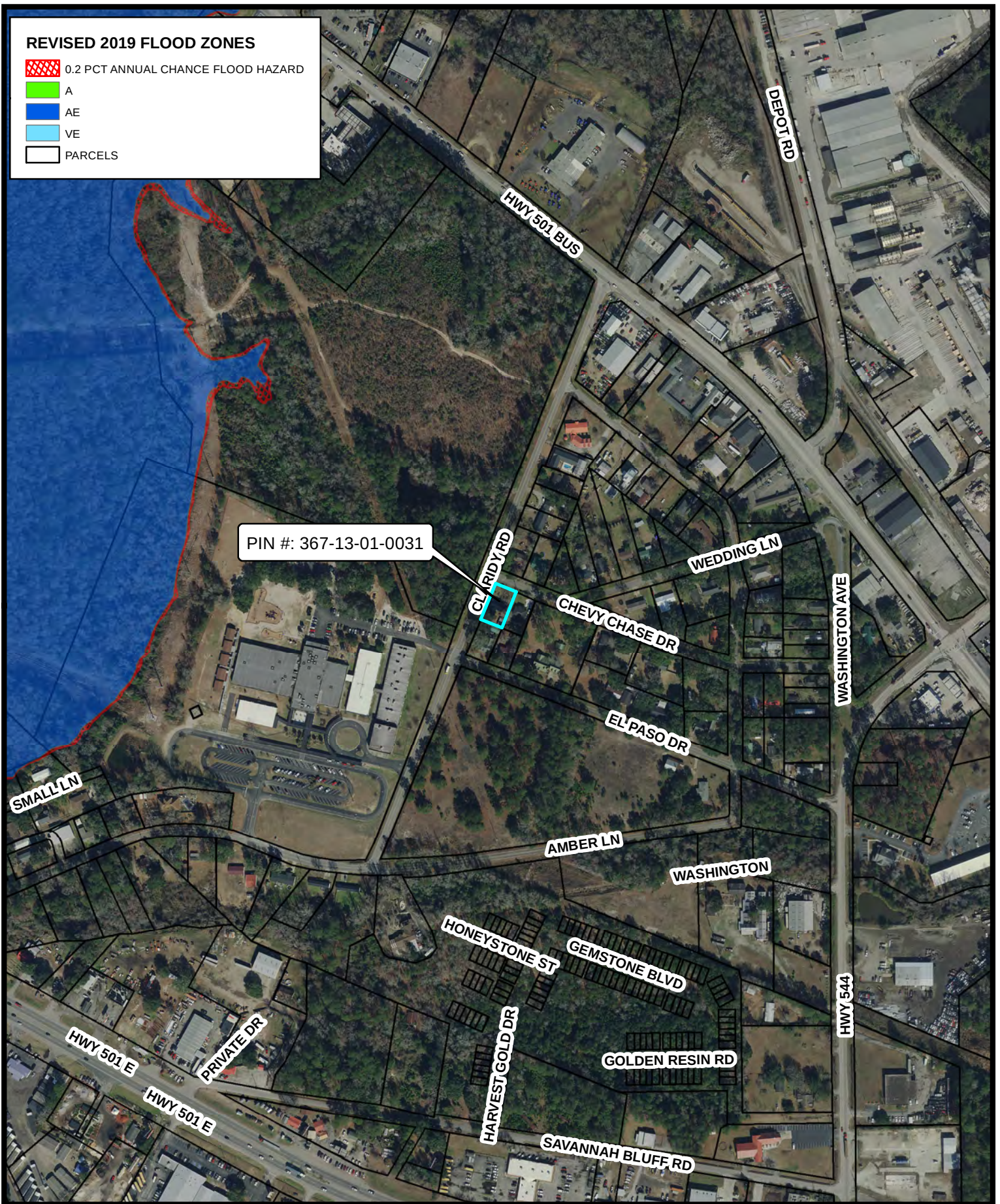
PIN #: 367-13-01-0031



REVISED 2019 FLOOD ZONES

-  0.2 PCT ANNUAL CHANCE FLOOD HAZARD
-  A
-  AE
-  VE
-  PARCELS

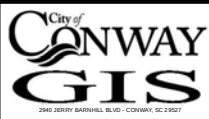
PIN #: 367-13-01-0031



Legend

- UTILITY SERVICE AREA
- PARCELS

PIN #: 367-13-01-0031



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 367-13-01-0031
TMS #: 137-16-02-001
250 CHEVY CHASE DR





STATE OF SOUTH CAROLINA)

) RESTRICTIVE COVENANT

COUNTY OF HORRY)

KNOW ALL ME BY THESE PRESENTS, that, (I, we) Christopher McInale
(Grantor) seek permission to connect to the Water and/or Sewer System of the City Of Conway. The property/parcel is situated outside the corporate limits of the City Of Conway. The property/parcel is identified in the records of the Assessor of Horry County as Parcel Identification Number (PIN) 36713010031 and is physically located at

250 Chevy Chase Dr. 29526
The above referenced property was conveyed by deed to the Grantor and recorded in the Office of the Register of Mesne Conveyance for Horry County, South Carolina in Deed Book 5004 at Page 356.

We understand and agree that as a condition of service and connection of the Water and/or Sewer System to the above referenced property, we will petition, when requested by the City Of Conway (by Group or Individual method) for annexation to the City Of Conway under Section 5-3-150 of the Code of Laws for the State of South Carolina. We further understand that it may be necessary to execute a petition for annexation on more than one occasion; however, the final acceptance of the said petition rests upon an affirmation vote of a majority of the governing body of the City of Conway.

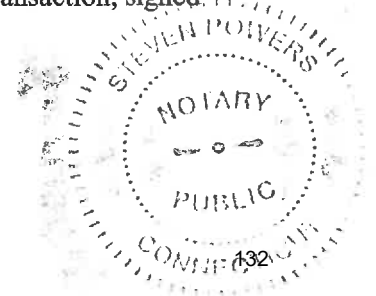
It is understood and agreed upon that this covenant shall be legally binding upon (myself/us) as the Grantor(s), and our heirs and successors. Any violation of, or refusal to sign, said petition shall result in either legal recourse for nonperformance by the City, and/or termination of water and/or sewer services provided to the premises.

It is further understood and agreeable that the City may inspect and approve the owner's water and/or sewer system prior to connection to insure compliance with the City and State regulations. An inspection fee, if applicable, may be imposed for such inspection in accordance with the guidelines and policies set forth by the City of Conway.

All rights, powers, and privileges hereby granted to the City of Conway as grantee shall convey to its heirs, successors and assigns, and shall be binding upon the heirs, successors, administrators, executors and assigns of the Grantor. Grantor acknowledges that the conditions of this agreement and this agreement itself is a restriction and covenant of the title of the above reference property and binding upon the grantors, heirs, successors, and assigns. Furthermore, it is mutually agreeable that upon any dividing, separation, or split of the above referenced property, this agreement shall remain binding upon the successors and heirs of such division, and that this covenant shall remain binding upon the successors and heirs of such division, and that this covenant shall remain a restriction and covenant on the title of the parcel resultant of such division.

Deed BK: 5010 PG: 3412 Doctype: 082
11/10/2025 at 12:11:27 PM, 1 OF 2

Marion D. Foxworth III
HORRY COUNTY, SC REGISTRAR OF DEEDS





PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

City of Conway Planning & Development Department
196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov

DISCLAIMER: All applicable fees are due at the time of submission. If you receive a bill, invoice, or payment request from ANY source other than an official City email address, ending in conwaysc.gov, or via the BS&A online portal (bsaonline.com), do not respond or send payment. Instead, contact the City of Conway Planning & Development Department to verify its legitimacy.

Instructions:

- Fill out annexation petition and application for a zoning map amendment
- Submit signed forms to City of Conway Planning & Development Department
Department Email: planning@conwaysc.gov
- Provide digital copy of deed and survey/plat with these forms, *if available*

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY:

Pursuant to S.C. Code Ann. § 5-3-150(3) (1976, as amended)

We, the undersigned, being all owners of record of the real property described herein, petition the City of Conway to annex the subject property into the corporate limits of the City, in accordance with Section 5-3-150(3) of the S.C. Code of Laws.

PROPERTY INFORMATION:

LOCATION: Red Hill ADDRESS: 250 Chevy Chase Drive
PIN(s): 36713010031 ACREAGE: 0.22

PURPOSE OF ANNEXATION:

- ☒ Connection to City water / sewer
☐ Align with adjoining City development
☐ Other (please explain): _____

REQUESTED ZONING UPON ANNEXATION: R1

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: CHRISTOPHER MCINVALE
MAILING ADDRESS: [REDACTED]
PHONE: [REDACTED] EMAIL: [REDACTED]

PROPERTY OWNER INFORMATION (if different from Applicant):

NAME(S): _____
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☒ YES ☐ NO

IF NOT: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.



PETITION FOR ANNEXATION

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Existing structures and/or uses of property

Are there any structures on the lot? ☒ YES ☐ NO

If yes, what type of structure is on the property? House / shed

What is the current use of the property? Residential

Are there any building permits or development plans in progress or pending for the property? ☐ YES ☒ NO

If yes, what are the permit(s) or development plans for? _____

Does the property contain any of the following?

☐ Wetlands (a current valid wetland delineation may be required from the Army Corp of Engineers)

☐ Flood zone and/or Floodway

☐ Easements (e.g. access, utility, etc.). If so, what type of easement(s)? _____

Restrictive Covenants / Deed Restrictions

To your knowledge, is the subject property restricted by a private recorded covenant or deed restriction that is contrary to, conflicts with, or prohibits the proposed use of the land? ☐ YES ☒ NO

If yes, please explain and provide a copy of covenant and/or restriction. _____

Is the city a party to any deed restrictions or easements existing on the property? ☐ YES ☒ NO

If yes, please describe. _____

ACKNOWLEDGEMENT:

By signing this petition, the undersigned affirms:

- They are the sole and rightful owner(s) of the property;
- They are requesting voluntary annexation into the City of Conway;
- They understand that upon annexation, the property will be subject to all taxes, ordinances, and regulations of the City of Conway;
- They affirm that all information submitted is true and correct to the best of their knowledge.

SIGNATURES:

CHRISTOPHER MCINVALE

Print Name

Signature

Date

Print Name

Signature

Date

Are all property owners represented in the signatures provided above? ☐ YES ☐ NO

If not, please attach additional pages for signatures if necessary, or a designation of agent (DOA) form.

If property is owned by a corporation, LLC or a trust, attach documentation showing authorized signatory.



Application for Zoning Map Amendment

Staff Use Only

Received: _____
BS&A #: _____

PROPERTY INFORMATION:

LOCATION: RED HILL - Lot 69A ADDRESS: 250 Chevy Chase Drive

PIN(s): 36713010031 ACREAGE: 0.22

CURRENT ZONING CLASSIFICATION: MSF 10

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: Low Density Residential

REQUESTED ZONING CLASSIFICATION: R1

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☐ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☐ FLOOD ZONE / FLOOD WAY ☐ WETLANDS ☐ EASEMENTS ☐ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: CHRISTOPHER MCINVALE

MAILING ADDRESS: [REDACTED]

PHONE: [REDACTED] EMAIL: [REDACTED]

PROPERTY OWNER INFORMATION (if different from applicant):

NAME(S): Same

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☒ YES ☐ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

CHRISTOPHER MCINVALE

Print

Signature

Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



STAFF REPORT

1059 & 1071 Academy Dr. (annexation)

COUNCIL MTG DATE: December 1, 2025	AGENDA ITEM: VI.B.
ORDINANCE: #ZA2026-02-02 (B)	AGENDA SECTION: First Reading
ISSUE: Petition to annex approx. 18.26+/- acres of property located at 1059 & 1071 Academy Dr.	
APPLICANT(S): Shawn Becker	PIN(s): 382-00-00-0009
CURRENT ZONING: Horry County Commercial Forest Agriculture (CFA)	PROPOSED ZONING (upon annexation): Highway Commercial (HC)
BACKGROUND: The applicant has submitted a petition to annex the subject property, in accordance with City ordinances, to connect to City utilities for a new residential structure to be built on the church's property. Plans were reviewed and approved by Horry County, and it was not until the applicant went to pay his water tap fees so that they could pick up their approved permit from the county that they were informed of the requirement to request annexation. This item was discussed at a recent Council workshop with the applicant, Mr. Becker, where the general consensus was that annexation of the subject property would <i>not</i> be appropriate at this time. This property would be the only property on Academy Drive that City services would be provided for, other than City utilities (water only). However, City ordinance requires that the applicant submit a petition for annexation for consideration by Council. If annexation were to occur, the applicant has requested a zoning designation of Highway Commercial (HC) upon annexation. Religious institutions are permitted as a conditional use in most zoning districts, including Highway Commercial, in accordance with the provisions in <i>Section 5.1.22</i> of the UDO. However, due to the residential nature of the area, Highway Commercial is not an appropriate zoning for the subject property.	
SURROUNDING USES/ZONING: The surrounding property and area is mainly residential in nature, with all property on Academy Drive in the unincorporated Horry County. County zoning districts include Commercial Forest Agriculture, SF10 (residential, site built only on 10,000 sq. ft. lot size min., SF20 (residential, site built only, on 20,000 sq. ft. lot size min., Mobile Home Park (MHP), MSF20 (residential, including manufactured homes, on 20,000 sq. ft. lot size min., MSF10 (residential, including manufactured homes, on 10,000 sq. ft. lot size min., and MSF6 (residential, including manufactured homes, on 6,000 sq. ft. lot size min.). The subject property abuts city property, zoned Conservation Preservation (CP), which does not have frontage on Academy Dr., but fronts Waccamaw Drive.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Planned Development (PD) District. Per <i>Section 3.3.2</i> of the UDO, the intent of the PD district is to provide for large scale, quality development	



STAFF REPORT

1059 & 1071 Academy Dr. (annexation)

projects (3 acres or larger), with mixed land uses which create a superior environment through unified development and provide for the application of design ingenuity while protecting surrounding developments.

Note: until a recent amendment to the UDO, property which contained religious institutions that was 3 or more acres in size was subject to the requirement to annex and / or rezone to a PD due to the multitude of uses that such institutions contained. This is no longer the case. When the future land use maps are updated with the next comprehensive plan rewrite, the designation of a PD as a “future land use” for any property will also be removed.

PLANNING COMMISSION RECOMMENDATION (and public hearing):

Should first reading of the ordinance to annex the property be approved, the item will be advertised for a public hearing and consideration by Planning Commission at their January 8th mtg.

TRC RECOMMENDATION / COMMENTS (if applicable): None at this time.

RECOMMENDED ACTION:

Disapprove first reading of Ordinance #ZA2026-02-02 (B) to annex the property.

ATTACHMENTS:

GIS Maps;

Annexation petition

ORDINANCE #ZA2026-02-02 (B)

AN ORDINANCE TO ANNEX INTO THE CITY LIMITS OF CONWAY, APPROXIMATELY 18.26+/- ACRES OF PROPERTY, IDENTIFIED BY PIN: 382-00-00-0009 AND LOCATED AT 1059 / 1071 ACADEMY DRIVE, TO INCLUDE ALL WATERWAYS, ROADS, AND RIGHTS-OF-WAY ADJACENT TO THE PROPERTY.

SECTION 1. FINDINGS OF FACTS:

- WHEREAS,** *Section § 5-3-150*, Code of Laws of South Carolina (1976) as amended, provides a method of annexing property into a city or town by a petition signed by all persons owning real estate in the area requesting annexation; and
- WHEREAS,** A proper petition has been filed with the City of Conway by one hundred percent (100%) of the freeholders owning one hundred percent (100%) of the assessed value of the contiguous property herein described, petitioning for annexation of the property to the City of Conway under the provisions of SC Code of Laws, *Section § 5-3-150(3)*; and
- WHEREAS,** The area comprising said property is contiguous to the City of Conway and meets all statutory requirements for annexation; and
- WHEREAS,** It appears to City Council that annexation would be in the best interest of property owners and the City.

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Council of the City of Conway, South Carolina, duly assembled and with authority of same, pursuant to *Section § 5-3-150*, Code of Laws of South Carolina (1976), as amended, the following described property is hereby annexed to and made part of the City of Conway, to wit:

Approximately 18.26+/- acres of property identified by PIN: 382-00-00-0009 and located at 1059 / 1071 Academy Drive.

Upon annexation, the property shall become subject to the City's jurisdiction for the rendition of all applicable municipal services. This annexation includes all waterways, roads, and rights-of-way adjacent to the property. For a more specific description of said property, see attached map(s).

SECTION 2. APPLICATION OF ZONING:

The official zoning map of the City of Conway shall be amended by separate ordinance following Planning Commission review and recommendation in accordance with S.C. Code § 6-29-760.

SECTION 3. EFFECTIVE DATE:

The annexation is effective as of the date of the final reading of this Ordinance.

RATIFIED BY CITY COUNCIL, duly assembled, this _____ day of _____, 2025.

Barbara Jo Blain, Mayor

William M. Goldfinch IV, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

Beth Helms, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: _____

Final Reading: _____

Legend



PARCELS

PIN #: 382-00-00-0009

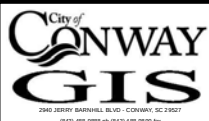
HATTERAS DR

STONEBROOK DR

ACADEMY DR

MARTIN LN

FRAIL LN



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.

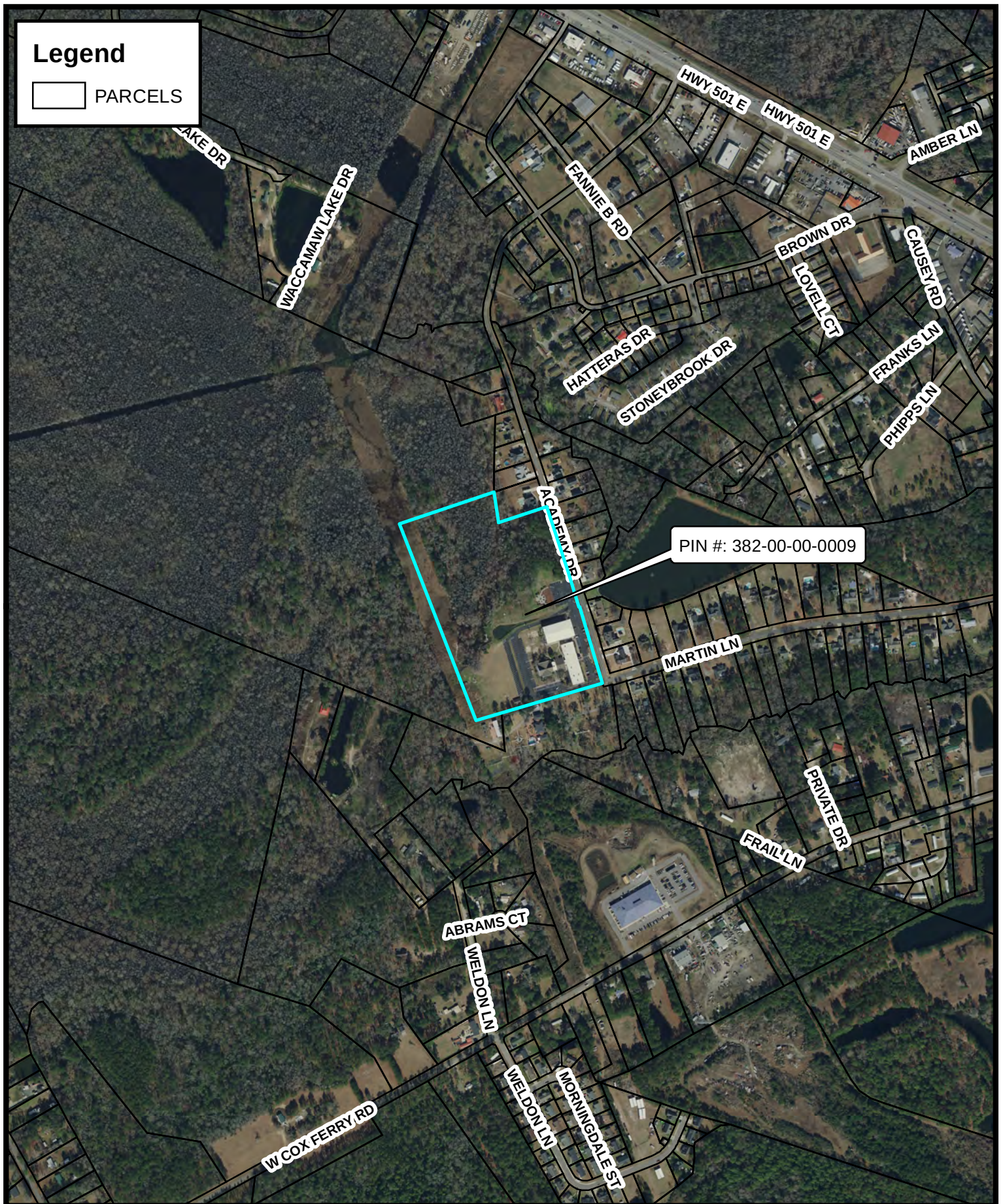


PIN #: 382-00-00-0009
1059 ACADEMY DR
(P25-0473)

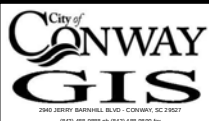


Legend

 PARCELS



PIN #: 382-00-00-0009

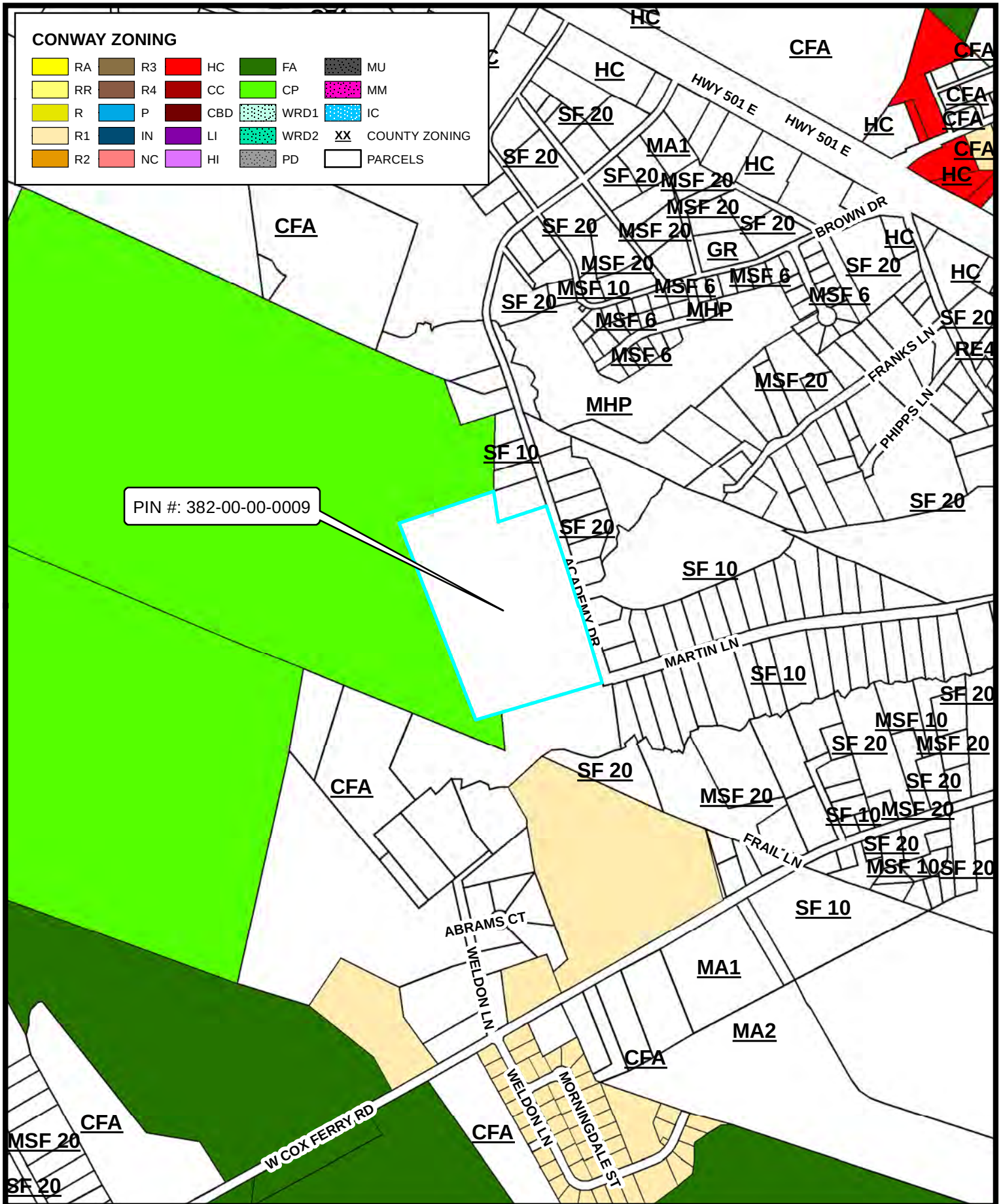


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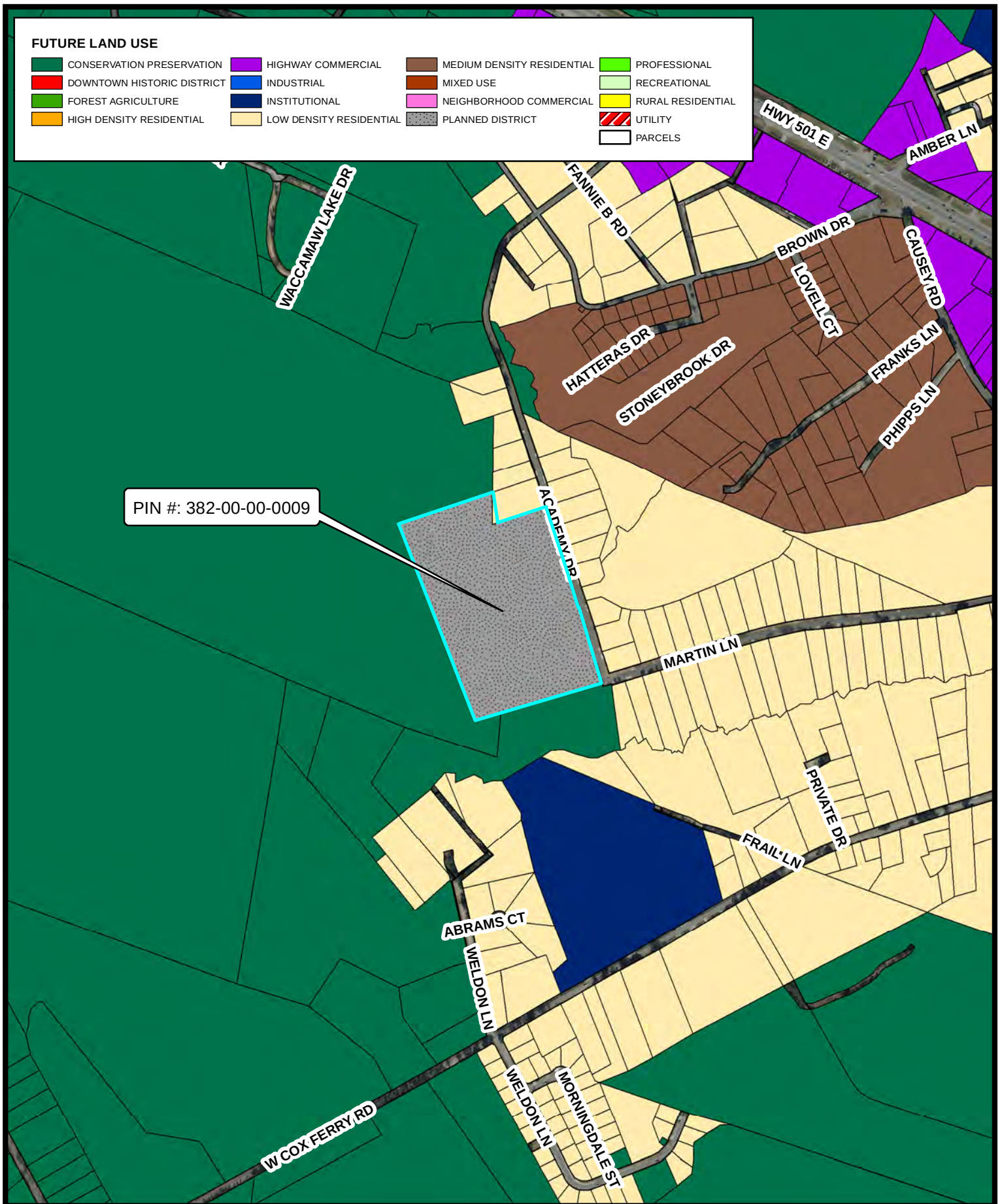
PIN #: 382-00-00-0009
1059 ACADEMY DR
(P25-0473)





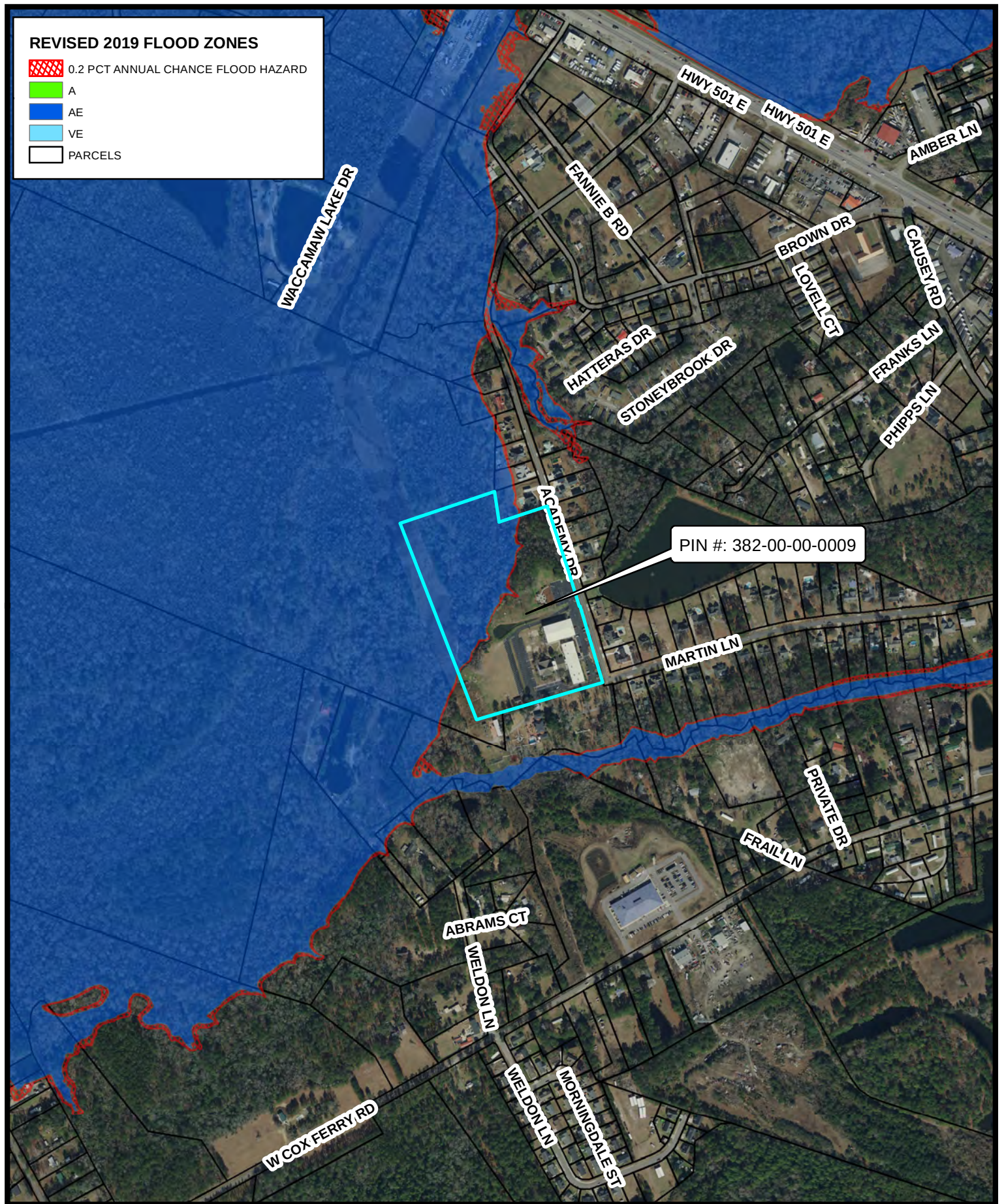
FUTURE LAND USE

CONSERVATION PRESERVATION	HIGHWAY COMMERCIAL	MEDIUM DENSITY RESIDENTIAL	PROFESSIONAL
DOWNTOWN HISTORIC DISTRICT	INDUSTRIAL	MIXED USE	RECREATIONAL
FOREST AGRICULTURE	INSTITUTIONAL	NEIGHBORHOOD COMMERCIAL	RURAL RESIDENTIAL
HIGH DENSITY RESIDENTIAL	LOW DENSITY RESIDENTIAL	PLANNED DISTRICT	UTILITY
			PARCELS



REVISED 2019 FLOOD ZONES

- 0.2 PCT ANNUAL CHANCE FLOOD HAZARD
- A
- AE
- VE
- PARCELS



Legend



UTILITY SERVICE AREA



PARCELS





City of Conway
Pin: 382-00-00-0001
TMS: 150-00-02-001
DB 4208/1963



SHEET No.: C-1
DATE: 8.14.25
DRAWN BY: R.P.M.
CHECKED BY: R.P.M.

N: 722287.07
E: 2596485.97

N: 722326.68
E: 2596621.31

Jagdot Singh
Pin: 382-02-03-0022
TMS: 150-00-02-122
DB 4148/2713

Antwine L. & Sandra G. Mathews
Pin: 382-02-03-0021
TMS: 150-22-01-042

N: 722483.75
E: 2597158.62

David Thompson (Bishop)
Pin: 382-00-00-0009
TMS: 150-00-02-016
DB 1569/397
18.21 Acres (Total-Inclusive of Upland)
793,184 Sq. Ft.

City of Conway
Pin: 382-00-00-0001
TMS: 150-00-02-001
DB 4208/1963

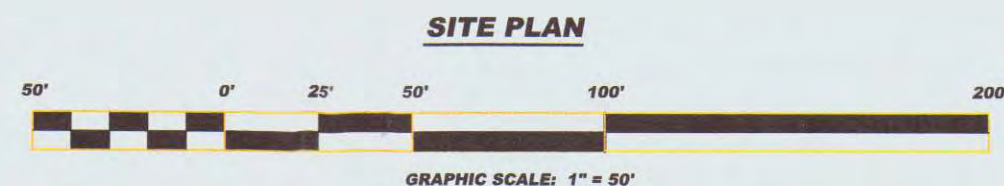
LINE BEARING	DISTANCE
L1 N 88°25'23" E	3.53
L2 N 81°42'34" W	31.73
L3 N 34°17'47" W	19.12
L4 N 53°37'44" W	28.14
L5 N 78°44'13" W	59.19
L6 N 87°34'59" W	23.77
L7 S 82°25'35" W	25.54
L8 S 55°36'19" W	29.37
L9 S 14°27'25" W	27.40
L10 N 89°29'55" W	28.24
L11 N 71°45'38" W	13.48
L12 N 24°46'53" W	19.73
L13 N 89°51'08" W	32.83
L14 N 22°34'23" E	98.88
L15 N 69°37'56" E	110.19

N: 723327.03
E: 2596578.42

N: 723498.08
E: 2596581.36

Herrick Lakewood Heights Inc.
Pin: 382-02-01-0001
TMS: 150-00-02-168

N: 723421.21
E: 2596861.46



I ACKNOWLEDGE THAT THE STRUCTURE
HEREBY PERMITTED MUST BE CONSTRUCTED
ENTIRELY OUT OF ALL EASEMENTS AND OUTSIDE
THE BUILDING SETBACK AREA (OVERHANGS MAY ENCRASH
UP TO 18" ONLY) AND THAT THE LOT HAS BEEN APPROPRIATELY
STAKED FOR CONSTRUCTION

OWNER/AGENT
DATE

PLAN REVIEWER FOR HORRY COUNTY
OK JD 9/10/25

DRIVEWAY INSPECTION
REQUIRED
NO PFS

NOTE: SITE PLAN BASED OFF OF SURVEY
PROVIDED BY K & R LAND SURVEYORS,
INC.

SITE PLAN
PIN: 382-00-00-0009 HORRY COUNTY SC
PREPARED FOR
ST. JAMES CATHOLIC CHURCH

C-1



**VENTURE
ENGINEERING**
209 HIGHWAY 544
CONWAY, SC 29526
843-347-5851

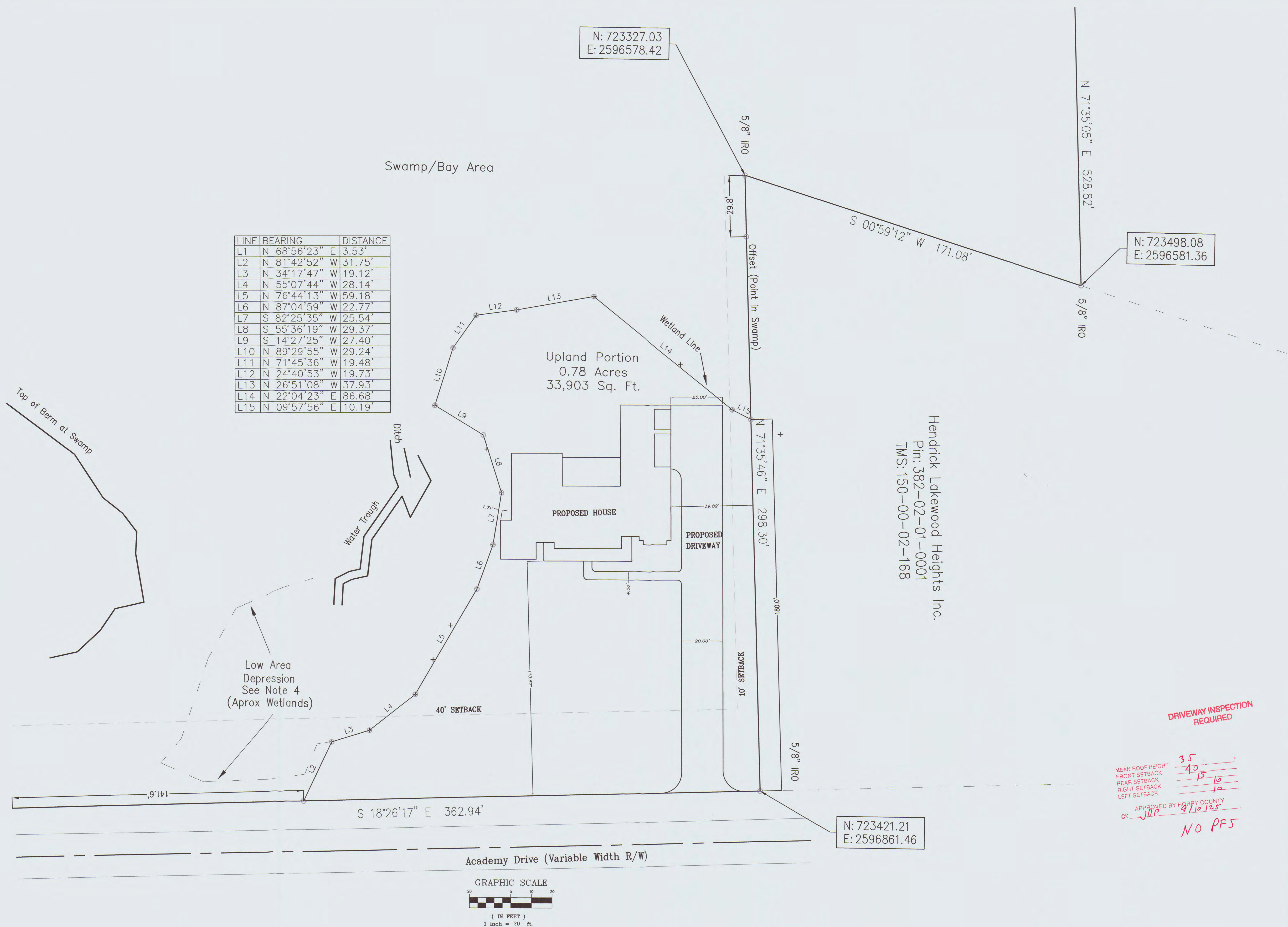
SHEET No.:	1 OF 1
DATE:	NOVEMBER 11, 2023
DRAWN BY:	R.P.M.
CHECKED BY:	R.P.M.

THESE PLANS ARE AN INSTRUMENT OF SERVICE. ARE THE SOLE PROPERTY OF THE ENGINEER.

REVISIONS		DESCRIPTION	BY
No.	DATE		
1.	4-2-24	REVISED DRIVEWAY PER BRAC COMMENTS	RPM
2.	5-29-24	REVISED DRIVEWAY PER BRAC COMMENTS	RPM
3.	7-8-24	REVISED HOUSE LOCATION PER CODE REQ.	RPM
4.	10-10-24	REVISED HOUSE LOCATION PER OWNER	RPM
5.	11-1-24	REVISED HOUSE LOCATION PER OWNER	RPM

SITE PLAN
1071 ACADEMY DRIVE, CONWAY, SC
PREPARED FOR
ST. JAMES CATHOLIC CHURCH

SITE-1
JOB # 2024-136





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196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888

www.conwaysc.gov

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Instructions:

- Fill out annexation petition and application for a zoning map amendment
- Submit signed forms to City of Conway Planning & Development Department
Department Email: planning@conwaysc.gov
- Provide digital copy of deed and survey/plat with these forms, *if available*

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY:

Pursuant to S.C. Code Ann. § 5-3-150(3) (1976, as amended)

We, the undersigned, being all owners of record of the real property described herein, petition the City of Conway to annex the subject property into the corporate limits of the City, in accordance with Section 5-3-150(3) of the S.C. Code of Laws.

PROPERTY INFORMATION:

LOCATION: West of Academy Drive ADDRESS: 1059 Academy Drive
Conway, SC 29526
PIN(s): 382-00-00-0009 ACREAGE: 18.21

PURPOSE OF ANNEXATION:

- ☒ Connection to City water / sewer
☐ Align with adjoining City development
☐ Other (please explain): _____

REQUESTED ZONING UPON ANNEXATION: HC (High Commercial) for church and rectory use

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Shawn Becker
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from Applicant):

NAME(S): David B Thompson, Bishop of Charleston, A Corporation Sole
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☒ NO ☐ YES

IF NOT: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.



PETITION FOR ANNEXATION

Staff Use Only

Received: _____

BS&A #: _____

Existing structures and/or uses of property

Are there any structures on the lot? ☒ YES ☐ NO

If yes, what type of structure is on the property? Church Building

What is the current use of the property? Church

Are there any building permits or development plans in progress or pending for the property? ☒ YES ☐ NO

If yes, what are the permit(s) or development plans for? Rectory Home For Church Leadership

Does the property contain any of the following?

☒ Wetlands (a current valid wetland delineation may be required from the Army Corp of Engineers)

☒ Flood zone and/or Floodway

☒ Easements (e.g. access, utility, etc.). If so, what type of easement(s)? Various

Restrictive Covenants / Deed Restrictions

To your knowledge, is the subject property restricted by a private recorded covenant or deed restriction that is contrary to, conflicts with, or prohibits the proposed use of the land? ☐ YES ☒ NO

If yes, please explain and provide a copy of covenant and/or restriction. _____

Is the city a party to any deed restrictions or easements existing on the property? ☐ YES ☒ NO

If yes, please describe. _____

ACKNOWLEDGEMENT:

By signing this petition, the undersigned affirms:

- They are the sole and rightful owner(s) of the property;
- They are requesting voluntary annexation into the City of Conway;
- They understand that upon annexation, the property will be subject to all taxes, ordinances, and regulations of the City of Conway;
- They affirm that all information submitted is true and correct to the best of their knowledge.

SIGNATURES: David B. Thompson, Bishop of Charleston, A Corporation Sole

Very Rev. Gregory B. Wilson

Print Name Vicar General

Signature Gregory B. Wilson

Date 11/6/2025

Print Name _____

Signature _____

Date _____

Are all property owners represented in the signatures provided above? ☒ YES ☐ NO

If not, please attach additional pages for signatures if necessary, or a designation of agent (DOA) form.

If property is owned by a corporation, LLC or a trust, attach documentation showing authorized signatory.



Application for Zoning Map Amendment

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BS&A #: _____

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196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov
Department Email: planning@conwaysc.gov

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Procedures for Zoning Map Amendments

1. All zoning map amendments shall follow the procedures set forth in *Article 13 – Administrative Agencies and Functions, Section 13.1.7*, of the City of Conway Unified Development Ordinance (UDO).
2. Applications may be submitted in person, at the City of Conway Planning & Development Department, located at 196 Laurel Street, Conway, SC 29526, or via email, at planning@conwaysc.gov
3. All fees are due at the time of submission, and are as follows:
 - Base zoning district amendment: \$250.00
 - Planned Development (PD) district: \$2,500.00
 - Planned Development (PD) amendment: \$500.00
4. **Incomplete applications will not be accepted.**
5. Applications for Planned Development (PD) and Mixed-Use (MU) districts shall include all information outlined in *Article 6 – Design Standards, Section 6.4*, of the UDO.
6. Requests that are inconsistent with the zoning designation on the City’s current future land use map or inconsistent with the zoning of surrounding properties may be required to request an amendment to the future land use map in addition to the request to amend the zoning map.
 - Amendments to the City’s future land use map require a 30-day public hearing notice
7. Planning Commission is required to hold a public hearing on the request and make a recommendation to City Council prior to adoption of an ordinance to amend the zoning map, in accordance with state law and city ordinance.
8. Planning Commission may defer a request to the following month’s Planning Commission meeting if the applicant or a representative is not present at the scheduled hearing date.

Applicant and Owner Acknowledgements

By signing this application, I/we acknowledge and understand that:

1. The request to amend the zoning map will be reviewed for compliance with the City’s Unified Development Ordinance (UDO) and Comprehensive Plan.
2. Approval of the request does not constitute approval of site plans, building permits, or other development approvals, even when provided as part of this application.
3. Any false or misleading statements may be grounds for denial or revocation.
4. All application fees are non-refundable.



Application for Zoning Map Amendment

Staff Use Only

Received: _____
BS&A #: _____

PROPERTY INFORMATION:

LOCATION: West of Academy Drive ADDRESS: 1059 Academy Drive
Conway, SC 29526

PIN(s): 382-00-00-0009 ACREAGE: 18.21

CURRENT ZONING CLASSIFICATION: Horry County-CFA

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: Planned District

REQUESTED ZONING CLASSIFICATION: HC (High Commercial) for church & rectory use

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☒ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☒ FLOOD ZONE / FLOOD WAY ☒ WETLANDS ☒ EASEMENTS ☐ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Shawn Becker

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from applicant):

NAME(S): David B Thompson Bishop of Charleston A Corporation Sole

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☒ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

Shawn Becker
Print

Shawn Becker
Signature

11/20/2025
Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



PLANNING DEPARTMENT

196 LAUREL STREET
CONWAY, SOUTH CAROLINA 29526
843-488-9888
WWW.CONWAYSC.GOV

DESIGNATION OF AGENT

(If the Property Owner Wishes To Appoint an Agent to Represent Him or Herself)

Agents Name: Shawn Becker

Address: [REDACTED]

Telephone: [REDACTED]

Email: [REDACTED]

I hereby appoint the person(s) listed above as agent to act on my behalf for the purpose of filing such application for a variance/rezoning request as he/she shall deem necessary and proper.

Very Rev. Gregory B. Wilson, Vicar General
PROPERTY OWNER(S) NAME (PRINT)

Gregory B. Wilson
PROPERTY OWNER SIGNATURE

11/6/2025
DATE

DATE: DECEMBER 1, 2025

ITEM: VII.

ISSUE:

Consideration of City Assistance to Blackwater Market for Restroom Cleaning and Stocking (October–December)

BACKGROUND:

Blackwater Market has expressed interest in designating its on-site restrooms as “Public Restrooms” during the peak visitation months of October through December. They have requested that the City consider assisting with the daily cleaning and the stocking of restroom supplies during this period. Council is asked to consider whether providing this support aligns with City policy, resource availability, and broader community benefits.

The October–December season represents the City’s highest pedestrian activity period, driven by Halloween events, holiday shopping, parades, and seasonal tourism. Public restroom capacity along Main Street and the Riverfront Core is limited, especially during peak weekends. Blackwater Market’s restrooms are well-located and heavily trafficked during this time.

Typically, restroom maintenance for privately owned facilities remains the responsibility of the property owner or tenant. The City currently does not provide routine cleaning services inside private businesses. However, Blackwater Market’s proposal provides a potential opportunity to expand public access, reduce pressure on City facilities, and improve the visitor experience during the holiday season.

- Potential Benefits:
 - Expanded Public Access: Additional restrooms can reduce crowding and ease navigation during major events.
 - Enhanced Visitor Experience: Clean, reliable, centrally located facilities contribute meaningfully to customer satisfaction and extended downtown visitation.
 - Strategic Partnership: Supporting shared public amenities aligns with the City’s broader goals for downtown vitality.
- Potential Concerns:
 - Precedent: Providing maintenance services inside a private establishment may prompt similar requests during event seasons.
 - Resource Allocation: City staff would need to absorb additional cleaning responsibilities during an already demanding period.

- Cost and Liability: Supplies, labor, and increased wear must be considered. Liability boundaries must be clearly established.
- Operational Considerations:
 - Cleaning frequency and supply needs.
 - Hours of public access guaranteed by Blackwater Market.
 - Clear signage identifying the restrooms as public.
 - Execution of a short-term agreement or MOU outlining responsibilities and cost-sharing.

RECOMMENDATION:

Staff recommends Council authorize the City Administrator to negotiate a short-term agreement with Blackwater Market outlining responsibilities and expectations if the business commits to clearly marking and maintaining their restrooms as public facilities during October through December.

Staff further recommends that any approval be considered a seasonal pilot program, allowing Council to evaluate impact and community feedback before future consideration.